MINISTRY OF CIVIL AVIATION

NOTIFICATION

New Delhi, the 26th October, 2026

G.S.R. 957(E).— Whereas, the draft Bharatiya Vayuyan Niyam, 2025 was published, as required by section 34 of the Bharatiya Vayuyan Adhiniyam, 2024 (16 of 2024), in the notification of the Government of India in the Ministry of Civil Aviation, *vide* G.S.R. number 466 (E), dated 11th July, 2025, in the Gazette of India, Extraordinary, Part II, section 3, sub-section (i), inviting objections and suggestions from all persons likely to be affected thereby, before the expiry of the period of thirty days from the date on which the copies of the Official Gazette containing the said notification were made available to the public;

And whereas, the said draft rules were made available to the public on the 14th July, 2025;

And whereas, the objections and suggestions received from the public in respect of the said draft rules within the period specified have been taken into consideration.

Now, therefore, in exercise of the powers conferred by sections 10, 11, 17,19, 20, sub-section (4) of section 25, sections 30, 32 and 33 of the Bharatiya Vayuyan Adhiniyam, 2024 (16 of 2024), the Central Government hereby makes the following rules, namely: —

CHAPTER I

PRELIMINARY

1. Short title, application and commencement. — *(1)* These rules may be called the Bharatiya Vayuyan Niyam, 2026.

(2) These rules shall come into force on the 1st day of January, 2027.

(3) They shall apply to —

(a) the aircraft, and the persons on the aircraft, registered in India, wherever it may be;

(b) the aircraft, and the persons on the aircraft, registered outside India, but for the time being in or over India:

Provided that in the case of aircraft registered in a country other than India, the regulations of that country relating to registration, licence of personnel, airworthiness and log books shall apply, subject to that the regulations of such country meet the standards at least equal to the minimum standards established from time to time under the Convention on International Civil Aviation signed at Chicago on the 7th December, 1944:

Provided further that where the aircraft is registered in a contracting State and operated pursuant to an agreement for the lease, charter or interchange of the aircraft or any similar arrangement by an operator who has his principal place of business, or, if has no such place of business, his permanent residence in another contracting State other than India, the regulations of the other contracting State relating to registration, licensing of personnel, airworthiness and log books shall apply, subject to that an agreement has been reached between the Government of State of registry of the aircraft and the Government of the other contracting State relating to transfer of functions and duties pursuant to Article 83 bis of the Convention and the same has been officially notified to the Government of India or the International Civil Aviation Organisation, and the extent of application of these rules to such aircraft shall be as per the agreement between the two Governments.

(c) the aircraft registered outside India, in a contracting State and operated pursuant to an agreement for the lease, charter or interchange of the aircraft or any similar arrangement by an operator who has his principal place of business, or, if has no such place of business, his permanent residence in India, subject to that an agreement has been reached between the Government of the State of registry of the Aircraft and the Government of India and regard to transfer of functions and duties pursuant to article 83 bis of the convention, and the extent

of the application of these rules to such aircraft shall be as per the agreement between the two governments.

(*4)* They shall not apply to aircraft registered in India and operated pursuant to an agreement for the lease, charter or interchange of aircraft or any similar arrangement by an operator who has his principal place of business, or, if he has no such place of business, his permanent residence in a contracting State other than India, subject to that an agreement has been reached between the Government of India and the Government of that contracting state in regard to transfer of functions and duties pursuant to Article 83 bis of the Convention, and the extent of non-application of these rules to such aircraft shall be as per the agreement between the two Governments.

Explanation. **—** For the purposes of rules 11, 55, 59, 62, 63, 65, 72, 83, 86, 103, 114, 168, 175 and 179 of these rules, it is hereby clarified that foreign registered aircraft falling under clause *(c)* of sub-rule *(3)* of rule 1 shall be deemed as aircraft registered in India and Indian registered aircraft falling under sub-rule *(4)* of rule 1 shall be deemed as aircraft not registered in India.

2. **Definitions and Interpretation.** ― In these rules, unless the context otherwise requires, ―

(1) "Act" means the Bharatiya Vayuyan Adhiniyam, 2024 (16 of 2024);

(2) "aerial work" means an aircraft operation in which an artaircraft is used for specialised services such as agriculture, construction, photography, surveying, observation and patrol, search and rescue, aerial advertisement, and like;

(3) "aerial work aircraft" means an aircraft used for the aerial work;

(4) **"**Aeronautical Information Publication**"** means a publication issued by or with the authority of a State and containing aeronautical information of a lasting character essential to air navigation;

(5) "aerodrome operator" means a person, organisation or enterprise responsible for operation and management of an aerodrome;

(6) "aerodyne" means an aircraft whose support in flight is derived dynamically from the reaction on surfaces in motion relative to the air, and includes all aeroplanes, helicopters, gyroplanes, gliders and kites;

(7) "aeronautical beacon" means an aeronautical ground light visible at all azimuth either continuously or intermittently to designate a particular point on the surface of the earth;

(8) "aeronautical ground light" means any light provided as an aid to air navigation other than a light displayed on an aircraft;

(9) "aeronautical product" means any civil aircraft, aircraft engine or propeller;

(10) "aeroplane" means a power-driven heavier-than-air aircraft, deriving its lift in flight chiefly from aerodynamic reactions on surfaces which remain fixed under given conditions of flight;

(11) "aerostat" means an aircraft supported in the air statically and includes all airships and balloons;

(12) **"**air navigation services" means the services provided to air traffic during all phases of operation including air traffic management, communication, navigation and surveillance, meteorological services for air navigation, search and rescue and aeronautical information;

(13) **"**air operator certificate" means a certificate authorising an operator to carry out specified commercial air transport operations;

(14) "air traffic" means all aircraft in flight or operating on the manoeuvring area of an aerodrome;

(15) "air traffic controller" means a person on duty in an air traffic services unit and entrusted with the task of giving instructions, clearance or advice to aircraft by approved means of communication in the interest of safety of aircraft operations;

(16) "Air Traffic Controller's Licence" means a licence granted under these rules certifying the competence of the holder to perform the duties of an air traffic controller and containing his personal details including ratings, endorsements and validity of the licence;

(17)"air traffic control service" means a service provided for the purposes of preventing collisions between aircraft and, on the manoeuvring area, between aircraft and obstructions, and of expediting and maintaining an orderly flow of air traffic;

(18) "air traffic control unit" means a generic term meaning variously, area control centre, approach control unit or aerodrome control tower;

(19) “air traffic service” means the flight information service, alerting service and air traffic advisory service and air traffic control service (area control service, approach control service or aerodrome control service);

(20) “air traffic services unit” means the air traffic control unit, flight information centre or air traffic services reporting office;

(21) "air transport service" means a service for the transport by air of persons, mails or any other thing, animate or inanimate, for any kind of remuneration whatsoever, whether such service consists of a single flight or a series of flights;

(22) "air transport undertaking" means an undertaking whose business includes the carriage by air of passengers or cargo for hire or reward;

(23) “aircraft-category” means classification of aircraft according to specified basic characteristics, such as aeroplane, helicopter, glider, free balloon; Vertical take-off and landing-capable aircraft;

(24) **“**aircraft certificated for single-pilot operation**”** means a type of aircraft which the State of Registry has determined, during the certification process, can be operated safely with a minimum crew of one pilot;

(25) "aircraft component" means any part, the soundness and correct functioning of which, when fitted to an aircraft, is essential to the continued airworthiness or safety of the aircraft and includes any item of equipment;

(26) “aircraft management service” means all such services provided to the owner of an aircraft that are essential or incidental, for operation and maintenance of that aircraft in compliance to these rules and the regulations framed thereunder, as may be applicable for operation and maintenance of the said aircraft;

(27) “aircraft management service provider” means a person who provides aircraft management service to the aircraft owner under a commercial contract between them;

(28) **“**aircraft required to be operated with a co-pilot” means a type of aircraft that is required to be operated with a co-pilot, as specified in the flight manual or by the air operator certificate;

(29) "airship" means a power-driven lighter-than-air aircraft;

(30) "airworthy" means the status of an aircraft, engine, propeller or part when it conforms to its approved design and is in a condition of safe operation in accordance with norms specified by the Director General;

(31) "airworthiness review certificate" means a certificate issued under these rules to confirm the continued validity of a certificate of airworthiness;

(32) “amateur-built aircraft” means an aircraft, the major portion (minimum 51%) of which has been fabricated and assembled by person or persons who undertook the construction project solely for their own education, research and development, sports or recreation;

(33) "amphibian" means an aeroplane capable normally of taking off from and alighting on either land or a solid platform or water;

(34) "approved" means accepted by the Director General as suitable for a particular purpose;

(35) "approved maintenance system" means the maintenance system approved by the Director General;

(36) “approved training” means a training conducted under special curricula and supervision approved by the Director General;

(37) “approved training organisation” means an organisation approved and operating under the supervision of the Director General to perform approved training;

(38) “balloon” means a non-power-driven lighter-than-air aircraft.

Explanation. — For the purposes of the First Schedule of these rule, it includes free balloons;

(39) “basic instrument flight trainer” means a device which is equipped with appropriate instruments, and which simulates the flight deck environment of an aircraft in flight in instrument flight conditions;

(40) “cabin crew member” means a crew member other than a flight crew member;

(41) “Cape Town Convention” means the Convention on international interests in mobile equipment signed at Cape Town, South Africa on the 16th of November, 2001, together with any regulations made in connection therewith as ratified by India on March 31, 2008;

(42) “Cape Town Protocol” means the Protocol to the Cape Town Convention on matters specific to Aircraft Equipment, signed in Cape Town, South Africa on

the 16th of November, 2001, together with any regulations made in connection therewith as ratified by India on the 31st March, 2008;

(43) "certificate of airworthiness" means an aircraft specific document issued by the Director General to signify that it conforms to its applicable type design and is in a condition for safe operation in accordance with the norms as specified by the Director General;

(44) "class rating" shall comprise —

(a) Single-engine, land;

(b) Single-engine, sea;

(c) Multi-engine, land;

(d) Multi-engine, sea;

(45) "commercial air transport operation" means an aircraft operation involving the transport of passengers, cargo or mail for remuneration or hire;

(46) "competency" means a dimension of human performance that is used to reliably predict successful performance on the job. A competency is manifested and observed through behaviours that mobilise the relevant knowledge, skills and attitudes to carry out activities or tasks under specified conditions;

(47) "complex motor-powered aircraft" means –

(a) an aeroplane:

(i) above 5700 kg. maximum take-off mass, or

(ii) certificated for more than nineteen seated passengers, or

(iii) certificated for operation with at least two pilots, or

(iv) equipped with turbojet engine or more than one turboprop engine.

(b) a helicopter:

(i) above 3175 kg. maximum take-off mass, or

(ii) certificated for more than nine seated passengers, or

(iii) certificated for operation with at least two pilots, or

(c) a tilt rotor aircraft;

(48) "contracting State" means any State which is for the time being a party to the Convention on International Civil Aviation concluded at Chicago on 7th December, 1944, and any amendment which may be made thereto under the provisions of Article 94 thereof;

(49) "Convention" means the Convention relating to International Civil Aviation signed at Chicago on the 7th day of December, 1944, as amended from time to time;

(50) "co-pilot" means a licensed pilot serving in any piloting capacity other than as pilot-in-command but excluding a pilot who is on board the aircraft for the sole purpose of receiving flight instruction;

(51) "course" or "heading" means the direction in which the longitudinal axis of an aircraft is pointed, usually expressed in degrees from North (True, Magnetic or Compass);

(52) "crew member" means a person assigned by an operator for duty on an aircraft during a flight duty period;

(53) "defence aerodrome" means an aerodrome owned and operated by Indian Air Force, Indian Navy or Indian Army;

(54) "Director General" means Director General of Civil Aviation;

(55) "dual flight time" means flight time during which a person is receiving flight instructions from a pilot on board the aircraft;

(56) "dual instruction time" means flight time during which a person is receiving flight instruction from a properly authorised pilot on board the aircraft, or from a properly authorised remote pilot using the remote pilot station during a remotely piloted aircraft flight;

(57) "endorsement" with respect to a licence means an entry in the licence indicating the privileges which the licence holder is entitled to exercise, including any observation impacting the exercise of such privileges;

(58) **"**fatigue**"** means a physiological state of reduced mental or physical performance capability resulting from sleep loss or extended wakefulness, circadian phase or workload (mental or physical activity, or both) that can impair an individual's alertness and ability to safely perform the tasks;

(59) "flight crew member" means a licensed crew member charged with duties essential to the operation of an aircraft during a flight duty period;

(60) "flight dispatcher" means a person designated by the operator to engage in the control and supervision of flight operations, who supports, briefs and assists the pilot-in-command in the safe conduct of the flight;

(61) "flight information region" means an airspace of defined dimensions within which flight information service and alerting service are provided;

(62) “flight information service” means a service provided for the purpose of giving advice and information useful for the safe and efficient conduct of flights;

(63) "flight manual" means a manual associated with the certificate of airworthiness, containing limitations within which the aircraft is to be considered airworthy, and contains instructions and information necessary to the flight crew members for the safe operations of the aircraft;

(64) “flight simulation training device” means any one of the following three types of apparatus in which flight conditions are simulated on the ground:

(a) a flight simulator, which provides an accurate representation of the flight deck of a particular aircraft type or an accurate representation of the remotely piloted aircraft system to the extent that the mechanical, electrical, electronic aircraft systems control functions, the normal environment of flight crew members, and the performance and flight characteristics of that type of aircraft are realistically simulated;

(b) a flight procedures trainer, which provides a realistic flight deck environment or realistic remotely piloted aircraft system environment, and which simulates instrument responses, simple control functions of mechanical, electrical, electronic, aircraft systems, and the performance and flight characteristics of aircraft of a particular class;

(c) a basic instrument flight trainer, which is equipped with appropriate instruments, and which simulates the flight deck environment of an aircraft in flight or the remotely piloted aircraft system environment in instrument flight conditions;

(65) "flight time" means –

(i) in respect of an aeroplane, the total time from the moment the aeroplane first moves for the purpose of taking off until the moment it finally comes to rest at the end of the flight; and

(ii) in respect of a helicopter, the total time from the moment the helicopter’s rotor blades start turning until the moment it finally comes to rest at the end of the flight, and the rotor blades are stopped.

Explanation. — for the purpose of this clause, it is hereby clarified that flight time is synonymous with the term "block to block" time, or "chock to chock" time

in general usage which is measured from the time an aeroplane first moves for the purpose of taking off until it finally stops at the end of the flight;

(66) "flight time in a glider" means the total time occupied in flight, whether being towed or not, from the moment the glider first moves for the purpose of taking off until the movement it comes to rest at the end of the flight;

(67) "flight time in free flight" includes flight time in glider when it is not being towed;

(68) "foreign aircraft" means an aircraft registered in a country other than India;

(69) "glider" means a non-power-driven heavier-than-air aircraft, deriving its lift in flight chiefly from aerodynamic reactions on surfaces which remain fixed under given conditions of flight;

(70) "Government aerodrome" means an aerodrome which is maintained by or on behalf of the Central Government and includes an airport to which the Airports Authority of India Act, 1994 (55 of 1994) applies or is made applicable;

(71) "gyroplane" means a rotorcraft whose rotors are not engine-driven, except for initial starting, but are made to rotate by action of the air when the rotorcraft is moving; and whose means of propulsion, consisting usually of conventional propellers, is independent of the rotor system;

(72) "helicopter" means a heavier-than-air aircraft supported in flight chiefly by the reactions of the air on one or more power-driven rotors on substantially vertical axes;

(73) "IDERA" means the irrevocable deregistration and export request authorisation to be used for getting an aircraft deregistered and exported under the provisions of the Cape Town Protocol;

(74) "IDERA Holder" means the authorised party under an IDERA or its certified designee;

(75) "Indian Technical Standard Order" means a minimum performance standard for aircraft component;

(76) **"**instrument flight procedure design service**"** means a service established for the design, documentation, validation, maintenance and periodic review of instrument flight procedures necessary for the safety, regularity and efficiency of air navigation;

(77) "instrument flight time" means the time during which a pilot is piloting an aircraft solely by reference to instruments and without external reference points;

(78) instrument ground time" means the time during which a pilot is practicing, on the ground, simulated instrument flight in a flight simulation training device approved by the Director General;

(79) "instrument time" means the instrument flight time or the instrument ground time;

(80) "item of equipment" means any self-contained unit, which, when attached to, or installed on aircraft, performs a function essential under certain operating conditions of airworthiness or safety of the aircraft or its occupants;

(81) "landing area" means that part of an aerodrome reserved for the departure or landing of aircraft;

(82) "licence" means a licence issued under these rules;

(83) "light sport aircraft" means a fixed wing aircraft to be approved for day visual flight rules only that meet all of the following criteria, namely: —

(a) a maximum take-off mass not exceeding 600 kg. for aeroplane not intended to be operated on water or 650 kg. for aeroplane intended to be operated on water;

(b) a maximum stalling speed in landing configuration of not more than 45 knots calibrated airspeed at the aircraft's maximum certificated take-off mass and most critical centre of gravity;

(c) a maximum seating capacity of not more than two persons, including the pilot;

(d) a single, non-turbine engine fitted with a propeller; and

(e) a non-pressurised cabin;

(84) "major airport" shall have the same meaning as assigned to it in clause *(i)* of section 2 of the Airports Economic Regulatory Authority of India Act, 2008 (27 of 2008);

(85) "manoeuvring area" means that area of an aerodrome which is to be used for the take-off and landing of an aircraft and for the movement of aircraft associated with the take-off and landing;

(86) **"**meteorological authority" means the authority providing or arranging for the provision of meteorological service for international air navigation;

(87) **"**meteorological information" means Meteorological report, analysis, forecast, and any other statement relating to existing or expected meteorological conditions;

(88) "microlight aircraft" means Microlight aircraft (single seater) and Microlight aircraft (two seater) and excludes hang gliders and para-planes;

(89) "microlight aircraft (single seater)" means a fixed wing aircraft with a maximum all up weight not exceeding 330 kg. and a wing area not less than 10 sq meters and which is designed to carry not more than one person;

(90) "microlight aircraft (twoseater)" means a fixed wing aircraft with a maximum all up weight not exceeding 450 kg. and a wing area not less than 10 sq meters and which is designed to carry not more than two persons;

(91) "military aircraft" includes Naval, Military and Air Force aircraft, and every aircraft commanded by a person in Naval, Military or Air Force service detailed for the purpose;

(92) "movement area" means the area of an aerodrome which is intended for the surface movement of an aircraft and includes the manoeuvring area and aprons;

(93) "nationality of aircraft" means the nationality of the State on the register of which the aircraft is entered;

(94) "normal flight" means flight comprising climbing, horizontal flight, turning and descending:

Provided that it does not entail abrupt variations in height or in the attitude of the aircraft;

(95) "on the surface of water"- An aircraft is deemed to be "on the surface of the water" so long as any portion of it is in contact with the water;

(96) "on-the-job training" means integration in practice of previously acquired job related qualifications and skills in a live job situation under the supervision of a qualified and experienced person already employed for that job;

(97) "operator" means a person, organisation or enterprise engaged in or offering to engage in aircraft operation;

(98) "passenger aircraft", "mail aircraft" and "goods aircraft" means aircraft which effect public transport of passengers, mails or goods, respectively;

(99) "petroleum in bulk" means petroleum contained in receptacle exceeding 900 liters in capacity;

(100) "pilot-in-command" means the pilot designated by the operator, or in the case of general aviation, the owner, as being in command and charged with the safe conduct of a flight;

(101) **"**pilot-in-command under supervision" means co-pilot performing, under the supervision of the pilot-in-command, the duties and functions of a pilot-in-command, in accordance with a method of supervision acceptable to the licensing authority;

(102) "powerplant" means the system consisting of all the engines, drive system components, if applicable, and propellers, if installed, their accessories, ancillary parts, fuel and oil systems installed on an aircraft but excluding the rotors for a helicopter;

(103) "private aircraft" means all aircraft other than aerial work aircraft or public transport aircraft;

(104) "prohibited area" means an area over which the navigation of aircraft is prohibited under rule 8;

(105) "public transport" means all carriage of persons or things effected by aircraft for a remuneration of any nature whatsoever, and all carriage of persons or things effected by aircraft without such remuneration, if the carriage is effected by an air transport undertaking;

(106) "public transport aircraft" means an aircraft which effects public transport;

(107) "Radio Regulations" means the regulations adopted by the World Radiocommunication Conference held at Geneva in the year 1995 and includes every revision or modification thereof which the Government of India has ratified or accepted;

(108) "rating" means an authorisation entered on or associated with a licence and forming part thereof, stating special conditions, privileges or limitations pertaining to such licence;

(109) "registered interest" means any interest registered with the International Registry established under the Cape Town Convention;

(110) "rendering a licence valid" means the action taken as an alternative to issuing its own licence in accepting a licence issued by any other Contracting State as the equivalent of an Indian licence;

(111) **"**Rescue Coordination Centre" means a unit responsible for promoting efficient organisation of search and rescue services and for coordinating the conduct of search and rescue operations within a search and rescue region;

(112) "restricted type certificate" means a document issued, validated or accepted by the Director General signifying that the design of a type of aircraft or engine

or propeller does not fully meet the applicable type design standards as specified by the Director General;

(113) "safety" means the state in which the risks associated with aviation activities, related to, or in direct support of the operation of aircraft, are reduced and controlled to an acceptable level.

Explanation. – For the purposes of this clause, the expression "acceptable level" is the minimum degree of safety that must be assured by a system in actual practice;

(114) "safety data" means a defined set of facts or set of safety values collected from various aviation related sources, which is used to maintain or improve safety;

(115) "Safety Information" means safety data processed, organised or analysed in a given context so as to make it useful for safety management purposes;

(116) "scheduled air transport service" means an air transport service undertaken between the same two or more places and operated according to a published time table or with flights so regular or frequent that they constitute a recognisably systematic series, each flight being open to use by members of the public;

(117) "Seaplane" means a fixed wing aeroplane designed for taking off and landing on water and it includes amphibians operating as seaplanes;

(118) "solo flight time" means flight time during which a pilot is the sole occupant of an aircraft;

(119) "special certificate of airworthiness" means a document issued by the Director General to an aircraft which has a restricted type certificate or complies with airworthiness specifications as specified by the Director General for ensuring adequate safety;

(120) "special flight permit" means a document issued by the Director General to an aircraft which does not meet the conditions of airworthiness as referred to in rule 51 but is in a condition for safe operation subject to limitations as may be specified therein;

(121) "specified by the Director General" means the directions issued by the Director General under the provisions of rule 202;

(122) "State aircraft" includes aircraft used in Military, Customs, Police services, and posts;

(123) “State of design” means the state having jurisdiction over the organisation responsible for the type design;

(124) "subsequent aircraft" means an aircraft which is constructed in accordance with the design and specification of a type of aircraft, which has been approved or accepted by the Central Government for the issuance of a certificate of airworthiness;

(125) "take-off" includes all the successive positions of an aerodyne from the moment it moves from rest until the moment of starting normal flight;

(126) “tariff” means any fare, rate or charge collected by an air transport undertaking for the carriage of passengers, baggage, cargo, including the commission payable to the agents, and the conditions governing such fare, rate or charge.

Explanation. — For the purposes of this clause, it is hereby clarified that the ‘cargo’ does not include mail;

(127) “temporary aerodrome” means an aerodrome intended to be used for a period not exceeding six months;

(128) "type certificate" means a document issued, validated or accepted by the Director General to signify that the design of a type of aircraft or engine or propeller, complies with the applicable type design standard as specified by the Director General;

(129) "type of aircraft" means all aircraft of the same basic design including all modifications thereto except those modifications which result in a change in handling or flight characteristics;

(130) "type rating" means a rating for each type of aircraft;

(131) “vertical take-off and landing-capable aircraft” means a power driven, heavier than-air aircraft, other than aeroplane or rotorcraft, capable of performing vertical take-off and landing by means of lift and thrust units used to provide lift during take-off and landing;

(132) the words and expressions used herein but not defined, and defined in the Act shall have the same meaning as assigned to them in the said Act.

CHAPTER II
GENERAL

3. Use and operation of aircraft. — Save as otherwise provided in these rules, no person shall use or operate or assist in using or operating an aircraft.

4. Registration, nationality and registration marks. — Subject to the provisions of rule 42, no person shall fly or assist in flying, any aircraft unless —

(a) it has been registered, and

(b) it bears its nationality and registration marks and the name and residence of the owner affixed or painted thereon in accordance with the provisions of rule 47 or, in the case of aircraft registered elsewhere than in India, in accordance with the regulations of the State in which it is registered:

Provided that the prohibition imposed by this rule shall not apply to aircraft flown in accordance with the special permission in writing of the Central Government and subject to any conditions and limitations which may be specified in such permission.

5. Documents to be carried on aircraft. — *(1)* No person shall operate or fly an aircraft unless valid documents, as required by the law of the country in which the aircraft is registered, are carried on board and are kept in such form and manner as laid down by that country.

(2) An aircraft registered in India shall carry on board valid documents as specified by the Director General:

Provided that where a licence or other document has been submitted to the competent authority under these rules for renewal or other action, that fact shall be deemed a valid excuse for its not being carried on board the aircraft.

6. Carriage of arms, ammunition, explosives, military stores, etc. – *(1)* No person shall carry or cause or permit to be carried in any aircraft to, from, within or over India, any arms, ammunitions, munitions of war, implements of war, explosives and military stores, except with the written permission of the Director General and subject to the terms and conditions of such permission:

Provided that the Director General may, by general or special order in writing, permit any person or class of persons to carry such articles subject to the terms and conditions as specified in such order.

(2) An application for permission under sub-rule *(1)* shall be made to the Director General in the form and contains such particulars or documents as specified by him.

(3) (i) The following fee shall be paid electronically in the manner specified by the Director General, for permission under sub-rule *(1)*, namely: —

(a) for individual: 500 rupees;

(b) for organisation: 1000 rupees;

(ii) no fee shall be payable by the person or the class of persons permitted under proviso of sub-rule *(1).*

(4) Where the carriage of any goods is permitted under sub-rule *(1),* it shall be the duty of the operator, the pilot-in-command, the consignor and every person concerned with the booking, handling or carriage of such goods, to take all precautions to avoid danger to the aircraft or to the persons on board or to any other person or property and in particular, to ensure that —

(a) the goods are so packed, protected and secured as to avoid any possibility of them being a source of danger;

(b) the goods are so carried as not be accessible to the passengers on board the aircraft; and

(c) the nature of the goods is clearly and conspicuously marked on the package containing them.

(5) The consignor of such goods shall give the operator a written notice specifying the nature, weight and quantity of the goods and the name and full address of the consignee; and the operator shall inform the pilot-in-command of the aircraft of all such particulars before the goods are placed on board the aircraft.

(6) Where any officer, authorised in this behalf by the Central Government, has reasons to believe that the provisions of this rule are, or are about to be, contravened, he may cause such goods to be placed under his custody pending detailed examination of the nature of the goods or pending a decision regarding the action, if any, to be taken in the matter.

7. Aerodromes. — *(1)* No pilot or operator of any aircraft carrying passengers for hire or reward shall use any place for a series of landings and departures, and no pilot or operator of any aircraft employed on a scheduled air transport service shall use any place as a regular place of landing or departure other than an aerodrome licensed or approved for the purpose in accordance with the provisions of Chapter V.

(2) No person being the proprietor of an aerodrome other than an aerodrome mentioned in sub-rule *(1)* shall permit the aerodrome to be used in contravention of these rules.

(3) No person other than the occupant of an aircraft manoeuvring in accordance with these rules may enter upon the landing area of an approved or licensed aerodrome without the consent of the operator of the aerodrome except in the case of imminent threat to life of the occupants of the aircraft or of the safety of the aircraft**.**

8. Prohibited areas. — *(1)* No person shall fly or assist in flying an aircraft over any of the areas specified in Aeronautical Information Publication as restricted or prohibited areas save in accordance with the conditions specified in that Publication.

(2) Every pilot, who, when flying an aircraft, finds himself above a prohibited area in contravention of sub-rule *(1),* shall, as soon as he is aware of the fact, give the signal of distress specified in the Rules of the Air referred to in rule 12, and shall land the aircraft as soon as possible outside the prohibited area at one of the nearest aerodromes in India:

Provided that he shall not, unless compelled by stress of weather or other unavoidable cause, fly further into the prohibited area nor commence to descend while still above the prohibited area.

(3) When advised so by an air traffic service or when the signals prescribed in the Rules of the Air referred to in rule 12 to warn an aircraft that it is flying in the vicinity of restricted, prohibited or danger area are given, the pilot of the aircraft shall immediately change his course and fly away from the prohibited area.

(4) When the light signals from aerodrome control tower, as prescribed in the Rules of the Air referred in rule 12 are given, the pilot shall immediately give the signal referred to in sub-rule *(2)* and land the aircraft in accordance with that sub-rule.

9. Photography or videography at aerodromes.— *(1)* No person shall take, or cause or permit to be taken, at an aerodrome any photography or videography except with the permission in writing from the aerodrome operator of such aerodrome:

Provided that in case foreign nationals are engaged in the activity of photography or videography then such permission shall be granted only when such nationals are security cleared from concerned agencies:

Provided further that the Director General from time to time, may, by an order, direct that these restrictions shall not apply to photography or videography at any aerodrome or within such limits of any aerodrome as may be specified in the order.

(2) The aerodrome operator, while granting such permission under sub-rule *(1)* and during such photography or videography, shall ensure that such activity in any manner, either directly or indirectly does not —

(a) endanger safety or security of an aircraft or aircraft operations;
(b) cause interference with the normal functioning of any facility established for the safe and secure operations of aircraft or convenience and free movement of passenger and cargo;
(c) obstruct or distract the functioning of any person entrusted with any responsibility towards ensuring safe and secure operation of aircraft or airport.

(3) The Aerodrome operator shall maintain the complete record of permission issued under sub-rule *(1)* for a period of three years and on demand by the Director General shall made available such record before him for inspection.

10. Photography or videography from aircraft in flight. — No person shall take, or cause or permit to be taken from an aircraft in flight any photography or videography including aerial survey except in accordance with, and subject to the terms and conditions as specified by the Director General.

11. Conditions to be complied with by an aircraft in flight. – No aircraft shall be flown unless the following conditions are complied with, namely:–

(a) the aircraft possesses a valid certificate of airworthiness or special certificate of airworthiness issued by the Director General;

(b) the aircraft shall be certified as airworthy and shall be maintained in accordance with the provisions of Chapter III or in the case of an aircraft not registered in India, in accordance with the regulations of the State in which the aircraft is registered;

(c) all the terms or conditions on which the certificate of airworthiness or special certificate of airworthiness was granted shall be duly complied with;

(d) the aircraft shall carry on board its certificate of airworthiness or special certificate of airworthiness, any other certificate prescribed by Chapter III and any other document as specified by the Director General, or by the regulations of the State in which the aircraft is registered, which it is required to carry on board:

Provided that an aircraft not in compliance with the aforesaid conditions may be flown under a special flight permit issued by the Director General under rule 57 subject to such conditions as may be specified in such permit.

12. Rules of the Air. — Every person shall comply with the Rules of the Air issued by the Director General in accordance with Annex 2 to the Convention as may be applicable to that person.

13. Prevention of flights in contravention of rules. — *(1)* (a) An authority authorised under section 17 of the Act to detain aircraft, may do so, by the issue of a written direction to the pilot or other persons for the time being in-charge of the aircraft to be detained, or by taking or causing to be taken such other steps as may, in the opinion of such authority, be necessary to make the detention effective, including the use of force, denial of access by any person to the aircraft, removal of parts and components of the aircraft, defuelling of the aircraft or otherwise interfering with the aircraft.

(b) If an aircraft detained by a person so authorised is housed or kept at a Government aerodrome, the housing or picketing charges normally applicable shall be payable in respect of the whole period during which it is detained.

(2) Officers of the Central Government or a State Government, employed at or in the neighborhood of any airport, including the officers of Police, Naval, Army, Air Force or Customs Department and such other officers of the Central Government or the State Government, as may be specified by the Central Government by general or special order issued in this behalf shall, on being required to do so by the authority authorised

under section 17 of the Act to detain an aircraft, assist such authority in detaining the aircraft and taking such steps as may, in the opinion of that authority, be necessary to make the detention effective.

(3) Any person acting in contravention of any direction given under this rule shall, without prejudice to any other penalty he may incur, be deemed to have acted in contravention of these rules.

14. Certain rules not applicable to Gliders and Kites.— The provisions of rule 5 shall not apply to gliders, and provisions of rules 4, 5, 8, 11, 15, 16, 17, 18, 20, 21, 22, 23, 25, 26, 72, 112, 113, 119, 174, 175, 176, 177, 206 and rule 212 shall not apply to kites.

15. Dangerous flying. ─ No person shall fly any aircraft in such circumstances as, by reason of low altitude or proximity to persons or dwellings or for other reasons, to cause unnecessary danger to any person or property.

16. General safety. ─ No person shall act in any manner, either directly or indirectly, so as to **—**

(a) endanger safety and security of an aircraft or aircraft operation;

(b) cause interference with the normal functioning of any facility established for the safe and secure operation of aircraft; or

(c) obstruct or distract the functioning of any person entrusted with any responsibility towards ensuring safe and secure operation of aircraft.

17. Aircraft in distress. ─ *(1)* The Director General may issue requirements to be followed by concerned persons for providing assistance to aircraft in distress in accordance with the provisions of Annex 12 to the Convention.

(2) Every person shall comply with the requirements issued by the Director General under sub-rule *(1).*

18. Assault and other acts of interference against a crew member. ─ No person shall, on board an aircraft ─

(a) assault, intimidate or threaten, whether physically or verbally, a crew member which may interfere with the performance of the duties of the crew member or lessens the ability of the crew member to perform those duties;

(b) refuse to follow a lawful instruction given by the Pilot-in-Command, or on behalf of the Pilot-in-Command by a crew member, for the purpose of ensuring the safety of the aircraft or of any person or property on board or for the purpose of maintaining good order and discipline on board.

19. Assault and other acts endangering safety or jeopardizing good order and discipline. ─ (1) No person shall, on board an aircraft ─

(a) assault, intimidate or threaten, whether physically or verbally, any person;

(b) intentionally cause damage to or destroy any of property;

(c) consume alcoholic beverages or drugs,

which is likely to endanger the safety of the aircraft or of any person or jeopardizes the good order and discipline on board the aircraft.

(2) For the purposes of rules 18 and 19, the jurisdiction of India shall, in addition to the applicability provided in rule 1 of these rules, also extend to any offence if the act constituting the offence took place on board any aircraft in flight outside India:

Provided that ─

(a) the next landing of the aircraft is in India; and

(b) the Pilot-in-Command has delivered the suspected offender to the competent authorities of India, with the request that the authorities prosecute the suspected offender and with the affirmation that no similar request has been or shall be made by the Pilot-in-Command or the operator to any other State.

20. Carriage of persons suffering from mental disorders or epilepsy in aircraft. ─ No person shall knowingly carry or permit to be carried, or connive at the carriage of, a person suffering from any mental disorder or epilepsy in any aircraft:

Provided that this prohibition shall not apply if the person to be carried is certified by a registered medical practitioner to be fit to travel by air without being a risk to other passengers or to the aircraft, and in addition, ─

(a) has not taken or used any alcoholic drink or preparation within twelve hours of the commencement of the flight;

(b) is kept under proper sedative, if in a state of excitement, during the flight and stops en- route; and

(c) is accompanied by an attendant, and in case he has been in a state of excitement requiring sedation within the two weeks preceding the date of commencement of the flight, he shall be accompanied by a registered medical practitioner and adequate escort who shall individually and collectively be responsible for ensuring that no alcoholic drink or preparation is taken by the person in their charge and that such person is kept suitably sedated during the flight and stops en- route.

21. Carriage of animals, birds and reptiles in aircraft. — No animal, bird or reptile shall be taken aboard or carried on any aircraft to, from and within India, except under and in accordance with a general or special permit in writing issued by the Director General in this behalf, and subject to such conditions, if any, as may be specified therein.

22. Fuelling of aircraft. — (1) No person shall fill or replenish the fuel tanks of an aircraft from vehicles or vessels containing petroleum in bulk or from fuel hydrant installations except from vehicles or installations of a type approved by the Chief Inspector of Explosives or from barges licensed under the provisions of the Petroleum Rules, 2002.

(2) The Director General may specify standards and conditions in respect of fuelling operations, including filling or draining of fuel tanks.

23. Housing of aircraft. — *(1)* No aircraft containing dangerous petroleum in bulk in any of its tanks may be housed in a hangar unless such hangar is constructed of uninflammable material and is effectively and safely ventilated to the open air.

(2) Every such hangar shall be in charge of a competent person who shall be responsible for taking all proper precautions against fire and shall prevent unauthorised persons from having access to the building.

24. Dropping of articles and descent by parachutes. — *(1)* No person shall drop or project or cause or permit to be dropped or projected from an aircraft in motion anything except ballast in the form of fine sand or water:

Provided that nothing in this rule shall be construed as preventing-

(a) in an emergency, the dropping of liquid fuel;

(b) in an emergency, the dropping of cargo over areas where hazard to persons or property outside the aircraft is not thereby created;

(c) the dropping of message bags, smoke producing or other apparatus or materials dropped for the purpose of navigating an aircraft or communicating messages from an aircraft subject to the observance of such precautions as to the nature of the articles dropped and the place of dropping as will avoid risk of injuring persons or damaging property on the ground or water;

(d) the dropping of separate sheets of paper containing printed matter or separate petals of flowers in any place if-

(i) the prior written permission of the District Magistrate or the Commissioner of Police is obtained in each case;

(ii) the aircraft is suitable for dropping these articles;

(iii) the minimum safe heights specified in these rules are observed; and

(iv) necessary precautions are taken to avoid injury or damage to persons or property.

(e) the dropping of ropes used for towing aircraft.

(2) No person shall, except in an emergency, descend by means of a parachute from an aircraft and no person shall drop or cause or permit to be dropped from an aircraft in flight any article, whether attached to a parachute or not, unless the descent is made or the article is dropped in accordance with general or special order issued by the Director General in this behalf and subject to such conditions, if any, as may be specified therein.

(3) No person shall project or cause or permit to be projected from an aircraft in flight any article except in accordance with general or special order issued by the Director General in this behalf and subject to such conditions, if any, as may be specified therein.

25. Acts likely to imperil the safety of aircraft. — No person shall interfere with the pilot or with a member of the operating crew of an aircraft, or tamper with the aircraft or its equipment or conduct himself in a disorderly manner in an aircraft or commit any act likely to imperil the safety of an aircraft or its passengers or crew.

26. Prohibition of operating civil aircraft causing sonic boom. — No person shall operate a civil aircraft at a true flight mach number greater than one over the territory of India or over the high seas in a manner which may cause or is likely to cause sonic boom over the territory of India.

Explanation. — For the purpose of this rule, "the territory of India" shall include the territorial waters of India.

CHAPTER III

AIRCRAFT

A. Design and Manufacture of Aeronautical Product

27. Issue of type certificate or restricted type certificate for an aeronautical product.— *(1)* An aeronautical product shall have a type certificate issued by the Director General where India is a State of design.

(2) The Director General may issue a type certificate for an aeronautical product when —

(a) an application is submitted in the form and contains such particulars or documents or evidences as specified by the Director General along with the fee provided under rule 68; and

(b) the aeronautical product meets the airworthiness requirements as specified by the Director General.

(3) The Director General may issue a restricted type certificate for an aeronautical product imposing necessary limitations on its operations if he is satisfied that the design of such product does not fully comply with the applicable design standard as specified by the Director General but is in a condition for safe operation.

28. Validation of type certificate or restricted type certificate or supplemental type certificate for an aeronautical product.— The Director General may validate a type certificate or a restricted type certificate or supplemental type certificate in respect of an aeronautical product issued by a foreign country when ─

(a) an application is submitted in the form and contains such particulars or documents or evidences as specified by the Director General along with the fee provided under rule 68; and

(b) the aeronautical product meets the airworthiness requirements as specified by the Director General.

29. Acceptance of type certificate or restricted type certificate issued by a contracting State.— The Director General may accept the type certificate or restricted type certificate of an aeronautical product issued by a contracting State when ─

(a) an application is submitted in the form and contains such particulars or documents or evidences as specified by the Director General along with the fee provided under rule 68; and

(b) the aeronautical product meets the airworthiness requirements as specified by the Director General.

30. Issue of supplemental type certificate for an aeronautical product.─ The Director General may issue a supplemental type certificate in respect of any aeronautical product for which a type certificate or a restricted type certificate has been issued or validated or accepted as provided in rules 27, 28 and 29, when ─

(a) an application for modification in the aeronautical product is submitted in the form and contains such particulars or documents or evidences as specified by the Director General along with the fee provided under rule 68; and

(b) such modification to the aeronautical product meets the airworthiness requirements as specified by the Director General.

31. Revision in type certificate or restricted type certificate or supplemental type certificate.─ The Director General may issue revision to the type certificate or the

restricted type certificate or the supplemental type certificate, as the case may be, on being satisfied that the aeronautical product meets the airworthiness requirements as specified by the Director General.

32. Cancellation, suspension of or endorsement on type certificate or restricted type certificate.— If at any time the Director General is satisfied that there is a reasonable doubt to indicate that the safety of the aeronautical product is imperilled because of a defect, he may cancel, suspend or endorse the type certificate or restricted type certificate issued or validated for the aeronautical product having defect, or may require the incorporation of any modification as a condition for the type certificate or restricted type certificate remaining in force, as the case may be.

33. Acceptance of supplemental type certificate issued by a contracting State.— The Director General may accept a supplemental type certificate of an aeronautical product issued by a contracting State when —

(a) an application is submitted in the form and contains such particulars or documents or evidences as specified by the Director General along with the fee provided under rule 68; and

(b) the aeronautical product meets the airworthiness requirements as specified by the Director General.

34. Acceptance of design for an aircraft. — Notwithstanding anything contained in rules 27 to 33, the Director General may accept the design of an aircraft after evaluation against the requirements as specified by the Director General and on being satisfied that it is in a condition for safe operation.

35. Airworthiness directives. — *(1)* The Director General may issue directions in the form of airworthiness directives in respect of an aeronautical product for which a type certificate or a restricted type certificate has been issued, accepted or validated by the Director General when —

(a) an unsafe condition exists in the product; and

(b) the condition is likely to exist or develop in other products of the same type design.

(2) The airworthiness directive under sub-rule *(1)* shall be issued after placing the draft on the website of the Directorate General of Civil Aviation for a period of thirty days for inviting objections and suggestions from all persons likely to be affected thereby:

Provided that the Director General may, in the public interest and by order in writing, dispense with the requirement of inviting such objections and suggestions or reduce the period for submitting such objections and suggestions.

36. Special condition. ─ *(1)* The Director General may issue directions in the form of special condition when the Director General finds that the airworthiness requirements for an aeronautical product design do not contain adequate or appropriate safety standards because of a novel or unusual design feature.

(2) The special condition under sub-rule *(1)* shall be issued after placing the draft on the website of the Directorate General of Civil Aviation for a period of thirty days for inviting objections and suggestions from all persons likely to be affected thereby:

Provided that the Director General may, in the public interest and by order in writing, dispense with the requirement of inviting such objections and suggestions or reduce the period for submitting such objections and suggestions.

37. Indian Technical Standard Order.─ *(1)* The aircraft components not covered under rules 27 to 33 shall be in accordance with Indian Technical Standard Order as specified by the Director General.

(2) The Indian Technical Standard Order under sub-rule *(1)* shall be issued after placing the draft on the website of the Directorate General of Civil Aviation for a period of thirty days for inviting objections and suggestions from all persons likely to be affected thereby:

Provided that the Director General may, in the public interest and by order in writing, dispense with the requirement of inviting such objections and suggestions or reduce the period for submitting such objections and suggestions.

38. Authorisation for design and manufacture of aircraft component.─ The Director General may issue authorisation for design and manufacture of aircraft components when ─

(a) an application is submitted in the form and contains such particulars or documents or evidences as specified by the Director General along with the fee provided under rule 68; and

(b) the aircraft component meets the airworthiness requirements as specified by the Director-General.

B. Airworthiness

39. Certificate of registration.— *(1)* The authority empowered to register aircraft and to grant certificate of registration in India shall be the Central Government and the certificate of registration shall include the following particulars, namely: —

(a) nationality;

(b) registration marks referred to under these rules;

(c) manufacturer and manufacturer's designation of aircraft;

(d) aircraft serial number;

(e) year of manufacture;

(f) name and address of the certificate holder;

(*g)* name and contact information of owner, if different from certificate holder, the date of registration and the period of validity of such registration:

Provided that in the case of a leased aircraft, the certificate of registration shall also include the validity of the lease and the names, nationalities and addresses of the lessor and the lessee.

(2) The Central Government may, by general or special order, specify the period of validity of registration of the aircraft.

(3) The Central Government may, on receipt of application along with the fee as provided under rule 68, reserve a registration mark for a period of one year, which may be further extended for one year at a time.

(4) An aircraft may be registered in India in either of the following categories, namely: —

(a) Category A ─ where the aircraft is partly or wholly owned by ─

(i) citizen of India; or

(ii) a company or an entity registered and having its principal place of business within India; or

(*iii)* a company or an entity registered with International Financial Services Centre for undertaking leasing of aircraft and carrying on business in India; or

(iv) the Central Government or any State Government or any company or entity owned or controlled by either of the said Governments; or

(v) a company or an entity registered elsewhere than in India:

Provided that such company or entity has given the said aircraft on lease to any person mentioned in sub-clause *(i)* to *(iv); or*

(b) Category B ─ where the aircraft is partly or wholly owned by ─

(i) person resident in or carrying on business in India, who is not citizen of India, or

(ii) a company or entity registered elsewhere than in India and carrying on business in India.

(5) No aircraft in respect of which the conditions required in sub-rule *(4)* are not satisfied, or which is already validly registered in another country, shall be registered in India.

(6) In a case where the usual station of an aircraft and its ordinary area of operation is not situated in India, the Central Government may decline to accept an application for registration of the aircraft in India, or, as the case may be, to permit the aircraft to remain registered in India, if, in its opinion, the aircraft could more suitably be registered in some other country.

(7) In any particular case, the Central Government may decline to register an aircraft in India, if in the circumstances of the case, it appears that the registration of the aircraft is inexpedient to the public interest.

40. Application for certificate of registration.─ *(1)* Every application for a certificate of registration shall be in the form and shall contain such particulars relating to the

aircraft and its ownership as specified by the Director General along with fee provided under rule 68.

(2) In the case of an aircraft imported into India, a Bill of Entry from Customs stating that the duty leviable in respect of it has been paid and stating the type and manufacturer's serial number of the aircraft, and if the aircraft has been registered elsewhere, its registration marks.

41. Temporary Certificate of Registration.— *(1)* When an application is made for the registration of an aircraft before its import into India, for the purpose of the import of the aircraft by air, a temporary certificate of registration may, subject to the conditions of sub-rule *(5)* of rule 39, be granted by the Central Government to the owner of the aircraft complying with the provisions of sub-rule *(1)* of rule 40.

(2) The temporary certificate shall be valid only until the first landing of the aircraft at a Customs aerodrome in India, when the certificate shall be delivered by the pilot or other person-in-charge to the Director General.

(3) On production by or on behalf of the owner of the aircraft of the certificate referred to in sub-rule *(2)* of rule 40, the certificate of registration may be granted by the Central Government.

42. Change in owner or lessor.— *(1)* In the event of any change in the owner or lessor of a registered aircraft —

(a) the registered owner or lessor of the aircraft, as the case may be, shall forthwith notify to the Director General of such change;

(b) any person, company or entity who becomes the owner or lessor of an aircraft registered in India, shall forthwith inform the Director General in writing of the fact of his ownership or lease of the aircraft, as the case may be, and may make an application for a certificate of registration;

(2) An application under clause *(b)* of sub-rule *(1),* shall be made in such form and shall contain such particulars as specified by the Director General along with the fee provided under rule 68.

(3) Until an application referred to in sub-rule *(2),* is made and the certificate of registration is granted, it shall not be lawful for any person to fly or assist in flying such

aircraft except in accordance with and subject to a permission in writing of the Director General.

(4) The registration and the certificate thereof shall remain valid until such registration and certificate have been cancelled by the Director General.

43. Change in the certificate of registration.— In the event of any change in the particulars of certificate of registration of an aircraft registered in India other than provided under rule 42, an application for such changes shall be made by the certificate holder to the Director General in the form and manner as specified by him along with fee provided under rule 68.

44. Cancellation or deregistration of the certificate of registration.— *(1)* The registration of an aircraft registered in India may be cancelled at any time by the Central Government, if it is satisfied that—

(i) such registration is not in conformity with the provisions of sub-rule *(4)* of rule 39; or

(ii) the registration has been obtained by furnishing false information; or

(iii) the special certificate of airworthiness or the airworthiness review certificate in respect of the aircraft has expired for a period of five years or more; or

(iv) the aircraft has been destroyed or permanently withdrawn from use; or

(v) it is inexpedient in the public interest that the aircraft should remain registered in India.

(2) The certificate of registration of an aircraft registered in India, to which the provisions of the Cape Town Convention and Cape Town Protocol apply, shall be cancelled by the Central Government, within a period of five working days, without seeking consent or any document from the operator of the aircraft or any other person, if an application is received from the IDERA Holder along with —

(i) the original or notarised copy of the IDERA recorded with the Director General; and

(ii) a priority search report from the International Registry regarding all registered interests in the aircraft ranking in priority along with a certificate from the IDERA Holder that all registered interests ranking in priority to that of the IDERA Holder in the priority search report have been discharged or that the

holders of such interests have consented to the deregistration and export of the aircraft:

Provided that such deregistration of the aircraft shall not affect the right of the Central Government or of any entity thereof, or any inter-governmental organisation in which India is a member, or other private provider of public services in India, to arrest or detain or attach or sell an aircraft object under its laws for payment of amounts owed to the Government of India, any such entity, organisation or provider directly relating to the services provided by such aircraft in respect of that object.

Explanation.— For the purpose of this sub-rule, "International Registry" means the Registry established under Article 16 of the Cape Town Convention.

(3) An aircraft registered in India may be deregistered by the Central Government if it is satisfied that the aircraft could more suitably be registered in some other country or the lease in respect of the aircraft, registered in pursuance of sub-clause *(v)* of clause *(a)* of sub-rule *(4)* of rule 39 has expired or has been terminated in accordance with terms of lease.

(4) Every application for de-registration of an aircraft under sub-rule *(2)* or *(3)* shall be in the form and manner as specified by the Director General along with fee provided under rule 68.

(5) The certificate of de-registration shall be in the form and manner as specified by the Director General.

45. Export of aircraft.— The Central Government shall, consequent upon de-registration of an aircraft under sub-rule *(2)* of rule 44, if an application is made by the IDERA Holder for export of the same aircraft, take action to facilitate the export and physical transfer of the aircraft, along with spare engine, if any, subject to —

(i) the payment of outstanding dues in respect of the aircraft; and

(ii) the compliance of the rules and regulations relating to safety of the aircraft operation.

46. Register of aircraft.— A register of aircraft registered in India shall be maintained by the Director General and shall include the particulars as provided for in respect of certificate of registration in rule 39. Such a register shall be open to inspection by

members of the public at such times and subject to such conditions as may be specified by the Director General.

47. Nationality and registration marks to be affixed.— The following provisions of this rule shall have effect with respect to the marks to be borne by aircraft registered in India, namely : —

(1) *(a)* the nationality mark of the aircraft shall be in the capital letters VT in Roman character and the registration mark shall be a group of three capital letters in Roman character assigned by the Director General.

(b) the letters shall be without ornamentation and a hyphen shall be placed between the nationality mark and the registration mark.

(2) The nationality and registration marks —

(a) shall be painted on the aircraft or shall be fixed thereto by any other means ensuring a similar degree of permanency in the form and manner as specified by the Director General;

(b) shall be inscribed together with full name and address of the registered owner of the aircraft on the name plate of the owner in the form and manner specified by the Director General; and

(c) shall always be kept clean and visible.

48. Use of State marks.— *(1)* An aircraft shall not bear on any part of its exterior surface any advertisement or any sign or lettering except those under these rules and as required or permitted by the Director General.

(2) The name of an aircraft and the name and emblems of the owner of the aircraft may be displayed on the aircraft, if the location, size, shape and colour of the lettering and signs do not interfere with easy recognition of, and are not capable of confusion with the nationality and registration marks of the aircraft.

(3) An aircraft other than a State aircraft shall not bear any mark or sign prescribed for use by a State aircraft.

(4) National flags or colours may be displayed on the aircraft in such a manner that they are distinct and are not likely to create confusion with the markings used by military aircraft.

Explanation. ─ For the purpose of this rule it is hereby clarified that, national flag when displayed on the aircraft shall adhere to the Flag Code of India.

49. Issue of certificate of airworthiness or special certificate of airworthiness and airworthiness review certificate.─ *(1)* The owner or operator of an aircraft may apply to the Director General for the issue of a certificate of airworthiness or a special certificate of airworthiness in respect of the aircraft or for the validation of a certificate of airworthiness issued elsewhere in respect of the aircraft.

(2) The Director General may issue a certificate of airworthiness or special certificate of airworthiness in respect of an aircraft when ─

(a) the applicant furnishes such documents or other evidence relating to the airworthiness of the aircraft as may be specified by the Director General; and

(b) the Director General is satisfied that it is airworthy or in a condition for safe operation:

Provided that the Director General may impose such conditions on the special certificate of airworthiness issued as may be necessary for safe operation of the aircraft.

(3) The Director General may validate a certificate of airworthiness in respect of any aircraft that may be imported, if —

(a) the airworthiness authority of the country in which the aircraft is manufactured, has issued a certificate of airworthiness or such equivalent document;

(b) the airworthiness requirements as specified by the Director General are complied with; and

(c) the applicant furnishes necessary documents and technical data relating to the aircraft as may be specified and as the Director General may require.

(4) (a) The certificate of airworthiness or special certificate of airworthiness shall be issued or rendered valid for one or more of the categories as specified by the Director General;

(b) The operation of the aircraft shall be restricted in those categories as specified in the certificate of airworthiness or special certificate of airworthiness subject to the conditions stated therein.

(5) A certificate of airworthiness issued under this rule shall be invalid unless the Director General or an organisation approved under these rules, carries out a review of compliance with applicable airworthiness standards and issues an airworthiness review certificate valid for such periods as may be specified therein which may be extended by the Director General or an organisation approved under these rules, in accordance with such procedures as may be specified by the Director General.

(6) A special certificate of airworthiness shall be valid for such periods as may be specified in the certificate and maybe renewed from time to time by the Director General.

(7) The aircraft shall be inspected and tested by the Director General or by a person authorised in his behalf, as may be specified.

(8) The owner or operator of the aircraft shall provide all necessary facilities for the purpose of carrying out the inspection and tests as required under sub-rule *(7)* and bear all expenses as specified by the Director General.

50. Issue of noise certificate of aircraft.— *(1)* The Director General may issue a noise certificate in respect of an aircraft registered in India when an application is submitted by the owner or operator in the form and contains such particulars or documents or evidences as specified by the Director General along with the fee provided under rule 68.

(2) The noise certificate shall remain valid until such certificate has been cancelled by the Director General.

51. Conditions necessary for the certificate of airworthiness or special certificate of airworthiness and inspection, overhaul of aircraft.— *(1)* The Director General may specify conditions and standards in respect of certificate of airworthiness or special certificate of airworthiness of a particular type or class of aircraft to ensure safety of the aircraft and of persons on board the aircraft, having regard to the limitation of the aircraft.

(2) If, at any time, the Director General considers that any modification, repair, replacement, inspection or overhaul of any aircraft or type of aircraft or of any aircraft component or item of equipment of that aircraft or type of aircraft is necessary in the interest of safety, he may require the modification, repair, replacement, inspection or overhaul to be carried out as a condition of the certificate of airworthiness or special certificate of airworthiness remaining in force.

52. Modification and repairs.— *(1)* A person shall not carry out any modification or repair affecting safety of any aircraft in respect of which there is a valid certificate of airworthiness or a special certificate of airworthiness unless he has been required to do so in pursuance of these rules or unless he has obtained the prior approval of the Director General.

(2) (a) The modifications issued by the manufacturer of an aeronautical product or aircraft component which has been issued a type certificate by the Director General or elsewhere, may be deemed as approved modifications, unless otherwise specified by the Director General;

(b) The repair schemes issued by the manufacturer of an aeronautical product or aircraft component issued with a type certificate by the Director General or elsewhere, and other repairs carried out in accordance with standard aeronautical engineering practice may be deemed as approved unless otherwise specified by the Director General.

(3) The Director General may give approval for repair or modification other than those referred to in sub-rule *(2),* of an aeronautical product or aircraft component, where the owner or operator furnishes such evidence relating to the intended modification or repair and its effect on the airworthiness of aircraft as specified by the Director General.

(4) The modifications which have been approved by the Director General for one aeronautical product or aircraft component may be incorporated in others of the same type provided it is within the terms of approval.

(5) (a) While an aircraft has been modified or repaired after a major damage or major defect, the aircraft shall not be flown until a licensed engineer or an authorised person has certified in the manner specified by the Director General that the aircraft is in a safe condition to be flown for purpose of experiment or test, as the case may be;

(b) While an aircraft component has to be modified or repaired, it shall not be released until it is certified by a licensed engineer or an authorised person, as may be specified by the Director General.

(6) The form and manner of issuance of the certificate referred to in the sub-rules and preservation thereof shall be such as may be specified by the Director General.

(7) (a) A certificate in pursuance of the preceding sub-rules shall not be issued unless the materials, parts, method comply with such designs, drawings, specifications or

instructions as may be issued by the manufacturers or as may be specified or approved by the Director General;

(b) The method and the workmanship shall be in accordance with standard aeronautical practice as approved by the Director General.

53. Use of materials, processes, parts and periodical overhaul of aircraft.— *(1) (a)* Every aircraft required under these rules to be provided with a certificate of airworthiness or a special certificate of airworthiness and aircraft components on such aircraft shall be periodically inspected, overhauled and certified on completion of the prescribed flight time or calendar time or on the basis of any other stipulated condition in accordance with the approved maintenance schedules or approved maintenance system;

(b) The inspection and certification shall be effected by licensed engineers or authorised persons as may be specified by the Director General.

(2) (a) A certificate to be issued in pursuance of sub-rule *(1)* shall not be issued unless the materials, processes, parts, method comply with such designs, drawings, specifications or instructions as may be issued by the manufacturers or as may be specified or approved by the Director General;

(b) The method and workmanship shall be in accordance with standard aeronautical practice or as may be approved by the Director General.

(3) Notwithstanding the foregoing provisions, the Director General may grant exemption by general or special order in writing to any person or class of persons from the operation of the foregoing sub-rules either wholly or partly, subject to such conditions, if any, as may be specified in such order.

54. Persons authorised to certify.— The certification required under Chapter III and Chapter VII of these rules shall be signed by licensed engineers or authorised persons qualified under the terms and conditions of the licence or authorisation, as the case may be, to carry out or inspect the manufacture, process, modification, repair, replacement, overhaul or maintenance, to which the certificate relates or by an approved person or by a person or persons holding written authorisation for certification from an approved organisation in accordance with the criterion specified by the Director General and the certificate is signed as per the authorisation.

55. Indian aircraft operating outside India.— Where an aircraft registered in India is operating in a country outside India, the aircraft, or any of its components or items of equipment shall not be modified, repaired, replaced, inspected or overhauled except by or under the supervision of, and certified by —

(a) in the case of a contracting State, a person who is approved for the purpose by the appropriate authority of contracting State in accordance with the minimum requirements adopted in pursuance of the Convention and recognised by the Director General as sufficient for the purpose;

(b) in the case of a country other than a contracting State, a person who possesses qualifications which are recognised by the Director General as sufficient for the purpose.

56. Suspension or cancellation of certificate of airworthiness or special certificate of airworthiness and its continued validity.— *(1)* The certificate of airworthiness or special certificate of airworthiness of an aircraft shall be deemed to be suspended when an aircraft, —

(a) ceases or fails to conform with the requirement of these rules, in respect of operation, maintenance, modification, repair, replacement, overhaul, process or inspection applicable to that aircraft; or

(b) is modified or repaired otherwise than in accordance with the provisions of these rules; or

(c) suffers major damage; or

(d) develops a major defect which would affect the safety of the aircraft or its occupants in subsequent flights.

(2) If, at any time, the Director General is satisfied that reasonable doubt exists as to the safety of an aircraft or as to the safety of the type to which that aircraft belongs, the Director General may,-

(a) suspend or cancel the certificate of airworthiness or special certificate of airworthiness in respect of that aircraft; or

(b) impose a condition that the aircraft or an aircraft component or an item of equipment of that aircraft undergo such modification, repair, replacement, overhaul, inspection including flight tests and examination of the aircraft under the supervision of an approved person as the Director General may specify, for maintaining the validity of the certificate of airworthiness remaining in force.

(3) Subject to sub-rule *(4),* an aircraft shall not be flown during any period for which its certificate of airworthiness or special certificate of airworthiness is suspended or deemed to be suspended.

(4) Where the certificate of airworthiness or the special certificate of airworthiness of an aircraft is suspended or deemed to be suspended, the Director General may, upon an application by the owner or operator, issue a special flight permit under the provisions of rule 57.

57. Issue of special flight permit.— *(1)* The Director General may issue a special flight permit when an aircraft is not fully in compliance with the airworthiness requirements but is in a condition for safe operation subject to such conditions as are specified in the special flight permit.

(2) The owner or operator of an aircraft may apply to the Director General for the issue of a special flight permit in respect of the aircraft for any of the purposes as specified by the Director General.

(3) The Director General may issue a special flight permit in respect of an aircraft when —

(a) an applicant furnishes such documents as may be specified by the Director General; and

(b) the Director General is satisfied that the aircraft is in a condition for safe operation.

58. Instruments and equipment.— *(1)* Every aircraft shall be fitted and equipped with the instrument and equipment including radio apparatus and special equipment as may be specified by the Director General according to the use and circumstances under which the flight is to be conducted.

(2) Such instruments and equipment shall be of an approved type and installed in an approved manner and shall be maintained in a serviceable condition.

59. **Aircraft for which radio apparatus is obligatory.**— *(1) (a)* All aircraft registered in India and required to be operated in accordance with visual flight rules or instrument flight rules condition shall be provided with communication equipment which is capable of conducting two-way communication at all times with those aeronautical stations and on those frequencies as may be prescribed by the appropriate authority;

(b) The communication equipment so provided shall be of a type approved by the airworthiness authority of the country of manufacture of aircraft and acceptable to the Director General.

(2) An aircraft shall be provided with navigation equipment which will enable it to proceed —

(a) in accordance with the flight plan; and

(b) in accordance with the requirement of air traffic services, except when, if not so precluded by the appropriate authority, navigation for flights under the visual flight rules is accomplished by visual reference to landmarks at least every 110 kms (60 nautical miles).

60. Issue of Mode-S Address of aircraft.— The Director General may issue a Mode-S Address in respect of an aircraft equipped with Mode-S transponder and registered or to be registered in India when an application is submitted by the owner in the form and contains such particulars or documents or evidences as specified by the Director General along with the fee provided under rule 68.

61. Weight and balance.— (1) *(a)* Every aircraft shall be weighed and marked, and the centre of gravity shall be determined;

(b) The weight schedule and the load sheet indicating the calculated centre of gravity position relating to the required configuration shall be displayed or carried on board an aircraft subject to such conditions as may be specified by the Director General.

(2) (a) An aircraft shall not attempt to take off, fly or land at a weight in excess of the maximum permissible weight as specified in the weight schedule or as authorised by the Director General;

(b) The load of an aircraft throughout a flight including take-off and landing shall be so distributed that the centre of gravity position of the aircraft falls within the limitations specified or approved by the Director General:

Provided that the Director General may, by special order in writing and subject to such conditions as may be specified in that order, exempt any aircraft from the operation of this rule.

62. Defects and defective parts.— *(1)* A major defect in or a major damage to an aircraft registered in India shall be reported in the manner as specified by the Director General.

(2) When any part of an aircraft is revealed or suspected to be defective, the Director General may require it to be delivered to a person or organisation authorised by him in this behalf for examination.

63. Defects in a foreign aircraft.— *(1)* When an aircraft registered outside India, while in Indian territory sustains major damage or a major defect is found, the Director General, on ascertaining that fact, may prohibit the aircraft from flying.

(2) Where, in pursuance of sub-rule *(1),* the Director General prohibits an aircraft from flying, the Director General shall furnish to the appropriate authority of the country of registration of the aircraft information of the action which the Director General has taken and a report of the damage suffered or defect found.

(3) The prohibition imposed in pursuance of sub-rule (1) shall not be removed until the appropriate authority of the country of registration of the aircraft notifies to the Director General —

(a) that the damage or defect suffered or ascertained has been removed ;

(b) that the damage suffered or defect found or ascertained is not of such a nature as to prevent minimum requirements of safety adopted in pursuance of the Convention ;

(c) that in the circumstances of a particular case, the aircraft may be permitted to fly without passengers to a place at which it can be restored to an airworthy condition.

(4) In removing the prohibition imposed in pursuance of sub-rule *(1),* the Director General may impose such conditions on the operation of the aircraft as are notified to the Director General by the appropriate authority of the country of registration of the aircraft.

64. Maintenance standards and certification.— *(1) (a)* The Director General may, in respect of any aircraft, aircraft component and item of equipment, specify standards and conditions for continuing airworthiness of the aircraft and its maintenance;

(b) The Director General shall notify the maintenance requirements and approve the maintenance system keeping in view, —

(i) the continued airworthiness of the aircraft and the maintenance facilities required;

(ii) the period in terms of flight time, calendar time or any other basis, which may elapse with safety between inspections, tests or overhauls or any other maintenance work;

(iii) the content and period of preservation of the records kept in respect of maintenance;

(iv) type of operation in which the aircraft is engaged;

(v) any conditions like dust, salt-air climatic conditions or other factors and the routes flown or basis used which may have an effect upon airworthiness; and

(vi) any other relevant considerations.

(2) Any aircraft shall not be flown unless, —

(a) it has been maintained in accordance with such requirements as may be specified by the Director General;

(b) maintenance of aircraft has been carried out by or under the supervision of a person licensed or authorised under rule 85, or authorised in writing by an approved maintenance organisation in accordance with the criterion as specified by the Director General; and

(c) all maintenance carried out has been certified by licensed engineers or authorised persons within the period by means of such a 'certificate' as may be specified by the Director General.

(3) The contents, form, period of validity, preservation of the certificate shall be in such form and manner as may be specified by the Director General.

(4) No aircraft shall commence any flight, if, subsequent to the issue of a certificate in pursuance of this rule, it has suffered any damage or revealed any defect, other than items covered in the approved minimum equipment list, which would render the aircraft unsafe for flight and which would not, in accordance with the ordinary aeronautical practice, be remedied by the pilot or crew.

(5) Microlight, light sport aircraft, gyroplane, glider, balloon or an airship shall be certified by an aircraft maintenance engineer holding a licence in Category A or Category B1 or Category B3 or an authorised person subject to the requirements as specified by the Director General:

Provided that the Director General may, by general or special order and subject to such conditions as may be specified in that order, exempt any aircraft from the operation of this rule.

65. Log books and logs.— *(1)* The following log books shall be kept and maintained in respect of all aircraft registered in India, namely: —

(a) a journey log book;

(b) an aircraft log book;

(c) an engine log book for each engine installed in the aircraft;

(d) a propeller log book for every variable pitch propeller installed in the aircraft;

(e) a radio apparatus log book for aircraft fitted with radio apparatus;

(f) any other log book that may be required by the Director General.

(2) The Director General may require that a technical log or flight log be provided in respect of an aircraft and be maintained in such manner as may be specified by him.

(3) (a) log books shall be of such type and shall contain such information, entries and certification as may be specified by the Director General;

(b) Log books and logs shall be preserved until such time as may be specified by the Director General.

Explanation. — For the purpose of this rule, the expression "journey log book" includes any other form or manner of recording the requisite information and acceptable to the Director General.

C. Organisation

66. Approved organisations.— *(1) (a)* In this rule 'organisation' refers to an organisation or a person engaged in one or more of the following activities, namely:-

(i) design, manufacture, modification and repair of aircraft, engine, propeller and aircraft components including materials, forging, castings, standard parts;

(ii) manufacture, compounding, blending, testing, storage, distribution and supply of aviation fuel, lubricants, special products;

(iii) maintenance, overhaul, repair, inspection, treatment, processing of aeronautical products including aircraft components;

(iv) maintenance and management of continuing airworthiness of other-than-complex motor-powered aircraft except those covered under rule 199;

(b) In this rule 'manual' means Quality Manual, Maintenance Organisation Exposition, Combined Airworthiness Exposition, Maintenance Organisation Manual, Production Organisation Exposition, Design Organisation Manual, Safety

Management System Manual, required to be provided by an organisation under sub-rule *(4).*

(2) An organisation shall have adequate facilities including qualified and trained staff and necessary equipment for tests and inspection aids.

(3) (a) No organisation shall engage in one or more of the activities listed under clause *(a)* of sub-rule *(1)* unless an approval is granted by the Director General;

(b) The request for approval under clause *(a)* shall be made to the Director General in such form and manner as specified by him along with the fee provided under rule 68.

(4) The Director General may grant approval on being satisfied that the applicant has complied with requirements as specified by him.

(5) The approval so granted shall be subject to such terms and conditions as may be specified by the Director-General.

(6) Every organisation which is engaged in one or more of the following activities, namely:–

(i) type design of an aeronautical product under sub-clause *(i)* of clause *(a)* of sub-rule *(1);*

(ii) manufacturing of an aeronautical product under sub-clause *(ii)* of clause *(a)* of sub-rule *(1);*

(iii) maintenance of aeroplanes or helicopters under sub-clause *(iii)* of clause *(a)* of sub-rule *(1).*

shall establish and maintain a safety management system as specified by the Director General.

(7) The approval granted under sub-rule *(4),* unless suspended or cancelled, shall remain valid for a period not exceeding five years and on being satisfied, the Director General may renew the approval for a further period of five years:

Provided that an approval granted under sub-rule *(4)* for the activities mentioned under sub-clause *(iii)* of clause *(a)* of sub-rule *(1),* unless suspended or cancelled, shall remain valid for a period not exceeding ten years on complying the requirements as specified by the Director General and on being satisfied, the Director General may renew the approval for a further period of ten years.

(8) An approved organisation or a person may approach to the Director General at any time for extension of the scope of his work and the Director General, on being

satisfied that the specified requirements have been complied with, may grant approval for extension of scope as requested, or to a specific level, as deemed fit. The approval of the extension of scope, if any, granted under this sub-rule, shall be valid only up to the date of validity of the original approval.

(9) (a) An approved organisation shall provide, for the use and guidance of its personnel, manuals which shall contain details of information concerning policies, procedures, practices and quality control methods relating to activities of that organisation as may be specified by the Director General;

(b) A complete copy of the manual or such portions of the manual as the Director General may direct shall be submitted to the appropriate regional office of the Directorate General of Civil Aviation for approval;

(c) An approved organisation shall revise its manuals, from time to time, whenever necessary as a result of changes in organisation, changes in scope and changes in practices and procedures shall be subject to the prior approval of the Director General.

(10) Copies of the manual and amendments thereto shall be furnished by the approved organisation to its personnel, to the Director General and to such other person associated with the work of the organisation, as the Director General may specify.

(11) Employees of the organisation shall comply with all the instructions relating to their duties as contained in the manual.

(12) An organisation shall ensure that provision is made for imparting necessary instructions to its personnel who are authorised to certify for proper discharge of their duties and responsibilities.

(13) (a) An organisation shall maintain complete records of its activities and such other records as may be required by the Director General;

(b) The records, reports, logs, drawings, shall be made available to the Director General for inspection and check at such times as he directs;

(c) The records shall be kept for such period as may be specified by the Director General.

(14) Without prejudice to the provisions of any rules, the Director General may, after giving an opportunity of being heard to the organisation or a person, cancel, suspend or restrict any approval, or issue a warning or an admonition to the organisation or the person, where he is satisfied that ─

(a) the conditions stipulated by the Director General under this rule or under the Civil Aviation Requirements are not being complied with;

(b) the organisation or the person has performed work or granted a certificate in respect of work which has not been performed in a careful or competent manner or has performed work beyond the scope of it or his approval or failed to make proper entries and certification thereof or for any other reason considered by the Director General as sufficient to cancel, suspend or restrict an approval granted under this rule, or to issue a warning or an admonition.

67. Acceptance of foreign approved organisation.— *(1)* Notwithstanding anything contained in rule 66, the Director General may accept a foreign approved organisation for the purpose of maintenance of aircraft, engine and components in accordance with the requirements as specified by the Director General in this behalf.

(2) The acceptance granted under sub-rule *(1),* unless suspended or cancelled, shall remain valid for a period not exceeding two years, and on being satisfied, the Director General may renew it for a further period not exceeding two years at a time.

(3) Without prejudice to the provisions of these rules, the Director General may, after making such enquiry as the Director General may deem fit, and after giving an opportunity of being heard to the organisation referred to in sub-rule *(1),* cancel, suspend or restrict any acceptance or issue a warning or an admonition to the said organisation, where he is satisfied that-

(a) the requirements specified by the Director General are not being complied with; or

(b) the organisation has not performed work or granted a certificate in respect of work which has not been performed in a careful or competent manner; or

(c) has performed work beyond the scope of its acceptance; or

(d) failed to make proper entries and certification thereof; or

(e) for any other reason.

D. Fees

68. Fees.— *(1)* No certificate of any of the kinds specified herein below, shall be issued or validated unless the following fee shall be paid in respect of such certificate, namely: —

(A) issue of type certificate or restricted type certificate under rule 27:

(i) for an aircraft having maximum design take-off weight–	
(a) of 1,000 kg. or less	Rs.40,000
(b) exceeding 1,000 kg., for every 1000 kg.or part thereof	Rs.20,000
(ii) for engines–	
(a) turbine	Rs. 20,00,000
(b) non–turbine	Rs. 4,00,000
(iii) for propeller	Rs.4,00,000

(B) validation of type certificate or restricted type certificate or supplemental type certificate under rule 28:

(i) the fee for validation of type certificate or restricted type certificate for the purposes of operation shall be twenty-five per cent. of the fee payable under clause *(A).*

(ii) the fee for validation of type certificate or restricted type certificate for the purposes of licensed production shall be fifty per cent. of the fee payable under clause *(A).*

(iii) the fee for validation of supplemental type certificate shall be fifty per cent. of the fee payable under clause *(D).*

(C) acceptance of type certificate or restricted type certificate of an aeronautical product under rule 29: The fee for acceptance of type certificate or restricted type certificate of an aeronautical product shall be twenty five per cent. of the fee payable under sub-clause *(i)* clause *(B).*

(D) issue of supplemental type certificate in respect of an aeronautical product under rule 30:

(i) for an aircraft having maximum design take-off weight-	
(a) of 1,000 kg. or less	Rs.10,000

(b) exceeding 1,000 kg., for every 1,000 kg. or part thereof	Rs. 5,000
(ii) for engines -	
(a) turbine	Rs.5,00,000
(b) non–turbine	Rs. 1,00,000
(iii) for propeller	Rs.1,00,000

(E) acceptance of supplemental type certificate issued by a contracting State under rule 33: The fee for acceptance of supplemental type certificate of an aeronautical product shall be twenty-five per cent. of the fee payable under sub-cluases *(i)* to *(iii)* of clause *(D).*

Note: The maximum permissible take-off weight for the purposes of this rule shall be as indicated in the flight manual of the aircraft.

(F) acceptance of design under rule 34: The fee for acceptance of design shall be fifty per cent. of the fee payable under clause *(A).*

(G) authorisation for design and manufacture of an aircraft component under rule 38:

for each aircraft component	Rs. 40,000.

(H) approval of modifications and repairs under rule 52:

(i) for an aircraft having maximum design take-off weight–	
(a) of 1,000 kg. or less-	Rs.10,000
(b) exceeding 1,000 kg., for every 1000 kg. or part thereof	Rs.5,000
(ii) for engine–	
(a) turbine	Rs.5,00,000
(b) non-turbine	Rs. 1,00,000
(iii) for propeller	Rs.1,00,000

Note:
I. the fee for minor modification or repair of an aeronautical product shall be fifty per cent. of the fee payable under clause *(H).*

II. the fee for minor modification or repair to that part of a product covered by a supplemental type certificate shall be fifty per cent. of the fee payable under clause *(D).*

(2) (A) the following fee shall be payable under rule 39 in respect of a certificate of registration for an aircraft having maximum permissible take-off weight, namely: —

(i) of 15,000 kg. or less	Rs. 20,000
(ii) exceeding 15,000 kg., for every 1,000 kg. or part thereof	Rs. 5,000

Note: For the purpose of this clause, the maximum take-off weight shall be as indicated in the flight manual of the aircraft.

(B) where the original certificate of registration is lost or destroyed, a duplicate thereof may be issued on payment of ten per cent. of the fee payable under clause *(A).*

(C) a temporary certificate of registration referred to in rule 41, may be issued on payment of twenty-five per cent. of the fee payable under clause *(A).*

(D) the certificate of registration may be issued under rule 42 or rule 43 on payment of fifty per cent. of the fee payable under clause *(A).*

(E) a fee of rupees ten thousand shall be payable for reserving a registration mark and such reservation may further be extended on payment of ten thousand rupees at a time.

(F) a fee of rupees twenty-five thousand shall be payable under rule 44 for issuing a certificate of de-registration to an applicant.

(G) a fee of rupees twenty thousand shall be payable under rule 60 for issuance of Mode-S Address of aircraft.

(3) Issuance or validation of certificate of airworthiness, special certificate of airworthiness, and issue or extension of airworthiness review certificate under rule 49 and issuance of noise certificate under rule 50:

(i) issue of certificate of airworthiness or special certificate of airworthiness for an aircraft having maximum permissible take-off weight–	
(a) of 1,000 kg. or less	Rs.20,000
(b) exceeding 1,000 kg., for every 1,000 kg. or part thereof	Rs.1,000
(ii) validation of certificate of airworthiness or special certificate of airworthiness	fifty per cent. of the fee payable under clause *(i), as applicable*
(iii) issue or extension of airworthiness review certificate or renewal of special certificate of airworthiness or amendment in certificate of airworthiness or special certificate of airworthiness	fifty per cent. of the fee payable under clause *(i), as applicable*
(iv) issue of duplicate certificate of airworthiness or airworthiness review certificate or special certificate of airworthiness	ten per cent. of the fee payable under clause *(i),* as applicable
(v) change in category or sub-category in certificate of airworthiness or special certificate of airworthiness	twenty-five per cent. of the fee payable under clause *(i),* as applicable
(vi) issue of special flight permit	ten per cent. of the fee payable under clause *(i),* as applicable
(vii) issue of noise certificate	fifty per cent. of the fee payable under clause *(i)*
(viii) for any amendment or re-issue of noise certificate	twenty-five per cent. of the fee payable under clause *(i)*

(4) An additional amount of two lakh fifty thousand rupees or travel expenses including local conveyance, hotel charges and dearness allowance per person, whichever is higher, shall be payable if the technical evaluation, inspection, examination or test is required to be carried out at any place outside India, for the purposes specified in sub-rule *(1)* and sub-rule *(3)*.

(5) The following fee shall be payable for grant of approval under rule 66, in respect of an organisation having-

(i) fifty employees	Rs.2,00,000
(ii) more than fifty and upto two hundred employees	Rs.4,00,000
(iii) more than 200 employees	Rs.8,00,000

(6) The fee for renewal or extension of scope of approval under rule 66 or acceptance of approval or extension of acceptance under rule 67 shall be fifty per cent. of the fee payable under sub-rule *(5)*.

(7) An additional amount of two lakh fifty thousand rupees or travel expenses including local conveyance, hotel charges and dearness allowance per person, whichever is higher, shall be payable if the inspection, audit or surveillance for the grant or renewal or extension of approval under rule 66 is required to be carried out at any place outside India.

(8) An additional amount of two lakh fifty thousand rupees or travel expenses local conveyance, hotel charges and dearness allowance per person, whichever is higher, shall be payable if the inspection, audit or surveillance in respect of acceptance of approval or renewal of acceptance or extension of acceptance under rule 67 is required to be carried out at any place outside India.

(9) No fee shall be charged from an organisation or person under this rule for storage, distribution and supply of aircraft fuel, lubricants and similar other products intended to be used for its own aircraft.

(10) Where for any reason, the licence or authorisation or certificate, is not issued, renewed or validated, as the case may be, the Director General may refund to the

applicant such portion of the fees paid as represents the cost of any examination or test or inspection not carried out or any licence, authorisation or a certificate not issued or renewed or validated, as the case may be.

(11) The fee shall be paid electronically in the manner specified by the Director General.

CHAPTER IV

PERSONNEL

A. Licensing of Personnel

69. **Licensing authority.**— *(1)* The authority by which the licences and ratings specified below may be granted, renewed, extended or varied shall be the Central Government, which may withhold the grant or renewal of a licence or a rating, if for any reason, it considers it desirable to do so —

(a) Student Pilot's Licence (for aeroplanes, helicopters, gyroplanes, gliders, balloons, microlight aircraft and light sport aircraft);

(b) Private Pilot's Licence (for aeroplanes and helicopters);

(c) Commercial Pilot's Licence (for aeroplanes and helicopters);

(d) Airline Transport Pilot's Licence (for aeroplanes and helicopters);

(e) Instrument Rating (for aeroplanes and helicopters);

(f) Assistant Flight Instructor's Rating (for aeroplanes and helicopters);

(g) Flight Instructor's Rating (for aeroplanes and helicopters);

(h) Pilot's Licence (for gliders, balloons, microlight aircraft, light sport aircraft and gyroplane);

(i) Student Flight Navigator's Licence;

(j) Flight Navigator's Licence;

(k) Student Flight Engineer's Licence;

(l) Flight Engineer's Licence;

(m) Flight Radio Telephone Operator's Licence;

(n) Flight Radio Telephone Operator's Licence (Restricted);

(o) Student Air Traffic Controller's Licence;

(p) Air Traffic Controller's Licence;

(q) Aerodrome Control Rating;

(r) Approach Control Procedural Rating;

(s) Approach Control Surveillance Rating;

(t) Area Control Procedural Rating;

(u) Area Control Surveillance Rating;

(v) Oceanic Control Rating; and

(w) Radio Telephone Operator (Restricted) certificate and licence.

(2) Before grant or renewal of a licence or rating, the licensing authority shall satisfy itself that the applicant meets the requirements of age, qualification, medical standard, knowledge, experience, training and skill, as specified under these rules.

(3) The licence shall not be valid unless it bears the signature of the holder.

(4) The licence shall remain valid for the period indicated therein which shall not exceed the period specified under these rules unless suspended or cancelled earlier.

(5) The licensing authority may cancel, suspend or vary any licence or rating if it is satisfied that there is a reasonable ground to do so:

Provided that no such licence or rating shall be cancelled or suspended without giving a show cause notice, in writing, informing the holder of the licence or rating, the ground on which it is proposed to suspend or cancel the licence or rating and giving him a reasonable opportunity of making a representation in writing within such reasonable time as may be specified in the notice and, if that person so desires, of being heard.

(6) Notwithstanding anything contained in sub-rule *(5),* if the Central Government is of the opinion that in the interest of public safety it is necessary so to do, it may, for the reasons to be recorded in writing, summarily suspend the licence or rating with a view to making further enquiry.

70. **Disqualification from holding or obtaining a licence.**— *(1)* Where the licensing authority is satisfied, after giving him an opportunity of being heard, that any person-

(a) is habitually intemperate in the use of alcohol, or is an addict of narcotics drugs and the like; or

(b) is using, has used or is about to use an aircraft in the commission of a cognizable offence or in contravention of these rules; or

(c) has, by his previous conduct as member of the crew of an aircraft, air traffic controller or aircraft maintenance engineer, as the case may be, shown that he is irresponsible in the discharge of his duties connected with his employment or is likely to endanger the safety of the aircraft or any person or thing carried therein, or of other aircraft or persons or things in the air or on the ground; or

(d) is a habitual criminal or has been convicted by a Court or Tribunal in India for an offence involving moral turpitude, sexual harassment of women at workplace or an offence which amounts to heinous crime; or

(e) has applied for or obtained the licence, rating, aircraft type rating or extension of aircraft type rating or renewal of any of them, by suppression of material information or on the basis of wrong information; or

(f) has unauthorisedly varied or tampered with the particulars entered in a licence or rating or any other relevant document,

the licensing authority may, for reasons to be recorded in writing, make an order disqualifying that person for a specified period from holding or obtaining a licence.

(2) The Central Government may debar a person permanently or temporarily from holding any licence or rating mentioned in rule 69, if in its opinion it is necessary to do so in the public interest.

(3) Upon issuance of any order under sub-rule *(1)* or sub-rule *(2),* —

(a) the person affected is the holder of a physical licence, shall forthwith surrender his licence to the licensing authority unless it has not already been surrendered;

(b) the electronically issued licence shall be deactivated;

(c) the licensing authority shall keep the physical licence or deactivate the electronic personnel licence until the expiry of the period for which the person has been disqualified or debarred, or if he has been debarred permanently, for a period of five years.

71. **Licence or rating specifications**.— The licence or rating issued under these rules shall be in the form and contain such details as specified by the Director General.

1. Pilot and Flight Engineer

72. **Licensing of personnel**.— *(1)* Every aircraft shall carry and be operated by the personnel prescribed in this Chapter and such personnel shall be licensed in the manner prescribed in this Chapter and in the First Schedule.

(2) An aircraft not registered in India shall carry the personnel prescribed by the laws of the State in which it is registered and such personnel shall be licensed in accordance with the laws of that State.

73. **Type of aircraft to be included in rating.**— No person shall fly as pilot of an aircraft which is not included or entered in the aircraft rating of the licence except as provided in rules 74 and 75.

74. **Flights to qualify for extension of a licence.**— The holder of a pilot's licence may fly within the territory of India, as pilot of an aircraft of type which is not included in the aircraft rating of his licence for the purpose of qualifying for the inclusion of such type:

Provided that when he is so flying no person shall be carried on board the aircraft unless he is —

(a) a person required by the rules to be carried as member of the operating crew; or

(b) a person who is flying, with the consent of the operator of the aircraft, for the purpose of being trained as a member of the operating crew; or

(c) a person whose presence may be required on board the aircraft for the purpose of imparting or supervision of training or conducting a flight test; or

(d) a person who may be specially authorised by the Director General:

Provided further that such flights are carried out within the local flying area or designated flying area of a licensed aerodrome or a Government aerodrome and prior notice of the flight is given to the person-in-charge of the aerodrome from which the flight is made:

Provided also that no restrictions for carrying out dual flying with instructor on board even in areas away from the local flying area within the territory of India, for learning general as well as route flying (navigation).

75. Flights for testing and other non-revenue specific special purposes.— The Director General may authorise the holder of a licence to fly an aircraft not entered in the aircraft rating of the licence, for the purpose of testing or non-passenger-carrying flight subject to the terms and conditions of such authorisation, and the authorisation shall be limited in validity to the time needed to complete the testing or the specific flight:

Provided that the holder of the licence produces evidence to show that he meets the requirements of competency as laid down by the Director General for undertaking such flight:

Provided further that when the aircraft is test flown, no person other than members of the operating crew, shall be carried on board the aircraft unless he is specifically authorised by the Director General:

Provided also that the test flight is carried out within the specified area and in accordance with the conditions stipulated by the Director General in this behalf and prior notice of the flight is given to the officer-in-charge of the aerodrome from which the flight is to be made.

Explanation. — For the purposes of this rule, —

(a) an aircraft shall include an amateur-built aircraft; and

(b) the expression “specific special purpose non-revenue, non-passenger-carrying flight” shall include flights authorised by the Central Government in the event of national or international crisis, natural calamities, emergencies or otherwise requiring such flights to carry material or goods for relief purposes.

76. Minimum age for holding a licence.— The minimum age of a person who is otherwise qualified and to whom a licence may be granted shall be such as specified in the First Schedule.

77. Minimum educational qualification for holding a licence.— No person shall be granted a licence unless he possesses the educational qualification as specified in the First Schedule:

Provided that candidates already enrolled for training on or before 01st July, 1993 with flying club or institution shall be exempted from application of this rule.

78. Medical standards.— *(1)* No licence or rating referred to in clause *(a)* to *(n)* of sub-rule *(1)* of rule 69, required for any of the personnel of the aircraft, shall be issued or renewed unless the applicant undergoes a medical examination with an approved medical authority and satisfies the medical standards as notified by the Director General:

Provided that if in the opinion of the approved medical authority the condition of the applicant is not such as to introduce any hazard either of sudden incapacity or of inability to perform his duties safely during the period of validity of his licence or rating, and the failure to attain the requirement is capable of being compensated and the Director General has satisfactory evidence that the applicant has already acquired and demonstrated his ability, skill and experience which compensate for his deficiency, the licence or rating may be renewed or endorsed with any special limitation when the safe performance of flight duties is dependent on compliance with such limitations:

Provided further that, in the case of a member of the operating crew of an aircraft engaged in public transport or aerial work who is on duty in the territory of a foreign country where medical centres recognised by the Director General do not exist, the Director General may renew the licence or rating for two consecutive periods of three months each without the candidate having successfully undergone the prescribed medical examination, if such candidate produces a medical certificate from a registered practitioner in modern medicine declaring his fitness in accordance with the prescribed medical standards.

Explanation.— For the purposes of this sub-rule "approved medical authority" means a medical authority approved by the Director General.

(2) The Director General may require a member of any flight crew to undergo a medical examination by any medical authority at any time, if, in his opinion, such examination is necessary in the interest of safety of operations.

79. Period of validity of medical fitness assessment and licences.— *(1)* The period of validity of medical fitness assessment and licence in respect of various categories shall be as specified in the following Table, namely: —

Table

Sl. No.	**category of licence**	**validity of medical fitness assessment**	**validity of licence**
(1)	(2)	(3)	(4)
1.	Airline Transport Pilot's Licence (aeroplanes or helicopters)	twelve months	ten years
2.	Commercial Pilot's Licence (aeroplanes or helicopters) and Flight Navigator's Licence	twelve months	ten years
3.	Flight Radio Telephone Operator's Licence	twelve months	up to the validity of Radio Telephone Restricted
4.	Student Pilot's Licence (aeroplanes or helicopters or gyroplanes or microlight aircraft or light sport aircraft or gliders or balloons), Student Flight Navigator's Licence and Student Flight Engineer's Licence	twenty-four months	ten years
5.	Private Pilot's Licence (aeroplanes or helicopters),	twenty-four months	ten years

	Pilot‘s Licence (microlight aircraft or gyroplanes or light sport aircraft or gliders or balloons), Flight Radio Telephone Operator‘s Licence (Restricted) and Flight Engineer‘s Licence.		

(2) The period of validity of the initial medical fitness assessment shall commence from the date of the medical examination.

(3) In case of renewal, the period of validity of medical fitness assessment shall commence from the date following the date of expiry of the previous medical fitness assessment, subject to the condition that the medical examination for renewal has been conducted within a period of not more than forty-five days preceding the date of expiry of the previous validity.

(4) In cases other than those referred to in sub-rule *(3),* the validity of the renewal of the medical fitness assessment shall commence from the date of the completion of the medical examination.

(5) (a) The period of validity of medical fitness assessment in respect of the licences specified against serial numbers 1 and 2 of the Table under sub-rule *(1)* shall be reduced to half after the holder of the licence has attained the age of forty years in case of single crew commercial air transport operations and sixty years in case of multi-crew commercial air transport operations;

(b) The period of medical fitness assessment in respect of the licences specified against serial number 5 of the Table under sub-rule *(1)* shall be reduced to half after the holder of the licence has attained the age of fifty years.

(6) The period of validity of a licence shall commence from the date of issue of the licence.

(7) In case of renewal, the period of validity of the licence shall commence from the date following the date of expiry of the previous validity of the licence, subject to the condition that the application for renewal has been submitted within a period of not more than forty-five days preceding the date of expiry of the previous validity.

(8) In cases other than those referred to in sub-rule *(7),* the validity of renewal of the licence shall commence from the date of renewal of the licence.

80. Proof of competency.— Applicants for licences and ratings shall produce proof of having acquired the flying experience and having passed satisfactorily the test and examinations specified in the First Schedule in respect of the licence or rating concerned:

Provided that a person who is a qualified pilot or flight engineer from the Indian Air Force, Indian Navy or Indian Army or Indian Coast Guard and who produces satisfactory evidence to show that he possesses the necessary flying experience, competency and standards of physical fitness as required under these rules may be exempted by the Director General, by general or special order in writing, and subject to such conditions, if any, as may be specified in such order, from all or any of the flying tests and from medical or other technical examinations required for the issue of the licences under these rules :

Provided further that a person to whom a licence of a particular aircraft-category has been issued by the competent authority in a contracting State may be exempted by the Director General from all or any of the flying tests or technical examinations required for issue of a licence, if such person has flying experience and competency not less than the flying experience and competency as specified in the First Schedule in respect of the corresponding licence under these rules subject to the compliance of conditions as specified by the Director General and If the person is the holder of a current licence, he may be further exempted from medical examination for the period for which the licence is current :

Provided also that in the case of a licence issued under any of the preceding provisions, only such type or types of aircraft shall be entered in the aircraft rating of the licence as in the opinion of the Director General the applicant has sufficient and satisfactory experience and competency to fly:

Provided also that the Director General may, on examination of the syllabi, determine the relative equivalence of technical examinations for granting exemptions to applicants from passing the examinations required under the First Schedule:

Provided also that the minimum flying experience as specified in the First Schedule for such licence shall only be considered towards the flying experience for issue of a higher licence in the same aircraft-category:

Provided also that the Director General may require any candidate, training establishment or operator to produce for examination all relevant training records including the syllabi, certificates, mark-sheets, flight-test reports, assessments, in respect of the candidate who has undergone a course of training, examination or flight-test with such training establishment or operator.

81. Checks, tests and examinations.— *(1)* The Director General may conduct examinations specified in the First Schedule, may fix examination centres within India, appoint invigilators or subject matter expert and lay down the procedure for conducting the examinations.

(2) The Director General may appoint examiners for carrying out flying tests and technical examinations required under the First Schedule and may also appoint a board to conduct oral examinations when necessary.

(3) The Director General may determine the manner in which the skill tests shall be carried out and may approve check flight engineer, synthetic flight examiner, designated examiner, flight engineer examiner and examiner for this purpose. He may require their reports to be submitted to him in respect of any flying test on any aircraft for which an aircraft rating is desired on a licence or which is entered in the aircraft rating of the licence and the renewal of which is desired or for checking skill at any time in respect of any aircraft included in the aircraft rating of the licence.

(4) The Director General may specify the requirements for approval of check pilot, line training captain, type rating instructor, synthetic flight instructor, synthetic flight examiner, check flight engineer, flight engineer examiner, examiner and designated examiner.

(5) The approval granted under sub-rule *(3),* unless suspended or cancelled, shall remain valid for a period not exceeding five years, and on being satisfied, the Director General may renew it for a further period not exceeding five years at a time.

(6) The Director General may also appoint examiners for standardisation check of check pilot, type rating instructor, check flight engineer, synthetic flight instructor, synthetic flight examiner, flight engineer examiner, examiner and designated examiner approved under sub-rule *(3)* and specify the manner in which such checks shall be carried out.

(7) (a) The Director General may, after giving a reasonable opportunity of being heard, debar permanently or temporarily an applicant from applying for computer number or a candidate from appearing in any licensing examination or any flying test, or both, if in his opinion, the applicant has submitted fake documents for qualifying the eligibility criteria to appear in such examination or has adopted unfair means during the test or examination.

(b) The Director General may after giving a reasonable opportunity of being heard, declare any examination passed by a candidate null and void, if in the opinion of the Director General, the candidate was not meeting the eligibility criteria or the candidate has submitted fake documents for qualifying the eligibility criteria to appear in such examination.

(8) The Director General may declare any flying test or examination conducted by an examiner or a board null and void, if in the opinion of the Director General, the test or examination has not been carried out to his satisfaction, and require the test or the examination to be carried out again by another examiner or board and the Director General may also take such action against the examiner as he may deem fit under the provisions of rule 212.

(9) If a licence holder or a candidate for a licence or rating has failed in any flying test subsequent to any flying test successfully undergone by him for issue or renewal of the licence or rating, the previous test as far as it is affected by the subsequent flying test in which he has failed, will be considered invalid from the date of the subsequent test and the privileges accruing as a result of such earlier test shall be deemed to have been withdrawn.

(10) Detailed syllabi for the technical examinations for the issue of flight crew licences and ratings shall be specified by the Director General.

82. Licences and their renewal.— *(1)* The licences and ratings mentioned in clause *(a)* to *(n)* of sub-rule *(1)* of rule 69 may be issued or renewed for any period not exceeding the period specified in rule 79 and the First Schedule in respect of each licence or rating:

Provided that on the date of application for renewal, the licence or rating has expired for the periods specified below, the applicant may be required to qualify in the examinations and skill tests specified against them and such other examinations and tests as the Director General may consider necessary to assess the competency of the applicant to hold that licence or rating —

(a) for a period exceeding two years but not exceeding three years : Test of skill and Air Regulations;

(b) for a period exceeding three years : All examinations and tests required for the issue of the licence or rating:

Provided further that the Director General may, before the renewal of a licence or a rating, require an applicant to satisfy all or any of the requirements for the issue of licence or rating of the same class, if, in the opinion of the Director General, the competency of the applicant is below the standard required for the licence or rating:

Provided also that where the holder of expired Indian commercial licence is flying on a valid equivalent commercial licence issued by a contracting State and satisfies the requirement of flying experience for renewal of Indian licence, the Indian licence, if expired beyond two years, shall be renewed after his qualifying the examinations and tests as the Director General may consider necessary:

Provided also that in case of a pilot or a flight engineer, the Director General may, when renewing a licence or a rating, delete any type of aircraft entered in the aircraft rating, if he is satisfied that the holder of the licence does not have reasonable flying experience or does not possess the required standard of competency on that type of aircraft:

Provided also that the requirements of competency and recent experience for exercising the privileges of the licence or rating as specified by the Director General, shall be completed before renewal of licence or rating, as the case may be.

(2) The holder of a licence shall not exercise the privileges of his licence without being declared fit after a fresh medical examination in the event of his having ─

(a) a sickness or injury involving incapacity for a period of fifteen days or more for the work for which he is licensed; or

(b) an injury sustained in any accident occurring during the exercise of the privileges of his licence or otherwise and which is likely to cause incapacity or impair his efficiency in the discharge of his duties,

the licence holder or his employer shall immediately notify all the relevant details of the sickness or injury to the Director General.

(3) The licence of a person disqualified under sub-rule *(2)* shall be deemed to be invalid until the holder passes a fresh medical examination.

(4) The holder of a licence shall not exercise the privileges of his licence during any period when he is aware that his physical condition has deteriorated below the standard required for that category of licence.

83. Validation of foreign licence.─ When a licence has been granted by the competent authority in a foreign State and is for the time being in force, the Central Government may, subject to such conditions and limitations and for such periods as it shall think fit, render such licence valid by an authorisation for flying aircraft registered in India and a licence so validated shall be subject to the provisions of rules 212 and 213 and such validation of a licence shall cease, if the licence is revoked or suspended.

84. Log books of flight crew personnel and logging of flight time.─ *(1)* Every member of the flight crew licensed under these rules shall maintain a personal log book and all flight times shall be logged therein.

(2) Log books shall be maintained in the form and manner as specified by the Director General*.*

(3) Flight crew shall log their respective flights in their respective personal log book.

(4) Flight time during which a pilot is under dual instruction shall be entered in his log book as "dual" and the pilot giving instruction shall make entries in the log book of the pilot under instruction showing the nature of the instruction given.

(5) (a) Flight time spent in performing, under supervision of a pilot-in-command, the duties and functions of a pilot-in-command shall be logged as pilot-in-command under supervision, if the person is entitled and authorised to fly in command of that type of aircraft by virtue of the ratings and privileges of his pilot's licence;

(b) In all other cases, such flight time shall be logged as co-pilot with appropriate indication in the remarks column.

(6) The holder of a Student Pilot's Licence may log as pilot-in-command only for that portion of the flight time during which he is the sole occupant of the aircraft and where an aircraft which requires more than one pilot in accordance with rule 74 and clause *(f)* of rule 114, he may log as pilot-in-command for that portion of the flight time during which he acts as pilots-in-command of the aircraft.

(7) The holder of a Pilot's Licence may log as pilot-in-command only for the flight time during which he acts as pilot-in-command. In all other cases, such flight time shall be logged as co-pilot with appropriate indication in the remarks column.

(8) A flight instructor may log as pilot-in-command for the flight time during which he acts as an instructor but the log entries shall indicate in the remarks column that the flight time was flown as an instructor.

(9) Instrument flight time may be logged by the pilot manipulating the controls of an aircraft in flight only when the aircraft is flown solely by reference to instruments, either under actual or simulated instrument flight condition, and over-the-top flying shall not be logged as instrument flying time.

(10) Instrument ground time may be logged in full by the pilot while flying solely by reference to instruments, in any recognised synthetic device which simulates instrument flight conditions.

(11) A pilot who acts as trainer or examiner may log as pilot-in-command for the flight time during which he so acts, if that he is entitled and authorised to fly-in- command of that type of flying machine by virtue of the ratings and privileges of his pilot's licence.

(12) (a) A flight navigator shall log the flight time as a flight navigator during which he is engaged in actual navigational duties;

(b) Flight time during which a flight navigator performs actual navigational duties under supervision of a licensed flight navigator shall be logged as a flight navigator with the indication "under supervision" in the remarks column.

(13) (a) A flight engineer shall log the flight time as a flight engineer during which he is engaged in actual flight engineer's duties;

(b) Flight time during which a flight engineer performs a actual flight engineer's duties under supervision of a licensed flight engineer shall be logged as a flight engineer with indication "under supervision" in the remarks column.

(14) A flight radio telephone operator shall log the flight time during which he actually performs the duties of a flight radio telephone operator.

2. Aircraft Engineer

85. Licensing of aircraft maintenance engineers.— *(1)* The Central Government may grant licences or authorisations as provided in this rule, to persons who meet the requirements specified in this rule.

(2) The application for the grant of an Aircraft Maintenance Engineer's Licence or an authorisation, or for any change thereof, shall be made in the form and manner as may be specified by the Director General.

(3) The Aircraft Maintenance Engineer's Licence may be granted in the following categories and sub-categories, as applicable, namely: —

(a) Category A, classified into the following sub-categories, namely : —

(i) A1 Aeroplanes Turbine;

(ii) A2 Aeroplanes Piston;

(iii) A3 Helicopters Turbine;

(iv) A4 Helicopters Piston.

(b) Category B1, classified into the following sub-categories, namely : --

(i) B1.1 Aeroplanes Turbine;

(ii) B1.2 Aeroplanes Piston;

(iii) B1.3 Helicopters Turbine;

(iv) B1.4 Helicopters Piston.

(c) Category B2, applicable to all aircraft.

(d) Category B2L, applicable to aircraft shall be issued with the 'system rating' as specified by the Director General.

(e) Category B3, applicable to piston-engine non-pressurised aeroplanes of 2000 kg. maximum take-off mass and below.

(f) Category L, classified into the following sub-categories, namely: —

(i) L1C: composite sailplanes;

(ii) L1: sailplanes;

(iii) L2C: composite powered sailplanes and composite light aircraft 1 aeroplanes;

(iv) L2: powered sailplanes and light aircraft 1 aeroplanes;

(v) L3H: hot-air balloons;

(vi) L3G: gas balloons;

(vii) L4H: hot-air airships;

(viii) L4G: light aircraft 2 gas airships; and

(ix) L5: gas airships other than light aircraft 2.

Note: Light aircraft 1 and light aircraft 2 means a manned aircraft as specified by the Director General.

(g) Category C, applicable to aeroplanes and helicopters.

(4) The holder of an aircraft maintenance licence shall have his licence endorsed with the relevant rating for exercising the certification privileges as laid down in sub-rule *(11)*, namely : —

(i) for Category B1, B2, B2L, C and L, the relevant aircraft or system ratings shall be as specified by the Director General;

(ii) for Category B3, the relevant rating shall be 'piston-engine non-pressurised aeroplanes of 2000 kg. maximum take-off mass and below';

(iii) for Category A, no rating shall be endorsed.

(5) An applicant for the grant of Aircraft Maintenance Engineer's Licence shall satisfy the following requirements, namely: —

(a) he shall not be less than eighteen years of age;

(b) he shall have passed Class 12th with Physics, Chemistry and Mathematics from a recognised Board or University or its equivalent examination;

(c) he shall have passed a written examination as specified by the Director General:

Provided that the Director General may, subject to such conditions as he may deem fit to impose, exempt any applicant from the written examination, if the applicant holds a licence granted by a contracting State to act in the capacity of an aircraft maintenance engineer; and

(d) he shall have the following minimum practical experience in the relevant category or sub-category, namely: —

(i) for category A, sub-categories B1.2, B1.4 and Category B3:

(A) three years of practical aircraft maintenance experience on operating aircraft; or

(B) two years of practical maintenance experience on operating aircraft, and having acquired a degree in Aircraft Maintenance or degree in Engineering from a recognised University; or

(C) one year of practical maintenance experience on operating aircraft, and having successfully completed basic aircraft maintenance training conducted by a training organisation approved under rule 117.

(ii) for sub-categories B1.1 and B1.3 and category B2:

(A) five years of practical aircraft maintenance experience on operating aircraft; or

(B) three years of practical maintenance experience on operating aircraft, and having acquired a degree in Aircraft Maintenance or degree in Engineering from a recognised University; or

(C) two years of practical maintenance experience on operating aircraft, and having successfully completed basic aircraft maintenance training conducted by a training organisation approved under rule 117.

(iii) for Category B2L:

(A) three years of practical maintenance experience in operating aircraft, covering the corresponding system rating, if the applicant has no previous relevant technical training; or

(B) two years of practical maintenance experience on operating aircraft, covering the corresponding system rating, and having

acquired a degree in Aircraft Maintenance or degree in Engineering from a recognised University; or

(C) one year of practical maintenance experience on operating aircraft, covering the corresponding system rating, and having successfully completed basic aircraft maintenance training conducted by a training organisation approved under rule 117.

(iv) for Category L:

(A) two years of practical experience in operating aircraft, covering a representative cross section of maintenance activities in the corresponding sub-category; or

(B) one year of practical maintenance experience in operating aircraft, covering a representative cross section of maintenance activities in the corresponding sub-category, and having acquired a degree in Aircraft Maintenance or degree in Engineering from a recognised University or having successfully completed basic aircraft maintenance training conducted by a training organisation approved under rule 117:

Provided that twelve years of practical aircraft maintenance experience acquired outside a civil aircraft maintenance environment in the relevant category, supplemented by at least one year of recent experience in civil aircraft maintenance environment, shall be treated as equivalent to the requirements laid down in sub-clauses *(i)* to *(iv)*. Whereas, for the Category A and L the recent experience in civil aircraft maintenance environment shall be six months.

(v) for Category C with respect to complex motor-powered aircraft:

(A) three years of maintenance experience in exercising privileges of categories B1.1, B1.3 or B2 as support staff, or both support staff and certifying staff, in a maintenance organisation approved under rule 66 working on complex motor-powered

aircraft, including twelve months of experience as base maintenance support staff; or

(B) five years of maintenance experience in exercising privileges of categories B1.2, B1.4 or L5 as support staff, or both support staff and certifying staff, in a maintenance organisation approved under rule 66, working on complex motor-powered aircraft, including twelve months of experience as base maintenance support staff;

(vi) for Category C with respect to aircraft other than complex motor-powered aircraft three years of maintenance experience in exercising privileges of categories B1 or B2 or support staff, in a maintenance organisation approved under rule 66, working on aircraft other than complex motor-powered aircraft, including six months of experience as base maintenance support staff:

Provided that for the addition of a category or a sub-category, or addition, within a category or a sub-category or a system rating to an existing licence, the practical maintenance experience relevant to the category, sub-category or new system rating shall be as specified by the Director General.

(e) he shall demonstrate his skill, relevant to the category or sub-category applied for, in the manner as specified by the Director General.

(6) The applicant, for grant of extension or endorsement of Aircraft Maintenance Engineer's Licence, shall be required —

(a) to pass a written examination so as to demonstrate a level of knowledge in the appropriate subject modules as specified by the Director General; and

(b) to undergo relevant training, acquire maintenance experience as specified by the Director General and demonstrate skill relevant to the category or sub-category applied for, in a manner specified by the Director General.

(7) (a) The examinations for the grant or extension of a licence under this rule shall be completed within a period of ten years immediately preceding the date of application for the issue of the licence or change thereof;

(b) An applicant who fails in any examination shall be permitted to appear again for such examination only after lapse of such other period as specified by the Director General.

(8) The Director General may conduct examinations, fix examination centres within India, appoint invigilators or subject matter expert and lay down the procedure for conducting the examinations.

(9) The Central Government may grant authorisation to the holders of an Aircraft Maintenance Engineer's Licence to carry out maintenance of any new aircraft, powerplant or system which has been brought into the organisation and which is not within the scope of his licence, and to issue a certificate of release thereof, if the Director General is satisfied that the applicant has sufficient knowledge, experience and training, and has passed such examinations as specified by the Director General.

(10) Unless suspended, revoked or cancelled,-

(a) a licence shall remain valid for the period specified therein, subject to a maximum period of ten years in each case, and may be renewed for another ten years at a time on receipt of the application for renewal:

Provided that an expired licence shall be renewed in accordance with the criterion specified by the Director General;

(b) an authorisation shall remain valid for a period specified therein, subject to a maximum period of one year in each case, and may be renewed for another one year at a time on receipt of application for renewal, if the applicant has engaged himself in the performance of the tasks for a period of three months in the preceding one year.

(11) The holders of various categories of Aircraft Maintenance Engineer's Licences shall have the following privileges, namely: —

(i) Category A licence holder, to issue certificates for release to service after minor scheduled line maintenance and simple defect rectification within the limits of maintenance tasks specifically endorsed on the authorisation issued by a maintenance organisation approved under rule 66 and the certification privileges shall be restricted to the work carried out by the licence holder himself in the maintenance organisation that issues the authorisation;

(ii) Category B1 licence holder to issue certificates for release to service and act as support staff following the maintenance performed on aircraft structure, power-plant, mechanical and electrical systems, work on avionics system requiring simple tests to prove their serviceability and not requiring trouble shooting, in respect of an aircraft type endorsed on the licence.

Note:

(a) Category B1 shall include the appropriate sub-category of Category A;

(b) Microlight, light sport aircraft, gyroplane, glider, balloon or an airship shall be certified by an aircraft maintenance engineer holding a licence in Category A or Category B1 or Category B3 or Category L or an authorised person subject to meeting the requirements as specified by the Director General.

(iii) Category B2 licence holder to issue —

(a) certificates of release to service and act as support staff after maintenance on avionic and electrical systems, avionics and electrical tasks within powerplant and mechanical systems requiring only simple tests to prove their serviceability of aircraft type endorsed on the licence;

(b) certificates of release to service after minor scheduled line maintenance and simple defect rectification within the limits of tasks specifically endorsed on the certification authorisation issued by an approved maintenance organisation of aircraft type endorsed on the licence and this certification privilege shall be restricted to work that the

licence holder has personally performed in the maintenance organisation which issued the certification authorisation and limited to the rating already endorsed on the licence;

(iv) Category B2L licence holder to issue certificates of release to service and to act as B2L support staff for the maintenance performed on electrical systems; maintenance performed on avionics systems within the limits of the system ratings specifically endorsed on the licence; and when holding the 'airframe system' rating, performance of electrical and avionics tasks within power plant and mechanical systems, requiring only simple tests to prove their serviceability;

(v) Category B3 licence holders to issue certificates of release to service and act as support staff after maintenance on aeroplane structure, powerplant and mechanical and electrical systems, work on avionic systems requiring only simple tests to prove their serviceability and not requiring troubleshooting of 'piston-engine non-pressurised aeroplanes of 2000 kg. maximum take-off mass and below';

(vi) Category L licence holder to issue certificates of release to service and to act as L support staff for maintenance performed on aircraft structure, power plant and mechanical and electrical systems; work on radio, emergency locator transmitters and transponder systems; and work on other avionics systems requiring simple tests to prove their serviceability;

(vii) Category C licence holders to issue certificates of release to service after base maintenance in respect of an aircraft of the type endorsed on the licence, and the privileges apply to the aircraft in its entirety including all systems.

Note: Simple test means a test described in approved maintenance data and such in nature that aircraft system serviceability is verified through aircraft controls, switches, built-in test equipment, central maintenance computer or external test equipment not requiring special training.

(12) The certification privileges shall be exercised only if the holder of licence fulfills the conditions as specified by the Director General.

(13) A person holding a valid Aircraft Maintenance Engineer's Licence in the old format, may be issued, with or without limitation and without further examination, an Aircraft Maintenance Engineer's Licence in the appropriate category under this rule subject to such conditions as may be specified by the Director General.

(14) Without prejudice to the provisions of sub-rule *(3)* of rule 212 of these rules, the Central Government may, after such inquiry as it may deem fit and after giving a reasonable opportunity of being heard, revoke, cancel, suspend or endorse any licence or authorisation granted under this rule or issue a warning or an admonition or debar a person from acquiring a licence or appearing in examination temporarily or permanently, where it is satisfied that ─

(a) the applicant had submitted fake documents or used unfair or fraudulent means including impersonation during the qualification process or in the examination; or

(b) the holder has obtained the certification privileges by adopting fraudulent means; or

(c) the holder has failed to carry out required maintenance resulting from his own inspection combined with failure to report such fact to the organisation or person for whom the maintenance was intended to be carried out; or

(d) the holder has performed work or granted a certificate in respect of work which has not been performed in a careful and competent manner or was responsible in any manner that compromised airworthiness of the aircraft; or

(e) the holder has signed a certificate in respect of any matter in contravention of this rule; or

(f) the holder has issued a certificate of release to service knowing that the maintenance specified on the certificate of release to service has not been carried out or without verifying that such maintenance has been carried out; or

(g) the holder has falsified the maintenance records; or

(h) the holder has carried out maintenance or has issued a certificate of release to service while under the influence of alcohol or any other intoxicating or any psychoactive substance; or

(i) it is undesirable for any other reason that the holder should continue to exercise his privileges granted under this rule.

(15) The Central Government may withhold the grant or renewal of a licence or authorisation if, for reasons to be recorded in writing, it considers it expedient to do so in public interest.

(16) The Director General may declare any examination passed by a candidate, null and void, if in the opinion of the Director General, the candidate was not meeting the eligibility criteria or the candidate has submitted fake documents for qualifying the eligibility criteria to appear in such examination.

86. Validation of licence of foreign aircraft maintenance engineers.— When a licence to an aircraft maintenance engineer has been granted by the competent authority in any contracting State and is for the time being in force, the Central Government may, subject to such conditions and limitations and for such period as it thinks fit, confer on such licence the same validity for the purposes of maintaining or certifying aircrafts registered in India as if it had been granted under these rules and a licence so validated shall be subject to sub-rule *(13)* of rule 85 and the provisions of rule 212 and rule 213

87. Log books of aircraft maintenance personnel. — Every person holding an Aircraft Maintenance Engineer's Licence or in the process of qualifying for such licence under these rules shall maintain a personal log book, in the form and manner as specified by the Director General and record aircraft maintenance work carried out or supervised by him in such log book.

3. Air Traffic Controller

88. Requirement of a licence for air traffic services personnel.— *(1)* No person shall engage himself in the provision of air traffic control services in the Indian airspace or in any airspace outside the Indian territory for which India has, in pursuance of any international arrangement, undertaken to provide air traffic control services, unless he holds a valid Air Traffic Controller's Licence issued under these rules.

(2) The designated military authority may provide the air traffic services to the civil aircraft in the airspace designated for military use in accordance with the provisions of this part and subject to the conditions as specified by the Director General.

89. Requirement of rating and unit endorsement.— *(1)* No person shall perform duty as an air traffic controller in an air traffic control unit unless his licence contains the ratings for the said purpose:

Provided that the holder of an Student Air Traffic Controller's Licence or an Air Traffic Controller's Licence may perform duty in a particular air traffic control unit without the relevant rating, for the purpose of qualifying for endorsement of such rating in his licence, under the direct supervision of a person holding the rating for that particular air traffic control unit and authorised by the Director General, or by any other organisation specifically authorised by the Director General, to act as an instructor.

(2) A licence may contain ratings for one or more air traffic control units.

(3) Notwithstanding anything contained in sub-rule *(1)*, the Director General or any other organisation specifically authorised by the Director General for this purpose may authorise —

(i) the holder of an Air Traffic Controller's Licence to perform duty in a newly established air traffic control unit without endorsement of that unit on his licence, if he has completed simulation training for the said unit and has been assessed as fit for such duties by an assessment board duly approved by the Director General or by any other organisation specifically authorised by the Director General for this purpose:

Provided that rating of such newly established air traffic control unit may be endorsed on the licence, after the licence holder gains the experience as

specified by the Director General, for the relevant Section of the Second Schedule, wherein requirement of knowledge, skill and experience shall be considered to be complied with.

Explanation. — For the purposes of this clause, "simulation training" includes an automated or computer generated air traffic environment or a simple instructor-driven interactive role play;

(ii) deployment of an air traffic controller to perform air traffic control duties temporarily at an airport without endorsement of that airport on his licence, if he holds similar ratings for another airport with higher air traffic density and is assessed as fit for such duties by an air traffic controller holding the rating for the airport of temporary duty.

90. Rating training manual.— There shall be a rating training manual, at each air traffic service station, containing the syllabus for on-the-job training, examination, assessment and procedures to meet the requirements or ratings as laid down in the Second Schedule, approved by the Director General.

91. Medical standards.— *(1)* No licence or rating granted under clauses *(o)* to *(v)* of sub-rule *(1)* of rule 69 shall be issued or renewed unless the applicant holds a medical fitness assessment issued by the Director General after undergoing a medical examination with an approved medical authority and satisfying the medical standards as specified by the Director General for the purpose:

Provided that if in the opinion of the approved medical authority, the condition of the applicant is not such as to introduce any hazard either of sudden incapacity or of inability to perform his duties safely during the period of validity of his licence or rating and failure to attain the requirement is capable of being compensated and the Director General has satisfactory evidence that the applicant has already acquired and demonstrated his ability, skill and experience which compensate for his deficiency, the assessment may be issued with any limitation as deemed fit, and the licence or rating may be renewed or endorsed with such limitation.

Explanation. — For the purposes of this sub-rule, approved medical authority means a medical authority approved by the Director General.

(2) The Director General may require the holder of a licence to undergo a medical examination by any medical authority at any time if, in his opinion, such examination is necessary in the interest of safety of operations.

92. Licence not valid without valid medical fitness assessment.— A licence granted under clauses *(o)* to *(v)* of sub-rule *(1)* of rule 69 shall not be valid unless it is accompanied by a valid medical fitness assessment and the holder shall not exercise the privileges of the licence in the absence of a valid medical fitness assessment.

93. Decrease in medical fitness.— *(1)* The holder of a licence shall not exercise the privileges of his licence and ratings during any period when he is aware that his physical condition has deteriorated and the medical fitness has decreased below the standard required for that category of licence.

(2) The holder of a licence shall not exercise the privileges of his licence without being declared fit after a fresh medical examination in the event of his having suffered from a sickness or injury rendering him incapable of discharging his duties for a continuous period of more than twenty days, or which is likely to cause incapacity or impair his efficiency in the discharge of his duties.

(3) The licence holder or his employer shall immediately notify all the relevant details of the sickness or injury to the Director General.

(4) The licence of a person rendered incapable under sub-rule *(2),* shall be deemed to be invalid until the holder undergoes a fresh medical examination.

94. Period of validity of licences and medical fitness assessment.— *(1)* A Student Air Traffic Controller's Licence shall remain valid for a maximum period of three years from the date of issue and may be renewed for a further period not exceeding three years subject to conditions as may be specified by the Director General.

(2) Subject to sub-rules *(5)* and *(6)* of rule 69, rules 70, 92 and 96, an Air Traffic Controller's Licence shall remain valid until the holder attains the age of sixty years:

Provided that the validity of the licence shall lapse, if the holder has not held a valid rating for more than five years and the renewal of the licence in such case shall be subject to the fulfilment of the requirements of rule 98 and the Second Schedule.

(3) (a) The period of validity of a licence shall commence from the date of its issuance.

(b) In case of renewal, the period of validity shall commence from the date following the date of expiry of the previous validity, irrespective of the date of renewal, if the application for renewal has been submitted within a period of thirty days preceding the date of expiry and all the requirements for renewal are met on the date of application.

(c) In any other case, the validity of renewal of licence shall commence from the date of renewal.

(4) The maximum period of validity of a medical fitness assessment shall be four years from the date of medical examination.

(5) The period of validity of medical fitness specified in sub-rule *(4),* shall be reduced to two years after the holder of the licence has attained the age of forty years which shall be further reduced to one year after the holder of the licence has attained the age of fifty years.

(6)(a) The period of validity of initial medical fitness assessment shall commence from the date of the medical examination;

(b) In case of renewal, the period of validity of medical fitness assessment shall commence from the date following the date of expiry of the previous medical fitness assessment, irrespective of the date of renewal, if the medical examination for renewal has been conducted within a period of not more than forty-five days preceding the date of expiry of the previous validity;

(c) In any other case, the validity of renewal of medical fitness assessment shall commence from the date of renewal.

95. Maximum age-limit for holding licence or rating.— No person shall exercise the privileges of the licence granted under clauses *(o)* to *(v)* of sub-rule *(1*) of rule 69 after he has attained the age of sixty years.

96. Maintenance of validity of ratings and endorsements.— *(1)* The holder of an Air Traffic Controller's Licence shall not exercise the privileges of the licence and the rating endorsed on the licence unless he meets the competency and recency

requirements as laid down in the Second Schedule and the rating is valid for the air traffic control unit where he so acts.

(2) Even when a person ceases to act as an air traffic controller at a particular unit, he may keep his rating current by complying with the competency and recency requirement as laid down in the Second Schedule.

97. Licence holder's obligation to notify.— When the conditions precedent to exercise the privileges of a rating as laid down in the Second Schedule are not met, the holder of the licence shall forthwith inform the person-in-charge of the air traffic service of that place and shall not work in that position till such conditions are met.

98. Renewal of expired licence or rating.— If, on the date of application for renewal, the licence or rating has expired, the applicant shall be required to undergo on-the-job training and qualify the examinations and skill assessment tests as may be specified by the Director General to assess the applicants competency to hold that licence or rating.

99. Proof of competency.— *(1)* An applicant for grant and renewal of any licence and ratings shall produce proof of having acquired the competency and having passed satisfactorily the tests and examinations as laid down in the Second Schedule in respect of the licence or rating.

(2) The Director General may, exempt a person who is a qualified air traffic controller from the Naval, Military or Air Forces of the Union or other armed forces of the Union constituted by any law for the time being in force and who produces satisfactory evidence to show that he possesses the necessary experience, competency and standard of physical fitness as required under these rules from all or any of the examinations and medical or other technical examinations.

(3) The Director General may, on examination of the syllabi, determine the relative equivalence of examinations for granting exemptions to such applicants from passing the examinations required under the Second Schedule.

(4) The Director General may, require any candidate or training organisation to produce for examination all relevant training records, including the syllabi, certificates, mark-sheets, on-the-job training test reports, assessments and the like, in respect of

the candidate who has undergone a course of training, with such training establishment.

100. Tests, assessment and examination.— *(1)* The Director General or any other organisation specifically authorised by the Director General may, conduct examinations to test the level of knowledge as laid down in the Second Schedule, fix examination centres within India, appoint invigilators and specify the procedure for conducting the examinations.

(2) The Director General shall, specify the detailed syllabi for the examinations for issue of the licences and ratings.

(3)(a) The Director General, or any organisation under the control of the Government duly authorised by the Director General, may appoint examiners for conducting examinations and assessment required under the Second Schedule, and may also appoint a Board to conduct examinations and assessment, wherever necessary;

(b) The examiners shall be selected on the basis of criteria specified for the purpose by the Director General and the examination and assessment reports shall be submitted to the licensing authority in respect of any examination and assessment conducted for issue or renewal of a licence or endorsement of a rating on a licence.

(4) The Director General may determine the manner in which the assessment and proficiency checks shall be carried out.

(5) The Director General may, debar permanently or temporarily a person from any assessment or examination if, in his opinion, the person has adopted unfair means during the assessment or examination.

(6) (a) The Director General may, declare any examination or assessment conducted by an authorised person or a Board null and void, if in his opinion, the examination or assessment has not been carried out to his satisfaction, and require the examination or assessment to be carried out again by another authorised person or a Board;

(b) The Director General may also take such action against such authorised person or board as he may deem fit under the provisions of rule 212.

101. Use of radio call signs of air traffic services units.— A licence holder using two-way radio communication shall not use or cause or permit to be used any call sign for a purpose other than the purpose for which that call sign has been notified.

102. Record of experience and logging of on-watch period.— *(1)* Every licence holder shall maintain a personal log book in the form specified by the Director General and log the actual watch period during which he has performed any duty for exercising the privileges of his licence or ratings, or for on-the-job training, or for skill assessment, or for proficiency check.

(2) All entries in log books shall be made either in ink or logged electronically.

(3) Log books shall be preserved for not less than five years after the date of the last entry therein.

(4) (a) Every licence holder shall certify the accuracy of the entries in his log book with respect to the watch period at least at the end of each calendar month;

(b) At the end of every quarter, the log books shall be certified for correctness of entries therein by the in-charge of the air traffic services unit, or any other person authorised to do so by the Director General.

(5) The watch time during which a licence holder is under on-the-job training shall be entered in his log book as 'on-the-job training' and the instructor or any other person authorised by the Director General, shall also countersign or validate the entries in the log book of the licence holder indicating the nature of the training given.

(6) The instructor or examiner shall log as watch period in his log book the period during which he acts as an instructor or examiner and the log entries shall indicate in the remarks column that the time was logged for instructional or examination purpose.

4. Radio Telephony Operator

103. Radio-telegraph apparatus.— *(1)* No person shall operate radio transmitting apparatus in any aircraft registered in India unless he holds a licence of the type required by the provisions of this Chapter in respect of aircraft required by these rules

to carry radio-telegraph or radio-telephone apparatus, as the case may be, and issued in accordance with those provisions.

(2) Radio transmitting apparatus carried in aircraft shall be operated under the conditions defined by the International Telecommunication Convention, held at Madrid in the year 1932 and the general radio-communication regulations annexed thereto as far as these apply and shall be operated only during the hours in which such operation is permitted by the Central Government.

(3) Aircraft registered in India and required by these rules to carry radio-telegraph apparatus shall be fitted with such apparatus in accordance with the provisions of rule 59.

(*4)* Nothing in this rule shall exempt any person from those provisions of the Telecommunications Act, 2023 (44 of 2023), and the rules made thereunder which require that radio-telegraph apparatus shall be licensed.

104. Operation of Radio-Telephone apparatus.— No person shall operate or allow to operate radio telephone service of any aircraft station or aircraft earth station operating on frequencies allocated exclusively to the aeronautical mobile service or to the aeronautical mobile- satellite service, unless he holds a valid Radio Telephone Operator (Restricted) Certificate and Licence issued or recognised by the Central Government.

105. Eligibility for appearing in Radio Telephone Operator (Restricted) Certificate and Licence examination.— No person shall be eligible for appearing in the examination under these rules, unless the applicant —

(a) has attained the age of sixteen years on the date of application;

(b) has passed Class 10th or its equivalent examination from a recognised Board:

Provided that an applicant who fails in the examination shall not be permitted to appear for re-examination within such period from the date of examination as may be specified by the Director General:

Provided further that if the applicant is not a citizen of India, security clearance shall be obtained from the Government of India.

106. Submission of application. — An application for appearing in the examination for the grant of a Radio Telephone Operator (Restricted) Certificate and Licence shall be made to the Director General in such form and manner as specified by the Director General.

107. Examinations.— *(1)* The examination for the grant of a Radio Telephone Operator (Restricted) Certificate and Licence shall be held in the form and manner as specified by the Director General.

(2) The Director General may fix examination centres in India, appoint invigilators, and lay down the procedure for conducting the examinations.

(3) The Director General may authorise examiners meeting the requirements as specified by the Director General for carrying out the practical examination.

(4) The Radio Telephone Operator (Restricted) Certificate and Licence examination shall consist of —

(a) written examination; and

(b) practical examination:

Provided that no applicant shall be eligible to appear in the practical examination unless he has passed the written examination:

Provided further that the Director General may exempt the following applicants from the written examination, namely: —

(i) a qualified pilot from the Indian Air Force, Indian Navy or Indian Army or Indian Coast Guard who possesses the necessary flying experience and competency as specified by the Director General;

(ii) a person holding a valid Flight Radio Telephone Operator's Licence or its equivalent issued by Commonwealth countries or Philippines:

Provided also that in case a Radio Telephone Operator (Restricted) Certificate and Licence granted before the commencement of these rules has been suspended or in case of pendency of any proceeding connected with such Radio Telephone Operator (Restricted) Certificate and Licence, the holder of such Radio Telephone Operator (Restricted) Certificate and Licence shall not be eligible for appearing in the examinations until the expiry of suspension period.

(5) The syllabus for the examination shall be as under, namely: —

(i) written examination covering regulation and procedure, radio principles and practice and radio telephony as per the syllabus specified by the Director General;

(ii) practical examination consisting of a practical test of radio telephony conducted over simulated environment and the applicant shall be required to, —

(a) use phonetic alphabets and general procedure of radio-telephone working;

(b) carry out communications associated with mobile or base stations.

Explanation.— for the purposes of clause *(ii),* the applicant is expected to carry out preparation of messages for transmission, exchange of traffic, use of priorities, obtaining meteorological information, position report, distress, urgency, and the like.

(6) An applicant for the grant of Radio Telephone Operator (Restricted) Certificate and Licence shall have passed the practical examination within a period of three years from the date of passing the written examination:

Provided that the applicant or a person exempted from appearing in the written examination under sub-rule *(4),* shall not be permitted to appear in the practical examination for more than three attempts and on failing to pass during these three attempts, shall be required to pass the written examination again prior to being allowed to appear in subsequent practical examinations.

108. Requirements for issue of Radio Telephone Operator (Restricted) Certificate and Licence.— An applicant for Radio Telephone Operator (Restricted) Certificate and Licence shall fulfil the following requirements, namely: —

(a) the applicant shall be not less than sixteen years of age on the date of application;

(b) the applicant shall have passed Class 10th or its equivalent examination from a recognised Board;

(c) the applicant shall have passed examinations as provided under rule 107.

109. Validity of Radio Telephone Operator (Restricted) Certificate and Licence.— *(1)* The Radio Telephone Operator (Restricted) Certificate and Licence granted under these rules, unless suspended or cancelled, shall remain valid till the holder attains the age of eighty years:

Provided that a Radio Telephone Operator (Restricted) Certificate and Licence may be extended beyond the age of eighty years, subject to the holder fulfilling the requirements specified by the Director General.

(2) A Radio Telephone Operator (Restricted) Certificate and Licence existing on the day of commencement of these rules shall continue to be valid till its expiry and the holder may be granted Radio Telephone Operator (Restricted) Certificate and Licence under these rules subject to the holder passing the practical examination as provided under rule 107.

110. Scope of authority to operate.— The holder of a Radio Telephone Operator (Restricted) Certificate and Licence may, subject to fulfilling the conditions as specified by the Central Government, operate mobile stations as under, to: —

(a) carry out the radio telephone service of any aircraft station, when working on frequencies of the maritime mobile service:

Provided that: —

(i) the peak envelope power of the transmitter does not exceed 200 watts, or

(ii) the operation of the transmitter requires only the use of simple external switching devices, excluding all manual adjustment of frequency determining elements, with the stability of the frequencies maintained by the transmitter itself within the limit of tolerance specified by Radio Regulations and the peak envelope power of the transmitter does not exceed 1.5 kilowatts.

(b) carry out the radio telephone service of any aircraft station operating on frequencies allocated exclusively to the aeronautical mobile service:

Provided that the operation of the transmitter requires only the use of simple external switching devices, excluding all manual adjustment of frequency determining elements, and that the stability of the frequencies is maintained by the transmitter itself within the limits of tolerance specified by the Radio Regulations.

111. **Issue of duplicate or variation in a Radio Telephone Operator (Restricted) Certificate and Licence.—** *(1)* A holder whose Radio Telephone Operator (Restricted) Certificate and Licence has been lost, mutilated or destroyed shall inform the same to the Director General.

(2) An application along with the fee provided under rule 120 shall be made to the Director General embodying a statement of the circumstances involved in the loss, mutilation and destruction of the Radio Telephone Operator (Restricted) Certificate and Licence where a duplicate is required.

(3) If the licence or rating has been lost, the applicant must provide evidence of reasonable search having been made for it along with report from appropriate agencies and in the event it be found, the original shall be returned for cancellation.

B. Personnel of Aircraft

112. Minimum age for sole control of aircraft.— No person being under sixteen years of age shall have sole control of an aircraft in motion and no person shall cause or permit any other person to have sole control of an aircraft in motion unless he knows or has reasonable cause to believe such other person to have attained the age of sixteen years.

113. Maximum age-limit for professional pilots.— *(1)* No person, holding a pilot's licence issued under these rules and having attained the age of sixty-five years, shall act as pilot-in-command or co-pilot of an aircraft engaged in commercial air transport operations or be employed for remuneration or hire.

(2) No person holding a pilot's licence issued under these rules and having attained the age of sixty years, shall act as pilot-in-command or co-pilot of an aircraft engaged in commercial air transport operations unless it is operated in a multi-crew environment and the other pilot is less than sixty years of age:

Provided that the provisions of sub-rule *(2)* shall not apply in respect of aircraft certified for single pilot operations and not exceeding an all up weight of 5700 kg. engaged in commercial air transport operations within the territory of India and while operating in a multi-crew environment.

114. Carriage of operating crew.— Subject to the provisions of rules 72, 73 and rule 74, every aircraft registered in India shall comply with such of the following requirements in respect of the personnel which it carries and by which it is operated as are applicable to the aircraft and type of operation concerned, namely : —

(a) **Pilot**. —

***(i)* Private aircraft.** — Every private aircraft shall be flown by a person holding a valid pilot's licence issued in accordance with the First Schedule:

Provided that—

I. a private aircraft shall not be flown by a person holding a Student Pilot's Licence;

II. a private aircraft shall not be flown by a person holding a Private Pilot's Licence for remuneration or hire of any kind;

III. a private aircraft, shall not be flown at night by a person holding a Private Pilot's Licence, without having a valid night rating;

IV. a private aircraft shall not be flown under the instrument flight rules by a person holding a Private Pilot's Licence, without having a valid instrument rating.

(ii) **Public transport and aerial work aircraft.** — Every public transport or aerial work aircraft (other than a microlight or a glider or a balloon) shall be flown by a person holding an appropriate professional pilot's licence, such as a Commercial, or Airline Transport Pilot's Licence issued in accordance with the First Schedule:

Provided that an aircraft (other than a microlight, a glider or a balloon) which is the property of, or is being used by a duly constituted flying or gliding or ballooning or aerosport club may be flown by a person holding a Student Pilot's or a Private Pilot's Licence for the purpose of receiving instructions or for qualifying, renewal of a licence or for issue of a higher category of licence:

Provided further that an aircraft (other than a microlight or a glider or a balloon) which is the property of, or is being used by, a duly constituted flying or gliding or ballooning or aerosport club flown by a member and carrying a person otherwise than for the purpose of instructing such person in flying, shall not for the purpose of this rule, be deemed to be flown for public transport, if in respect of such carriage, payment is made, either directly or indirectly, to the pilot of the aircraft, or the pilot of the aircraft is a paid employee of the flying or gliding or ballooning or aerosport club, the aircraft shall be deemed to be flown for public transport.

(b) **Flight instructor or assistant flight instructor.** — *(i)* Every aircraft which is being used for the purpose of giving dual instructions in piloting shall carry a person holding an appropriate professional pilots licence, that is, a Commercial, or Airline Transport Pilot's Licence or Pilot's Licence as the case may be, which has an appropriate flight instructors or assistant flight instructors rating in accordance with the First Schedule, or an authorisation issued in writing by the Director General.

(ii) No person other than a person having a flight instructor's or assistant flight instructor's rating shall impart instructions in piloting an aircraft, unless he has been specifically authorised in writing by the Director General to impart such instructions.

(iii) The Director General may specify the requirements for the issuance of authorisation under sub-clauses *(i)* and *(ii)*.

(c) **Flight navigator.** — Every public transport aircraft engaged on a flight without landing over a great circle distance of more than six hundred nautical miles and not equipped with the navigational equipment capable of providing instant and continuous ground position of the aircraft with adequate stand-by arrangements, shall carry on board a Flight Navigator licensed in accordance with the First Schedule, if the total distance between any two consecutive radio navigational fixing aids located within thirty nautical miles of the route of the proposed flight and capable of being used by the aircraft is more than six hundred nautical miles :

Provided that the Director General may require a flight navigator to be carried on board an aircraft on any flight.

(d) **Flight engineer.** — Where a flight engineer is required to be carried on board an aircraft as flight crew member under clause *(f),* he shall be a person holding the appropriate licence in accordance with the First Schedule.

(e) **Flight radio telephone operator.** — An aircraft which is equipped or required to be equipped with radio-apparatus in accordance with the provisions of rule 59 and which communicates by radio telephony, shall carry a person holding a Flight Radio Telephone Operator's Licence or Flight Radio Telephone Operator's Licence (Restricted), as the case may be, issued in accordance with the First Schedule, to operate radio-apparatus on such aircraft.

(f) **Minimum crew for any flight.** —The number and description of the flight crew members operating any flight of an aircraft registered in India shall be —

(i) if a certificate of airworthiness in respect of the aircraft is in force at least the number and description of persons specified as the minimum operating crew for that aircraft in the certificate of airworthiness;

(ii) if no certificate of airworthiness in respect of the aircraft is in force, but a certificate of airworthiness in respect of that aircraft has previously been in force, at least the number and description of persons specified as the minimum operating crew in the certificate of airworthiness last in force of that aircraft;

(iii) if no certificate of airworthiness in respect of the aircraft is or has been in force and the aircraft is a series aircraft conforming with a prototype (modified) aircraft in respect of which a certificate or airworthiness has been issued, at least the number and description of persons specified as the minimum operating crew in that certificate of airworthiness;

(iv) in all other cases, at least such number and description of persons sufficient to ensure the safety of the aircraft as may be approved by the Director General.

115. Carriage of cabin crew.— *(1)* No aircraft registered in India shall be operated for public transport of passengers unless the minimum number of cabin crew as provided in Table below, are on board the aircraft for the purposes of performing such duties as may be assigned in the interest of the safety of passengers, by the operator or the pilot-in-command of the aircraft, namely: —

Table

Sl.No.	seating capacity	minimum number of cabin crew
(1)	*(2)*	*(3)*
1.	for an aeroplane having a seating capacity of not less than ten and not more than fifty passengers.	one cabin crew

2.	for a helicopter having a seating capacity of not less than twenty and not more than fifty passengers.	one cabin crew
3.	for an aeroplane or a helicopter cabin having seating capacity of more than fifty passengers.	two cabin crew plus one cabin crew for each unit (or part of a unit) of fifty passengers seats above a seating capacity of ninety-nine passengers.

(2) Notwithstanding anything contained in sub-rule *(1),* if any higher number is specified by the aircraft manufacturer for the type of aircraft being used, then that minimum number of crew members shall be carried on board:

Provided that in case of multi-aisles (single or multi-deck) at least one crew member for each floor level exit and for the purpose of certification, if any higher number of crew member is required to conduct emergency evacuation demonstration then that number of crew member shall be carried on board.

(3) The cabin crew shall be located ─

(a) during take-off and landing as near as possible to the floor level exits; and

(b) at any other time, at a suitable place in the aircraft, so as to provide the most effective exit of passengers in the event of emergency evacuation.

(4) An operator shall ensure that every member of cabin crew meets the requirements of age, qualification, training and medical assessment as specified by the Director General.

(5) Every member of cabin crew shall, before being detailed for duty on board the aircraft, successfully complete an approved course of training followed by periodical approved refresher course concerning evacuation procedure, location and use of emergency equipment and any other requirement as specified by the Director General.

(6) Whenever two or more cabin crew members are assigned to a flight, the operator shall nominate an experienced cabin crew member as a senior cabin crew member, who shall be responsible to the pilot-in-command for the conduct and coordination of cabin safety and emergency procedure specified in the operation manual:

Provided that the senior cabin crew member has an experience of minimum of one year' as cabin crew and has successfully undergone the training as specified by the Director General.

(7) The operator shall cause checks of proficiency in carrying out safety and emergency duties by each cabin crew after completion of training as per sub-rule *(5)* and the checks shall be conducted by the instructors approved, and having qualifications specified, by the Director General.

(8) No cabin crew shall perform duties on more than three types of aircraft.

Explanation. — For the purposes of this sub-rule, types of aircrafts shall be considered to be different types, if they are not similar in all the following aspects, namely: —

(a) emergency exit operation;

(b) location and type of safety equipment; and

(c) emergency procedures

(9) The Director General may, if he is of the opinion that it is expedient so to do, by order and for reasons to be recorded in writing, waive fully or partially, the requirement of sub-rule *(1).*

116. Flight dispatcher approval.— *(1)* No operator shall assign duties to a person as a flight dispatcher without prior approval of the Director General.

(2) An operator may make an application along with the fee as provided under rule 120 to the Director General for obtaining approval of flight dispatcher.

(3) The Director General may specify the requirements for approval of flight dispatcher.

(4) The Director General may, on being satisfied that a person has met all the requirements to act as a flight dispatcher, grant an approval of flight dispatcher to operator.

(5) The approval granted under sub-rule *(4),* unless suspended or cancelled, shall remain valid for a period not exceeding five years, and on being satisfied, the Director General may renew it for a further period not exceeding five years at a time.

C. Organisation

117. Approved training organisations.— *(1)* In this rule 'training organisation' refers to an organisation or a person engaged in one or more of the following training activities, namely:—

(a) training on aircraft not exceeding 5700 kg. all-up-weight for students to acquire flying experience and the level of competency required for obtaining a licence or rating as specified under clause *(a)* to *(n)* of sub-rule *(1)* of rule 69;
(b) training course for students to enable them to attain the level of competency required for obtaining a licence or rating as specified under clause *(o)* to *(v)* of sub-rule *(1)* of rule 69;
(c) training course for students to enable them to attain the level of competency required for obtaining an Aircraft Maintenance Engineer's Licence specified under rule 85;
(d) training course for flight crew, air traffic controller's or other aviation personnel to enable them to attain the level of competency required for obtaining a English language proficiency of operational level or testing of aviation English language proficiency specified under these rules;
(e) training course for personnel involved in design or manufacturing activities for design or manufacturing organisations under rule 66.

(2) A training organisation shall have the requisite infrastructure, adequate facilities, qualified and trained manpower including post holders, instructors or examiner as may be specified by the Director General.

(3) The training organisation shall have manual in the form and manner as specified by the Director General and such manual shall be submitted to the Director General for its approval or acceptance, as the case may be.

(4) No training organisation shall engage in one or more of the activities listed under sub-rule *(1)* unless an approval is granted by the Director General and the request for such approval shall be made to the Director General in such form and manner as specified by him along with the fee provided under rule 120.

(5) The Director General may, on being satisfied that all the requirements pertaining to the setting up of a training organisation have been complied with, grant an approval to the training organisation subject to such conditions as may be specified in the approval.

(6) Every training organisation which is engaged in the training activities mentioned in clauses *(a), (b)* or *(c)* of sub-rule *(1)* shall establish and maintain a safety management system as specified by the Director General.

(7) (a) For the approval of activities mentioned under clause *(a)* of sub-rule *(1)*, the training organisation shall, in the first instance, obtain a no objection certificate by making an application in the prescribed format to the Director General along with a fee provided under rule 120;

(b) The no objection certificate obtained under clause *(a)* shall be valid for a period of two years from the date of its issuance and may be extended by one year at a time on payment of fee provided under rule 120 subject to the satisfaction of the Director General regarding progress towards meeting the requirements of sub-rule *(2)* and *(3);*

(c) The holder of a valid no objection certificate may apply to the Director General for issuance of approval of the training organisation in the prescribed format along with fee provided under rule 120.

(8) The approval of training organisation shall, unless suspended or cancelled, remain valid for a period not exceeding five years, and on being satisfied, the Director General may renew the approval for a further period not exceeding five years at a time.

(9) A training organisation or a person may approach to the Director General at any time for extension of the scope of his work along with fee provided under rule 120 and the Director General, on being satisfied that the specified requirements have been complied with, may grant approval for extension of scope as requested, or to a specific level, as he deems fit, and the approval of the extension of scope, if any, granted under this sub-rule, shall be valid only up to the date of validity of the original approval.

(10) The training records of the organisation shall be maintained in a manner specified by the Director General and shall be produced on demand to the Director General or any other officer authorised by him in this behalf.

(11) An approved training organisation shall revise its manuals from time to time whenever necessary as a result of changes in organisation, changes in its scope and changes in practices and procedures, and any revision of manual shall be subject to the prior approval or acceptance, of the Director General.

(12) Without prejudice to the provisions of any rule, the Director General may, after giving an opportunity of being heard to the training organisation or a person, cancel, suspend or restrict any approval or issue a warning or an admonition to the organisation or the person, where he is satisfied that, ─

(a) any of the conditions of the approval or the requirements specified by the Director General are not being complied with;
(b) the training organisation or the person has performed work or granted a certificate in respect of work which has not been performed in a careful or competent manner, or has performed work beyond the scope of it or his approval, or failed to make proper entries and certification thereof, or for any other reason considered by the Director General as sufficient to cancel, suspend or restrict an approval granted under this rule, or to issue a warning or an admonition;
(c) the holder of the approval has failed to maintain safe, efficient and reliable training organisation; or
(d) the approval of the training was obtained by suppressing any material fact or furnishing wrong information.

(13) Notwithstanding anything contained in sub-rule *(12),* if the Central Government is of the opinion that in the interest of public safety it is necessary to do so, it may, for reasons to be recorded in writing, summarily suspend the approval of a training organisation with a view to make further enquiry.

(14) The organisation shall not impart training activities mentioned under sub-rule *(1)*, unless it is included in the scope of its activities, and has been duly approved by the Director General.

118. Acceptance of foreign approved training organisation.— *(1)* Notwithstanding anything contained in rule 117, the Director General may accept a foreign approved training organisation, for the purpose of training in accordance with the requirements specified by the Director General in this behalf.

(2) The acceptance granted under sub-rule *(1),* unless suspended or cancelled, shall remain valid for a period not exceeding two years, and on being satisfied, the Director General may renew it for a further period not exceeding two years at a time.

(3) Without prejudice to the provisions of these rules, the Director General may, after making such enquiry as he may deem fit, and after giving an opportunity of being heard to the organisation referred to in sub-rule *(1),* cancel, suspend or restrict any acceptance or issue a warning or an admonition to the said organisation, where he is satisfied that, —

(a) the requirements specified by the Director General are not being complied with; or

(b) the organisation has not performed work or granted a certificate in respect of work which has not been performed in a careful or competent manner, or has performed work beyond the scope of its acceptance, or failed to make proper entries and certification thereof, or for any other reason considered by the Director General as sufficient to cancel, suspend or restrict an acceptance granted under this rule, or to issue a warning or an admonition.

119. Flight simulation training device qualification certificate.— *(1)* An organisation may make an application along with the fee as provided under rule 120,

to the Director General for a qualification certificate of flight simulation training device or for the validation of a qualification certificate issued by the civil aviation authority of a contracting State in respect of a flight simulation training device.

Explanation. — For the purpose of this sub-rule *(1),* the organisation means:

(a) an operator;
(b) a training organisation approved under these rules; or
(c) a training organisation approved by civil aviation authority of a contracting State for operating and maintaining flight simulation training device.

(2) The Director General may specify the requirements for qualification certificate or validation of flight simulation training device and the type of trainings which can be imparted on such devices.

(3) The Director General may on being satisfied that it met all the requirements, issue a qualification certificate or validate the qualification certificate of flight simulation training device issued elsewhere, as the case may be.

(4) No airline operator shall use such qualified or validated flight simulation training device for the training of their personnel without obtaining written permission from the Director General, in the form and manner as specified by him.

(5) If the Director General is satisfied that there is sufficient ground for doing so, after giving him an opportunity of being heard and reasons to be recorded in writing, may suspend or cancel such certificate or validation, as the case may be.

(6) The qualification certificate or validation granted under sub-rule *(3),* unless suspended or cancelled, shall remain valid for a period not exceeding two years, and on being satisfied, the Director General may renew it for a further period not exceeding two years at a time.

D. Fee

120. Fee.— *(1)* The following fee shall be payable for the issue, renewal and validation of licences and ratings mentioned under clause *(a)* to *(n)* of sub-rule *(1)* of rule 69 or the issue of duplicate licences and for the tests and examinations for such licences and ratings, namely: —

Table

Sl. No.	Description	Fee
(1)	*(2)*	*(3)*
1.	for tests and examinations for licences and ratings	Rs. 500 per paper;
2.	for issue or validation of a licence or rating for Student Pilot's Licence and Glider Pilot's Licence	Rs. 1,000;
3.	for renewal of a licence or rating for Student Pilot's Licence and Glider Pilot's Licence	Rs. 500;
4.	for issue or validation of a licence or rating other than Student Pilot's Licence and Glider Pilot's Licence	Rs. 5,000;
5.	for renewal of a licence or rating other than Student Pilot's Licence and Glider Pilot's Licence	Rs. 2,500;
6.	for issue of duplicate Student Pilot's Licence and Glider Pilot's Licence	Rs. 250;
7.	for issue of duplicate licence or rating other than Student Pilot's Licence and Glider Pilot's Licence	Rs. 500;
8.	for issue of duplicate result sheet of examination	Rs.500;
9.	where the examination is conducted online	Rs. 2,500 per paper;
10.	where the examination is conducted online on demand	Rs. 5,000 per paper.

(2) For all flying tests, the candidate or operator, as the case may be, shall be required to provide the aircraft or flight simulator and bear all charges in this respect, and if a Government examiner is carried on board during the flying test or standardisation check, the following fee shall be payable to the Central Government, namely:-

Table

Sl. No.	Description	Fee
(1)	(2)	(3)
1.	for a single-engine aircraft	Rs 5,000;
2.	for a multi-engine aircraft with maximum permissible take-off weight below 5,700 kg.	Rs.10,000;
3.	for a multi-engine aircraft with maximum permissible take-off weight of 5,700 kg. and above upto 50,000 kg.	Rs.50,000;
4.	for a multi-engine aircraft with maximum permissible take-off weight above 50,000 kg.	Rs.1, 00,000.

(3) For approval or renewal of check pilots, type rating instructor, synthetic flight instructor, synthetic flight examiner, designated examiners, flight engineer examiner or examiners, the following fee shall be payable, namely: —

Table

Sl. No.	Description	Fee
(1)	(2)	(3)
1.	approval of check pilots, type rating instructor, synthetic flight instructor, Synthetic flight examiner, designated examiners, examiners, flight engineer examiner or check flight engineers	Rs. 10,000;
2.	renewal of check pilots, type rating instructor, synthetic flight instructor, Synthetic flight examiner, designated examiners, examiners, flight engineer examiner or check flight engineers	Rs. 5,000.

(4) When in any case the licence or rating is not issued, validated, renewed or revalidated or a duplicate licence or rating is not issued, the Central Government may order the refund to the applicant of a proportionate part of the sum paid as fees.

(5) (a) Issuance, renewal or endorsement in the scope of a licence, authorisation, approval or certificate of competency in respect of aircraft maintenance engineers or authorised persons or approved persons or certificate of competency holders under rule 85:

Table

Sl. No.	Description	Fee
(1)	(2)	(3)
1.	*(A)* for normal examination	Rs 500 per paper;
	(B) for online examination	Rs 1,500 per paper;
	(C) for online examination on demand examination	Rs. 3,000 per paper;
2.	for issue or validation of licence or rating, authorisation, approval or certificate of competency	Rs.5,000;
3.	for renewal of licence, rating, authorisation, approval or certificate of competency	Rs.2,500;
4.	for issue of duplicate licence, Rating, authorisation, approval or certificate of competency	Rs. 500;
5.	for any amendment in licence	Rs. 500.

(b) An additional amount of two lakh fifty thousand rupees or travel expenses including local conveyance, hotel charges and dearness allowance per person, whichever is

higher, shall be payable, if the inspection, examination or test specified in sub-rule *(1)* is required to be carried out at any place outside India.

(c) Where for any reason, the licence or authorisation or certificate, is not issued, renewed or validated, as the case may be, the Director General may refund to the applicant such portion of the fees paid as represents the cost of any examination or test or inspection not carried out or any licence, authorisation or a certificate not issued or renewed or validated, as the case may be.

(6) (a) A candidate who applies for the licence mentioned under clauses *(o)* and *(p)* of sub-rule *(1)* of rule 69, its renewal, or endorsement of a rating mentioned under clause *(q)* to *(v)* of sub-rule *(1)* of rule 69, shall pay the following fees, namely: —

Table

Sl. No.	Description	Fee
(1)	(2)	(3)
1.	for issue of a Student Air Traffic Controller's Licence:	Rs. 1,000;
2.	for renewal of a Student Air Traffic Controller's Licence:	Rs. 500;
3.	for issue of an Air Traffic Controller's Licence :	Rs. 20,000;
4.	for renewal of an Air Traffic Controller's Licence:	Rs. 10,000;
5.	for endorsement of rating including concurrent rating on Air Traffic Controller's Licence:	Rs. 1,000.

Explanation.— The fee specified against serial numbers 3 and 4 of the Table includes the fee for endorsement of any rating on the licence at the time of issue or renewal of licence.

(b) The applicant shall be required to bear all charges in respect of the assessment, if any, and if a Government examiner is associated during the assessment, a fee of ten thousand rupees shall be payable for each assessment.

(7) (a) The following fee shall be payable for the Radio Telephone Operator (Restricted) Certificate and Licence examination, namely: —

Table

SI No.	Description	Fee
(1)	(2)	(3)
1.	written examination	Rs. 2,000 per examination;
2.	practical examination	Rs. 500 per examination.

(b) The fee for issuance of Radio Telephone Operator (Restricted) Certificate and Licence shall be rupees five thousand.

(c) The fee for issuance of duplicate certificate and licence shall be rupees five hundred.

(8) Fee for approval as flight dispatcher shall be rupees five thousand only and fee for renewal of flight dispatcher approval shall be rupees two thousand five hundred only.

(9) The following fee shall be payable for —

(a) obtaining no objection certificate under clause *(a)* of sub-rule *(7)* of rule 117: fifty thousand rupees.

(b) extension of no objection certificate under clause *(b)* of sub-rule *(7)* of rule 117: twenty-five thousand rupees.

(c) approval under rule 117 in respect of a training organisation engaged in the activities mentioned under clause *(a)* of sub-rule *(1)* of rule 117: two lakh rupees.

(d) renew of approval under rule 117 in respect of a training organisation engaged in the activities mentioned under clause *(a)* of sub-rule *(1)* of rule 117: one lakh rupees.

(10) Following fee shall be payable for approval, renewal or extension of scope under rule 117, in respect of a training organisation engaged in the activities mentioned under clause *(b)* of sub-rule *(1)* of rule 117:

(a) approval: four lakh rupees.

(b) renewal or extension of scope of approval on each occasion: two lakh rupees.

(11) (a) The following fee shall be payable for approval under rule 117, in respect of training organisation engaged in the activities mentioned in clauses *(c), (d)* and *(e)* of sub-rule *(1)* of rule 117, having—

Table

Sl No.	Description	Fee
(1)	(2)	(3)
1.	fifty employees	Rs.2,00,000;
2.	more than fifty and upto two hundred	Rs.4,00,000;
3.	more than two hundred employees	Rs. 8, 00,000.

(b) The fee for renewal or extension of scope of approval under rule 117 in respect of training organisations engaged in the activities mentioned in clauses *(c), (d)* and *(e)* of sub-rule *(1)* of rule 117 or acceptance of approval or extension of acceptance under rule 118 shall be fifty per cent. of the fee payable under clause *(a)* of sub-rule *(11).*

(c) An additional amount of two lakh fifty thousand rupees or travel expenses including local conveyance, hotel charges and dearness allowance per person, whichever is higher, shall be payable, if the inspection, audit or surveillance for the grant or renewal or extension of approval is required to be carried out at any place outside India.

(d) An additional amount of two lakh fifty thousand rupees or travel expenses including local conveyance, hotel charges and dearness allowance per person, whichever is higher, shall be payable, if the inspection, audit or surveillance in respect of

acceptance of approval or renewal of acceptance or extension of acceptance under rule 118 is required to be carried out at any place outside India.

(e) No fee shall be charged from an organisation or person under this sub-rule for storage, distribution and supply of aircraft fuel, lubricants and similar other products intended to be used for its own aircraft.

(12) (a) Following fee shall be payable for—

Table

Sl No.	Description	Fee
(1)	(2)	(3)
1.	qualification certificate or validation of flight simulation training device for aircraft type having maximum permissible take-off weight more than 5700 kg.	two lakh rupees;
2.	renewal of such certificate or validation	one lakh rupees.

(*b)* Following fee shall be payable for—

Table

Sl No.	Description	Fee
(1)	(2)	(3)
1.	qualification certificate or validation of flight simulator training device for aircraft type having maximum permissible take-off weight up to 5700 kg.	one lakh rupees;
2.	renewal of such certificate or validation	fifty thousand rupees.

(c) An additional amount of two lakh fifty thousand rupees or cost of travel including per diem, whichever is higher, shall be payable, if the inspection, audit or surveillance

in respect of issue or renewal of validation of qualification certificate of a flight simulator training device is required to be carried out at any place outside of India.

(13) The fee shall be paid electronically in the manner specified by the Director General.

CHAPTER V

AERODROME

121. Aeronautical beacon and aeronautical ground lights.— *(1)* No aeronautical beacon or aeronautical ground light shall be established or maintained within India nor shall the character of the light exhibited therefrom be altered except with the approval in writing of the Central Government and subject to such conditions as may be specified therein.

(2) No person shall willfully or negligently endanger or interfere with any aeronautical beacon or aeronautical ground light established or maintained by or with the approval of the Central Government or any light exhibited therefrom.

122. False lights.— *(1)* Whenever any light other than laser light is exhibited in the vicinity of an aerodrome within a radius of five nautical miles, so as to be liable to be mistaken for an aeronautical ground lights or an aeronautical beacon and which may—

(a) endanger the safety of an aircraft; or

(b) cause confusion by reason of its intensity, configuration or colour in the clear interpretation of visual aids for navigation denoting obstacles or restricted use areas; or

(c) disrupt safe operation of the aircraft or may pose hazard to the operating crew.

*(2)*The person authorised by aerodrome operator of such aerodrome may issue directions in writing to the owner or person in possession of the place where the light is exhibited or to the person having charge of the light, for taking effectual means for

extinguishing or for effectually screening or otherwise modifying the light with immediate effect and for preventing in future the exhibition of any similar light.

(3) If any owner or person to whom a written direction under this rule is issued, neglects for a period of twenty-four hours to extinguish or effectually to screen the light mentioned in the directions, the person who issued such directions under sub-rule *(2)* shall report the matter to civil or police authority having jurisdiction for initiating the action of commission of offence as provided under section 283 or 285 or both of the Bharatiya Nyaya Sanhita, 2023 (45 of 2023) and Directorate General of Civil Aviation along with assessment report including mitigation measures adopted to reduce the hazard to aircraft safety.

(4) In case the source of the light observed by the operating crew of any aircraft is not located or the use of such light is not from a determined place or the source of emission of light is shifting from one place to another then the operator of the concerned aerodrome shall immediately report the matter to the civil or police authority having jurisdiction for initiating action for commission of offence as provided under section 283 or 285 or both of the Bharatiya Nyaya Sanhita, 2023 (45 of 2023) .

123. Laser Lights.— *(1)* No person shall use a laser beam or laser light within ten nautical miles from the aerodrome reference point, for any purpose including but not limited to advertisement, entertainment and for visual display without specific written permission from the operator of such aerodrome.

(2) The operator of such aerodrome shall ensure that the use of laser light does not affect the safety of flight operations in any way prior to according such approval.

124. Licensing of aerodromes.— *(1)* No aerodrome other than a defence aerodrome or an aerodrome intended for operations with aircraft having a seating capacity not exceeding nineteen passengers shall be used as a regular place of landing and departure by a scheduled air transport service or for a series of landings and departures by any aircraft carrying passengers or cargo for hire or reward unless, —

(a) it has been licensed for the purpose, and save in accordance with the conditions specified in such licence; or

(b) it has been approved by the Director General, subject to such conditions as he may deem fit to impose, for the purpose of operation of flights in the event of national or international crisis, natural calamities, emergencies or otherwise requiring such flights to carry material goods for relief purposes, or for giving joyrides for hire or reward or for any other purpose as necessary; or

(c) in the case of an aerodrome intended for operations with aircraft having a seating capacity not exceeding nineteen passengers, it has been authorised by the Director General:

Provided that any person already permitted and operating scheduled air transport services to an aerodrome before the 02nd November, 2004, may continue operation of such services till the aerodrome operator obtains the licence from the Director General by the date to be notified by the Central Government.

(2) A defence aerodrome shall not be used as a regular place of landing and departure by a scheduled air transport service, unless it has been certified as per the requirements specified by the Director General:

Provided that nothing contained in this sub-rule shall apply to a defence aerodrome, for such a period as may be notified by the Central Government in the Official Gazette.

(3) An aerodrome shall be licensed by the Central Government in one of the following categories, namely: ─

(a) for public use;

(b) for private use, which means to use by the licencee and by individuals specifically authorised by the licencee.

(4) An aerodrome may be licensed for all types of aircraft or for certain specified types or classes of aircraft and the licence may specify the conditions on which the aerodrome may be used.

(5) No person shall operate or cause to be operated any flight from a temporary aerodrome or an aerodrome which has not been licensed or approved or authorised, as the case may be**,** under these rules, unless it meets the minimum safety requirements specified by the Director General.

125. Qualifications of licencee.– A licence for an aerodrome shall not be granted to any person other than –

(a) a citizen of India; or

(b) a company or a body corporate registered in India which is having its principal place of business in India and it meets the equity holding criteria specified by the Central Government; or

(c) the Central Government or a State Government or any company or any corporation owned or controlled by either Central Government or State Government; or

(d) a society registered under the Societies Registration Act, 1860 (21 of 1860); or

(e) a trust registered under the Indian Trust Act, 1882 (2 of 1882) or under any State legislation.

126. Procedure for grant of licence.— *(1)* An application for the grant of licence for an aerodrome shall be made to the Director General along with the aerodrome manual.

(2) The application under sub-rule *(1)* shall be in such form and contain such particulars as may be specified by the Director General along with the fee provided under rule 133.

(3) The Director General may, for disposal of the application, require the applicant to furnish any additional information which he considers necessary.

(4) The Director General may also require the applicant to produce evidence in support of any information furnished in the application.

127. Aerodrome manual.— *(1)* An aerodrome manual, in the form as specified by the Director General, shall be maintained by the licencee in respect of aerodrome, licensed under these rules.

(2) A copy of the aerodrome manual or such part of the manual as may be specified by the Director General, shall be made available by the licencee to all units of the aerodrome.

128. Inspection.— *(1)* Any person, authorised by the Director General by general or special order in writing in this behalf, shall have unrestricted and unlimited access to inspect and carry out tests on the aerodrome facilities, services and equipment, inspect aerodrome operator's documents and records, and verify the aerodrome operator's safety management system before the aerodrome licence is granted or renewed and subsequently, at any other time, for the purpose of surveillance to ensure safety and order at the aerodrome.

(2) The aerodrome operator shall allow the person so authorised, access to any part of the aerodrome or any aerodrome facility, including equipment, records, documents and operator's personnel and shall co-operate during the inspection as referred to in sub-rule *(1).*

129. Conditions governing the grant of licence.— *(1)* An aerodrome licence shall be granted or renewed subject to such conditions as the Director General considers necessary to ensure compliance with the Convention and the safety of aircraft operations.

(2) While an aerodrome licence is in force, no alterations to the landing area or to the buildings or other structures on the aerodrome which may affect the safety of aircraft shall be undertaken, save with the previous approval of the Director General ,and application for such approval shall be addressed to the Director General and shall be accompanied by full particulars with plans of any such alterations including alterations to surrounding obstructions which may affect the safety of aircraft.

(3) The necessary approval may be granted or withheld and if granted, may be granted subject to such conditions including conditions involving a revision of the original conditions of licence as the Director General may think fit.

(4) If any alteration of the nature referred to in sub-rule *(2)* is undertaken without the previous approval under said sub-rule, the Director General may suspend or impose the restriction on the aerodrome licence**.**

(5) The licencee shall maintain the aerodrome in a fit state for use by aircraft and adequately marked to the satisfaction of the Director General during the whole period of the validity of the licence and shall, if the aerodrome becomes unserviceable, immediately inform the Director General.

(6) The Director General may impose operating restriction on the licence, in the event of non-compliance with any condition imposed under sub-rule *(1)* or if any safety concern emerges during the aerodrome inspection and remains unresolved beyond the period specified by the Director General.

130. Period of validity of licence.— An aerodrome licence may be granted for any period not exceeding five years, and on each occasion of renewal, may be renewed for any period not exceeding five years.

131. Public aerodromes.— *(1)* Every aerodrome which is licensed for public use or which is open to public use, by aircraft registered in India upon payment of charges shall to the same extent and upon the same conditions, be open to use by aircraft possessing the nationality of any other contracting State.

(2) Every such aerodrome shall be open to use by any aircraft in the service of the Central Government.

132. Tariff charges.— *(1)* At every aerodrome referred to in rule 131, there shall be exhibited in a conspicuous place applicable tariff charges, including charges for landing and length of stay, and such tariff shall be applicable alike to all aircraft whether registered in India or in any other contracting State.

(2) In the case of aerodromes belonging to the Authority, the charges mentioned in sub-rule *(1)* shall be levied by the Authority in accordance with the provisions of the Airports Authority of India Act, 1994 (55 of 1994).

(3) In the case of licensed public aerodromes other than the aerodromes belonging to the Authority, the charges mentioned in sub-rule *(1)* shall be determined by the licencee in accordance with the principle of cost recovery as specified by the International Civil Aviation Organisation and such charges shall be notified by the licencee with the approval of the Central Government or any authority constituted in this behalf by such Government.

(4) Notwithstanding anything contained in sub-rules *(2)* and *(3),* in the case of a major airport, the tariff of charges referred to in sub-rule *(1)* shall be such as may be determined under clause *(a)* of sub-section *(1)* of section 13 of the Airports Economic Regulatory Authority of India Act, 2008 (27 of 2008).

Explanation.– For the purpose of this rule, "Authority" means the Airports Authority of India constituted under section 3 of the Airports Authority of India Act, 1994 (55 of 1994).

133. Fee.— *(1)* The fee chargeable for the grant of a licence or authorisation for an aerodrome shall be as per the Table below, namely : —

Table

SI No.	Description	Fee
(1)	(2)	(3)
1.	when the licence is granted for private use	Rs.1, 00,000;
2.	when the licence is granted for public use	Rs.5, 00,000 upto runway length of 5,000 feet plus Rs 2, 00,000 for every 1,000 feet or part thereof;
3.	when the authorisation is granted for public or private use	Rs.1, 00,000.

(2) The fee chargeable for renewal of licence or authorisation of an aerodrome shall be fifty per cent. of the fee chargeable for the grant of licence or authorisation.

(3) The fee shall be paid electronically in the manner as specified by the Director General.

134. Passenger service fee.— *(1)* The airport licencee may collect fees to be called the passenger service fee from the passengers at such rate as the Central Government may specify.

(2) The airport licencee shall utilise the fees so collected for the infrastructure and facilitation of the passengers:

Provided that the rate of fees in respect of major airports shall be as determined under clause *(c)* of sub-section *(1)* of section 13 of the Airports Economic Regulatory Authority of India Act, 2008 (27 of 2008).

135. User development fee.— The licencee may, —

(i) levy and collect at a major airport the user development fee at such rate as may be determined under clause *(c)* of sub-section *(1)* of section 13 of the Airports Economic Regulatory Authority of India Act, 2008 (27 of 2008);

(ii) levy and collect at any other airport the user development fees at such rate as the Central Government may specify.

136. Entry into public aerodromes.— *(1)* No person shall enter or be in the terminal building of any Government aerodrome or public aerodrome or part of such building or any other area in such aerodrome notified in this behalf by the Central Government unless he holds an admission ticket issued by the aerodrome operator or an entry pass issued by the Director General of Bureau of Civil Aviation Security or any person authorised by the Central Government in this behalf.

(2) No person, without permission in writing, by general or special order, of the Central Government or any officer authorised by that Government in this behalf, shall –

(a) enter or remain or cause any other person to enter or remain in the movement area;
(b) leave or throw or cause to be thrown any animal, bird or property or object of any nature whatsoever in the movement area;
(c) permit any animal under his possession or control or otherwise to stray in the movement area; and
(d) operate any vehicle in the movement area.

(3) Sub-rules *(1)* and *(2)* shall not apply to–

(a) any passenger embarking, disembarking or in transit who holds an air ticket; or
(b) any person who is engaged on regular duty at an aerodrome and holds a photo identity card issued by the Director General of Bureau of Civil Aviation Security or any person authorised by the Central Government in this behalf.

(4) Notwithstanding anything contained in this rule, the officer in-charge of an aerodrome or any person authorised by the Central Government in this behalf, as the case may be, may, if he is satisfied that it is necessary or expedient so to do for the maintenance of proper order or decorum –

(i) refuse admission to any person into the terminal building or the movement area;or

(ii) require any person in such building or such area to leave the same.

137. Prohibition of slaughtering and flaying of animals, depositing of rubbish, etc.— *(1)* No person shall slaughter or flay any animal or deposit or drop any rubbish, filth, garbage or any other polluted or obnoxious matter including such material from hotels, meat shops, fish shops and bone-processing mills or develop any facility which attracts or is likely to attract wildlife activities within a radius of ten kilometers from the aerodrome reference point:

Provided that the local authority having jurisdiction around such aerodrome may, if satisfied that proper and adequate arrangements have been made by the owners of hotels, meat shops, fish shops, bone-processing mills or any other facility, so as to prevent attraction of wildlife, vultures or other birds and animals, having regard to the vicinity of the place of slaughter from the aerodrome and arrangements for disposal or deposit of carcass, rubbish and other polluted and obnoxious matter, grant permission in writing for such purpose after receipt of a verification report from the aerodrome operator.

(2) In case of contravention of sub-rule *(1),* the local authority having jurisdiction around such aerodrome shall take action against the owner or person in possession of the place where such activity is taking place in the same manner as is followed in case of unauthorised activities in their jurisdiction.

138. Ground handling services.— *(1)* An aerodrome operator shall, while providing ground handling service by itself, ensure a competitive environment by allowing the airline operator at the airport to engage, without any restriction, with any ground handling service provider, who are permitted by the Central Government to provide such services:

Provided that such ground-handling service provider shall be subject to the security clearance of the Central Government.

(2) No ground handling service provider shall provide ground handling services at an aerodrome used as a regular place of landing and departure by a scheduled air transport undertaking, unless it meets the requirements as specified by the Director General and has been approved by him.

139. Provision of air traffic services at an aerodrome.— The Director General may direct an aerodrome operator to make provision for air traffic services, aerodrome flight information service or a means of two-way radio communication or any other service, as deemed fit in the interest of safety of aircraft operations.

CHAPTER VI

AIR NAVIGATION SERVICES

A. Air Traffic Management

140. Fatigue management of air traffic controllers.— *(1)* The Director General may specify watch duty time limitations and minimum rest requirements for air traffic controllers.

(2) No air traffic controller shall contravene the watch duty time limitations and rest requirements specified by the Director General under sub-rule *(1).*

(3) The air navigation service provider shall establish a scheme of watch duty time limitations and minimum rest requirements for its Air Traffic Controllers as specified by the Director General under sub-rule *(1).*

141. Provisioning of air traffic services.—The air traffic service provider shall ensure that it is able to provide its services in a safe, efficient, continuous and sustainable manner, consistent with any foreseen level of overall demand for a given airspace.

142. Classification of airspace.— The air traffic service provider shall classify the airspace and publish such classification and may amend any classification, in accordance with procedures developed and published by the air navigation service provider for making such amendments.

143. Co-ordination procedures.— The air traffic service provider shall establish and maintain co-ordination procedures with military authorities responsible for activities that may affect flights of civil aircraft.

144. Airspace management.— The air traffic services provider shall establish procedures for flexible use of airspace reserved for military or other special activities.

145. Air traffic flow management.— The air navigation service provider shall implement air traffic flow management for airspace, at times where air traffic demand

exceeds, or is expected to exceed the declared capacity of the air traffic control services concerned.

146. Time in air traffic services.— *(1)* Air traffic service units shall be equipped with clocks indicating the time in hours, minutes and seconds.

(2) Clocks and other time recording devices shall be checked periodically to ensure correctness of time to within plus or minus thirty seconds of coordinated universal time.

(3) Wherever data link communications are utilised by an air traffic services unit, clocks and other time-recording devices shall be checked periodically to ensure correctness of time within one second of co-ordinated universal time.

(4) The correct time shall be obtained from a standard time station, or if not possible, from another unit which has obtained time from such station.

147. Contingency plans.— The air traffic service provider shall have in place contingency plans for all the events that may result in significant degradation or interruption of its services.

B. Communications, Navigation and Surveillance

148. Aeronautical station operator.— Every aeronautical station operator forming a part of flight information service shall operate in accordance with the requirements as specified by the Director General.

149. Certification of communication, navigation and surveillance equipment or air traffic management facilities.— *(1)* No person shall permit or cause to be permitted any communication, navigation and surveillance of air traffic management equipment facility in an international aerodrome, to be established or used unless it has been certified by the Director General:

Provided that the Director General may approve a facility for temporary use subject to such conditions as he may deem fit to impose, for the purposes of operation of air traffic services or aircraft operation or navigation in the event of national crisis, natural calamities, emergencies or otherwise requiring operation of such facilities:

Provided further that any person already permitted and operating communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station before the commencement of these rules may continue operation of such services till he obtains the certificate from the Director General by the date to be notified by the Central Government.

(2) This rule shall not apply in respect of any communication, navigation, surveillance or air traffic management facility, whose establishment and operation—

(a) is under the control of military authorities and is primarily for the military use;

(b) is for testing purposes, and not used for supporting air traffic services or not used for aircraft operation or navigation.

(3) Nothing in this rule shall exempt any person from the provisions of the Telecommunications Act, 2023 (44 of 2023) and the rules made thereunder for establishment and operation of communication, navigation, surveillance or air traffic management facility, for air traffic services and aircraft operation at an aeronautical telecommunication station.

150. Eligibility for grant of certificate.— A certificate for communication, navigation, surveillance or air traffic management facilities to be established or used at an aeronautical telecommunication station in support of air traffic services or aircraft operation may be granted-

(a) to a company or a body corporate set up for the purpose of providing communication, navigation, surveillance or air traffic management facility by the Central Government or to an air navigation service provider approved for the purpose by the Director General;

(b) to an aerodrome licence holder for establishing a navigational facility primarily for use as landing aid to support instrument let down procedure.

151. Procedure for grant of certificate.— *(1)* An application for the certification for communication, navigation, surveillance or air traffic management facility to be established or used at an aeronautical telecommunication station in support of air

traffic service or aircraft operation or navigation shall be made to the Director General along with the communication, navigation and surveillance manual.

(2) The application under sub-rule *(1)* shall be in such form and contain such particulars as may be specified by the Director General.

(3) The Director General may, for disposal of the application, require the applicant to furnish any additional information which he considers necessary.

(4) The Director General shall certify a communication, navigation, surveillance or air traffic management facility, subject to any conditions as may be considered necessary.

152. Communication, navigation, surveillance or air traffic management facility manual.— *(1)* Every holder of certificate shall have a communication, navigation and surveillance manual in the form as specified by the Director General containing the information provided in paragraph 2 of the Third Schedule and approved copy of the manual shall be maintained by the holder of certificate in respect of all communication, navigation, surveillance or air traffic management facilities, certified under these rules.

(2) A copy of the manual or such part of the manual as may be specified by the Director General shall be made available by the holder of certificate to all units.

153. Period of validity of certificate.— The Director General may grant the certification of communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station in an international aerodrome, for a period not exceeding five years, and on each occasion may be renewed for any period not exceeding two years.

154. Fee.— *(1)* No certificate of communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station shall be granted unless there shall be paid the fees specified in the following Table, namely: —

Table

Sl No.		communication facility	fee (in rupees)
(1)	*(2)*	*(3)*	*(4)*
(A)	*(i)*	standalone very high frequency transmitter or receiver, digital automatic terminal information system, high frequency transmitter or receiver, data links (including standby frequency) in operation.	Rs. 50,000 Rs. 50,000, upto five frequencies and 20,000 for each frequency;
	(ii)	automatic message switching system air traffic services message handling system	Rs. 50,000;
	(iii)	master clock system	Rs. 15,000;
	(iv)	stations equipped with voice controlled communication system with very high frequency transmitter or receiver, high frequency transmitter or receiver, inter unit communication and other accessories for capacity . (a) up to 50 controller work stations (b) for each additional work stations above 50	 Rs. 50,000 Rs. 5,000;
(B)		navigation systems	
	(i)	non-directional beacon or locator, marker	Rs. 50,000;
	(ii)	distance measuring equipment	Rs. 50,000;
	(iii)	very high frequency omni-range or doppler very high frequency omni - range	Rs. 1,00,000;
	(iv)	instrument landing system or distance measuring equipment	Rs. 2,00,000;

	(v)	co-located very high frequency omni-range or doppler very high frequency omni-range and distance measuring equipment	Rs. 1,25,000;
(C)		surveillance facility	
	(i)	airport surveillance radar	Rs. 2,00,000;
	(ii)	air route surveillance radar	Rs. 2,00,000;
	(iii)	monopulse surveillance secondary radar	Rs. 2,00,000;
	(iv)	surface movement radar without multi-lateration	Rs. 2,00,000;
	(v)	automatic dependent surveillance-broadcast or contact	Rs. 2,00,000;
(D)		air traffic management facility	
	(i)	air traffic management automation system with facilities like radar data processing system, flight data processing system, automatic self briefing system	Rs. 10,00,000;
	(ii)	advanced surface movement guidance control system (surveillance and multi-lateration components)	Rs. 3,00,000;
	(iii)	ground based augmentation system	Rs. 3,00,000;
	(iv)	satellite based augmentation system	Rs. 5, 00,000.

(2) The fee for renewal of certification of communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station shall be fifty per cent. of the fee payable under sub-rule *(1)*.

(3) The fee shall be paid electronically in the manner as specified by the Director General.

155. Conditions governing the grant of certificate.— *(1)* Certification of communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station shall be granted or renewed subject to such conditions as the Director General considers necessary to ensure compliance with the Convention and the safety of air traffic services or aircraft operation or navigation.

(2) While certification is in force, except required for the purpose of maintenance, no change in the system of equipment or configuration, shall be undertaken save with the previous approval of the Director General and application for such approval shall be addressed to the Director General which shall be accompanied with full particulars of such change.

(3) The necessary approval may be granted or withheld, and if granted, may be subject to such conditions as the Director General may consider necessary.

(4) The holder of the certificate shall maintain communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station in a serviceable state as per the provision of certificate for use by air traffic services or aircraft operation or navigation.

156. Notification on availability of facility.—The person in charge of communication, navigation, surveillance or air traffic management facilities at an aeronautical telecommunication station shall notify the type and availability of facility or any service which is available for use by air traffic services or aircraft operation and navigation, in the manner specified by the Director General.

157. Information on the operational status of navigational aids.— While a radio navigation aid is in operation, information on its operational status shall be made available by the holder of the certificate to the concerned air traffic services unit giving the following details, namely: —

(i) services for the aerodrome where the radio navigation aid is located; and

(ii) en-route services using that radio navigation aid.

158. Automatic recording of voice communications, signal and data.— *(1)* The holder of certificate of any communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station and any associated facility required thereto, shall make provision for recording and replaying the messages, voice communication, signals and data transmitted or received through equipment and maintain such records for such period and in such manner as may be specified by the Director General.

(2) If any recording facility provided in compliance with sub-rule *(1)* ceases to be capable of recording the matters required by that sub-rule, it shall be ensured that, as far as practicable, a record of the following is kept in writing, namely: —

(a) a summary of voice communications exchanged between the aeronautical Telecommunication Station and aircraft by air traffic control unit; and

(b) voice communication, message exchanged with other aeronautical telecommunication station.

(3) If any recording facility provided in accordance with sub-rule *(1)* becomes unserviceable, the person-in-charge of communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station shall ensure that the apparatus is rendered serviceable again as soon as possible within reasonably practicable time.

(4) The person-in-charge of communication, navigation and surveillance of air traffic management facility at an aeronautical telecommunication station shall preserve every record for a period of thirty days from the date on which the terms or content of the message, data or signal were recorded for the purpose of investigation or for such longer period as may be specified by the Director General.

(5) The person-in-charge of communication, navigation, surveillance or air traffic management facility at an aeronautical telecommunication station shall produce such record to investigating official or to any other person authorised by Director General.

159. Aeronautical telecommunication equipment calibration and check.— *(1)* The holder of certificate shall establish a procedure for calibration of the equipment in accordance with the specifications laid down by the Director General.

(2) The holder of certificate shall check and accurately record the operating condition of any aeronautical telecommunication equipment that may have been used by an aircraft involved in an accident or serious incident and make such record available for the investigation purpose.

(3) The air calibration of navigation facilities shall be carried out by an entity approved by the Director General.

160. Protection of critical and sensitive areas.— Any critical and sensitive area around an aeronautical facility required to be protected for the operational efficiency of the equipment, shall be —

(a) clearly identified on the site drawings for the aeronautical facility;

(b) physically protected by suitable signposts at the site; and

(c) protected by aerodrome operator or holder of certificate, as appropriate, through barriers or otherwise to ensure that site restrictions are not infringed in any form.

161. Suspension, cancellation or withdrawal of a certificate.— *(1)* The Director General may, after giving an opportunity of being heard to the holder of a certificate, restrict, suspend or cancel the certificate, if there are reasonable grounds to believe that-

(a) there has been a breach of any condition to which the certificate is subject; or

(b) the facilities, operations or maintenance are not of the standard necessary in the interests of the safety of air traffic services or air navigation.

(2) If the holder of a certificate wishes to surrender a certificate, the holder shall give not less than sixty days notice in writing of the date on which the holder wishes the certificate to be surrendered.

C. Meteorological Services

162. Meteorological data and information.— The meteorological authority shall provide operators, flight crew members, air traffic services units, search and rescue services units, aerodrome operators, accident and incident investigation bodies, and other service providers and aviation entities with the meteorological information necessary for their respective functions.

163. Retention of meteorological information.— *(1)* The meteorological authority shall retain meteorological information issued for a period of at least thirty days from the date of issue.

(2) This meteorological information shall be made available, on request, for inquiries or investigations and, for these purposes, shall be retained until the inquiry or investigation is completed.

D. Instrument Flight Procedure Design

164. Instrument flight procedure design service.— *(1)* The air navigation service provider shall establish an Instrument flight procedure design service as specified by Director General.

(2) All instrument flight procedures shall be designed by air navigation service provider in accordance with the design criteria approved by the Director General of Civil Aviation.

165. Promulgation of instrument flight procedures.— No instrument flight procedure shall be promulgated, modified or withdrawn without the prior approval of the Director General.

E. Search and Rescue

166. Search and rescue agreements.— The air navigation service provider shall make agreements with neighbouring States to strengthen search and rescue operations by co-operation and co-ordination, setting forth the conditions for entry of each others search and rescue units into respective territories.

167. Authorisation to rescue and

co-ordination centres.— The rescue and co-ordination centres when requested shall provide all possible assistance to other rescue and co-ordination centres during search and rescue operations.

CHAPTER VII
AIRCRAFT OPERATIONS
A. General

168. Prohibited flight.— Except otherwise provided herein under, and in accordance with the terms and conditions of a permit issued by the Director General—

(a) no aircraft registered in India shall leave India for the purpose of a flight to a place outside India;

(b) no aircraft shall undertake a flight to any territory which the Central Government may, by notification in the Official Gazette, declare to be a prohibited territory.

169. Prohibition of carriage of persons without passport.— *(1)* No person-in-charge of any aircraft shall allow such aircraft to enter India from a place outside India unless all persons on board the aircraft are in possession of valid passports as required by rules for the time being in force made under the Immigration and Foreigners Act, 2025 (13 of 2025).

(2) Where an aircraft is brought into India in contravention of sub-rule *(1),* any authority empowered by the Central Government, generally or specially in this behalf, may direct the owner or the person-in-charge of the aircraft to take on board and remove from India, or otherwise arrange for the immediate removal from India of the person or persons without valid passports, and the owner, or as the case may be, the person-in-charge of the aircraft, shall comply with such directions.

170. Fatigue management of flight crew and cabin crew members.— *(1)* Taking into account the likely impact of fatigue on the level of alertness of flight crew members and cabin crew members, the maximum limits of flight time, flight duty period and duty period of flight crew members as well as cabin crew members, and also the minimum rest periods required to be observed by such crew members, may be specified by the Director General.

(2) No flight crew member or cabin crew member of a flying machine registered in India shall contravene the limitations stipulated by the Director General under sub-rule *(1).*

(3) Every Indian operator shall establish a scheme of flight and duty time limitations and minimum rest periods for its flight crew members as well as cabin crew members in accordance with the stipulations made by the Director General under sub-rule *(1)* and submit the same to the Director General for approval and after approval by the Director General, such scheme shall form part of the operations manual of the concerned operator.

(4) An Indian operator may establish and maintain a fatigue risk management system, in accordance with the stipulations made by the Director-General under sub-rule *(1)* and submit the same to the Director-General for approval and after approval by the Director-General, such system shall form part of the operator's flight duty time limitations scheme and operations manual.

Explanation.— For the purposes of this rule, 'Indian operator' means an operator having his principal place of business, or his permanent residence, in India.

171. Crew member certificate.— *(1)* Director General may issue crew member certificate in accordance with provisions of Annex 9 to the Convention.

(2) The application for issuance of crew member certificate under sub-rule *(1)* shall be made to the Director General along with the fee provided under rule 200.

(3) The application under sub-rule *(2)* shall be in such form and contain such particulars as may be specified by the Director General.

172. Carriage of operational documents.— Every aircraft registered in India shall carry check lists, updated flight manual, pilot's operating handbook and other documents as specified by the Director General for that particular type of aircraft and other documents shall be carried in the aircraft readily accessible to the crew in flight.

173. Carriage of mails.— *(1)* No person shall carry mails or allow mails to be carried in any aircraft except with the consent in writing of the Director General Postal Services.

(2) Every operator engaged in scheduled air transport services shall carry by such services such mails as may be required to be carried from one place to another by the Director General Postal Services, or any person authorised by him in this behalf.

174. Prohibition on consumption of intoxicating and psychoactive substances.— *(1)* No person acting as, or carried in aircraft for the purpose of acting as pilot, commander, navigator, engineer, cabin crew or other operating member of the crew thereof, shall have taken or used any alcoholic drink, sedative, narcotic or stimulant drug or preparation within twelve hours of the commencement of the flight or take or use any such preparation in the course of the flight, and no such person shall, while so acting or carried, be in a state of intoxication or have detectable blood alcohol whatsoever in his breath, urine or blood alcohol analysis or in a state in which by reason of his having taken any alcoholic, sedative, narcotic or stimulant drug or preparation, his capacity so to act is impaired, and no such person while in a state of intoxication shall enter or be in aircraft or report for duty.

(2) The operator shall ensure the conduct of appropriate examinations and implementation of the procedures for detection of alcohol, sedative, narcotic or stimulant drug subject to the conditions as specified by Director General.

(3) No operator operating a domestic air transport service in India shall serve any alcoholic drink on board such an air transport service and no passenger traveling on such a service shall consume any alcoholic drink while on board.

(4) The holders of licences or approvals or authorisation shall not exercise the privileges of their licences or approvals or authorisation as the case may be, and related ratings while under the influence of any psychoactive substance which might render them unable to safely and properly exercise the privileges of the licences and ratings.

(5) The holders of licences shall not engage in problematic use of substances.

175. Smoking in aircraft.— *(1)* The owner or the operator and the pilot-in-command of every aircraft registered in India, shall exhibit or cause to be exhibited in prominent

place in the aircraft notice stating where and to what extent smoking is prohibited or permitted therein.

(2) A notice permitting smoking in such aircraft may be exhibited therein only if smoking in the aircraft is permitted by the certificate of airworthiness of the aircraft or by the direction of the Central Government and only in accordance with the conditions relating to smoking contained in such certificate or direction.

(3) No person shall smoke ─

(a) in any part of an aircraft or in its vicinity, in which a notice is displayed indicating that smoking is prohibited;

(b) anywhere in an aircraft during take-off, landing or refuelling or during a period in which a notice is temporarily displayed indicating that smoking is prohibited.

176. Carriage of persons in unauthorised parts of aircraft.─ No person shall at any time be carried on the wings or undercarriage of the aircraft, or on or in any other part thereof which is not designed for the accommodation of the personnel or passengers, or on or in anything attached externally to the aircraft:

Provided that ─

(a) nothing in this rule shall prevent a person having temporary access-

(i) to any part of the aircraft for the purpose of executing repairs to the aircraft or adjusting the machinery, or equipment thereof or for the purpose of doing anything which may be necessary for the safety of the aircraft or persons or goods carried therein; or

(ii) to any part of the aircraft in which goods or stores are being carried and to which proper means of access is provided; and

(b) a person may be carried on or in any part of the aircraft, or anything attached thereto, with the permission in writing of the Central Government and subject to any conditions which may be specified in such permission.

177. Prohibition on the use of portable electronic devices.— *(1)* No person shall operate, nor shall the operator or the pilot-in-command of an aircraft allow the operation of any portable electronic device on board an aircraft in flight:

Provided that the pilot-in-command may permit use of cellular telephone or smartwatch by the passengers in flight or after the aircraft has landed and cleared active runway, except when the landing takes place in low visibility conditions as may be determined by the Director General.

(2) The provisions of sub-rule *(1)* shall not apply to portable voice recorders, hearing aids, heart pacemaker, electric shavers or other portable electronic devices which, in the opinion of the operator, do not cause interference with the navigation or communication system of the aircraft on which it is to be operated and for which such operator has obtained the approval of the Director General.

(3) Notwithstanding anything contained in sub-rule *(1),* the pilot-in-command may permit the access of internet services through Wi-Fi or mobile communication services or both by passengers on board an aircraft in flight, subject to the conditions as specified by the Director General:

Provided that the Director General shall certify the aircraft for use of such services in flight on board, subject to the procedures as specified in this behalf.

Explanation.— For the purposes of this rule, an aircraft shall be deemed to be in flight when all its external doors are closed following embarkation until the moment when any such door is opened for disembarkation.

178. Flight data analysis programme.— An operator of an aircraft shall establish and maintain a flight data analysis programme as specified by the Director General.

179. Aircraft registered in or belonging to a foreign State.— Except as otherwise provided in rule 183, rule 191 and rule 211, no aircraft registered in, or belonging to a foreign State, shall be flown into, over, across or within India except with the prior permission of the Director General and except in accordance with such terms and conditions as he may think fit to impose while granting such permission:

Provided that the Director General may, by general or special order, exempt any aircraft or class or aircraft either generally or in respect of any specified flight from the provisions of this rule.

180. Aviation security fees.— *(1)* The Central Government, or any other authority designated by it in its behalf, may levy and collect aviation security fees on —

(a) embarking passengers;

(b) cargo transported out of an airport;

(c) departing private aircrafts of general aviation;

(d) chartered aircraft operations; and

(e) any other dedicated civil aviation operations,

at such rate, as the Central Government may specify, and different rates may be specified for different categories specified herein, to meet the expenditure on aviation security.

(2) The aviation security fee shall be regulated and utilised in the manner as may be specified by the Central Government.

Explanation:— For the purposes of this rule -

(a) the expression "Civil Aviation Security" shall mean the protection of the civil aviation operations against the acts of unlawful interference;

(b) the expression "expenditure on aviation security" means any expenditure incurred on —

(i) deployment of any security agency designated by the Central Government for providing the Civil Aviation Security; and

(ii) such other expenditure as may be decided by the Central Government.

181. Regional air connectivity fund.— The Central Government may establish the regional air connectivity fund for the purposes of providing viability gap funding to aircraft operators to promote regional air connectivity, or for any other purpose connected therewith, and the said fund shall be administered and utilised in the manner as may be specified by the Central Government.

182. Regional air connectivity levy.— *(1)* In order to fund the regional air connectivity fund, the Central Government may impose a levy on scheduled flights being operated within India at such rates as the Central Government may notify, having regard to the

seating capacity of the aircraft used for the scheduled flights and the routes on which such flights are operated and the overall requirement of regional air connectivity fund.

(2) The contributions to the regional air connectivity fund may also be made by the beneficiary State Governments in the manner and proportion as may be specified by the Central Government.

(3) The contribution to the regional air connectivity fund may also be made by crediting proceeds from any other source as may be specified by the Central Government.

Explanation.— For the purposes of rules 181 and 182, the expression "regional air connectivity" shall mean operation of an air transport service between any two airports in India of which at least one has been declared by the Central Government as unserved or under-served.

B. Air transport services and aerial work

183. Scheduled air transport services.— *(1)* No person shall operate any scheduled air transport service from, to, in, or across India except with the permission of the Central Government, granted under and in accordance with and subject to the provisions contained in the Fourth Schedule.

(2) The Central Government may, with a view to achieve better regulation of air transport services and taking into account the need for air transport services of different regions in the country, direct, by general or special order that every operator operating any scheduled air transport service shall render service in accordance with the conditions specified in such order including any condition relating to their due compliance.

184. Non-scheduled air transport services.— *(1)* No air transport service, other than a scheduled air transport service, shall be operated by any air transport undertaking of which the principal place of business is in any country outside India except with permission granted by the Director General in accordance with the requirements as specified by him.

(2) Notwithstanding anything contained in sub-rule *(1),* flights where individual seats are being sold to the passengers either directly or as part of any package, by any air transport undertaking of which the principal place of business is in any country outside

India can be operated only with the special permission of the Central Government and subject to such terms and conditions as it may think fit to impose in each case.

(3) No air transport service, other than a scheduled air transport service, shall be operated by an Indian air transport undertaking unless it holds an air operator permit granted by the Director General.

(4) The application for grant of air operator permit shall be made to the Director General in such form and manner, and shall contain such particulars or documents as may be specified by the Director General along with the fee provided under rule 200.

(5) The applicant for an air operator permit and the holder thereof, shall be required to have a security clearance from the Central Government for the purposes of grant and continuation of the air operator permit and the procedure for obtaining security clearance shall be such as may be specified by the Director General.

(6) The air operator permit granted under sub-rule *(3)* shall, unless suspended or cancelled, remain valid for a period not exceeding five years, which may be renewed for a period not exceeding five years at a time.

(7) The Director General may, cancel or suspend the air operator permit for such period as he thinks fit, if he is satisfied that,–

(a) any of the conditions of the air operator permit has not been complied with and the failure is due to any wilful act or default on the part of the holder of such air operator permit or by any of his servants or agents, irrespective of whether or not such wilful act or default of the servant or agent was with the knowledge or approval of the holder of the air operator permit; or

(b) the holder of the air operator permit has failed to establish a safe, efficient and reliable service; or

(c) the air operator permit was obtained by suppressing any information or by giving wrong information; or

(d) the security clearance of the holder of air operator permit has been withdrawn or denied by the Central Government:

Provided that no such air operator permit shall be cancelled or suspended without giving a show cause notice, in writing, informing the holder of air operator permit the ground on which it is proposed to suspend or cancel the air operator permit and giving him a reasonable opportunity of making a representation in writing within such reasonable time as may be specified in the notice and, if that person so desires, of being heard.

(8) Notwithstanding anything contained in sub-rule *(7)*, if the Director General is of the opinion that in the interest of public safety it is necessary so to do, it may, for the reasons to be recorded in writing, summarily suspend the air operator permit with a view to make further enquiry.

185. Aerial work.— *(1)* No person shall undertake any aerial work unless he holds an authorisation granted by the Director General:

Provided that any person holding a valid air operator permit granted under sub-rule *(3)* of rule 184 may undertake aerial work without holding such authorisation, subject to compliance with such requirements as specified by the Director General:

Provided further that the activities permitted under rule 24 shall not require an authorisation under this sub-rule.

(2) The application for grant of authorisation for undertaking aerial work shall be made to the Director General in such form and manner, and shall contain such particulars or documents as may be specified by the Director General, along with the fee provided under rule 200.

(3) The applicant for an aerial work authorisation and the holder thereof, shall be required to have a security clearance from the Central Government for the purposes of grant and continuation of the aerial work authorisation. The procedure for obtaining security clearance shall be such as may be specified by the Director General.

(4) The authorisation granted under sub-rule *(2)* shall, unless suspended or cancelled, remain valid for a period not exceeding two years, which shall be renewed for a period not exceeding two years at a time.

(5) The Director General may, cancel or suspend the authorisation issued under this rule, for such period as he thinks fit, if he is satisfied that—

(i) any of the conditions of the authorisation has not been complied with by the holder of the authorisation; or

(ii) the authorisation was obtained by suppressing any information or by giving wrong information; or

(iii) the security clearance of the holder of the authorisation has been withdrawn or denied by the Central Government:

Provided that no such authorisation shall be cancelled or suspended without giving a show cause notice, in writing, informing the holder of authorisation the ground on which it is proposed to suspend or cancel the authorisation and giving him a reasonable opportunity of making a representation in writing within such reasonable time as specified in the notice and, if that person so desires, of being heard.

(6) Notwithstanding anything contained in sub-rule *(5),* if the Director General is of the opinion that in the interest of public safety or national security it is necessary so to do, he may, for reasons to be recorded in writing, summarily suspend the authorisation till the deficiencies are resolved to the satisfaction of the Director General.

186. Aerial work and public transport reserved for certain aircraft.— No aircraft registered in accordance with Chapter III in Category B shall be used as an aerial work aircraft or as a public transport aircraft:

Provided that the Central Government may, from time to time, permit and impose restrictions on the performance of aerial work or public transport by aircraft other than those registered in accordance with Chapter III in Category A, and such restrictions shall be deemed to have been effectively imposed, if they have been notified in writing to the owner or operator of such aircraft.

187. Import or local acquisition of aircraft other than an unmanned aerial vehicle (drone).— *(1)* No person shall import or locally acquire an aircraft except with a permission from Director General in accordance with the requirements specified by him.

(2) The aircraft so imported or locally acquired shall not be used for the purposes other than it is permitted for.

188. Aircraft management service provider — *(1)* No person shall act as an aircraft management service provider unless he holds an authorisation granted in accordance with requirements specified by the Director General:

Provided that any person holding a valid air operator permit granted under sub-rule *(3)* of rule 184 may act as an aircraft management service provider without holding such authorisation, subject to compliance with the requirements as specified by the Director General.

(2) The provisions of this rule shall not apply for scheduled air transport service permitted under the provision of rule 183.

(3) The operation of any aircraft whose legal ownership is divided among multiple individuals or entities, shall be permissible either through an aircraft management service provider under the provision of this rule, or through a dry lease arrangement with a single entity responsible for operations and maintenance of the aircraft under the provisions of these rules.

(4) The owner of the aircraft and the aircraft management service provider shall enter into a suitable aircraft management agreement not inconsistent with the applicable laws for the time being in force, which shall include provision for transfer of possession and control of the aircraft to the aircraft management service provider.

(5) The owner of the aircraft and aircraft management service provider shall submit to the Director General an instrument for transfer of possession and control of the aircraft, in a format as may be specified by the Director General for including the name of the aircraft management service provider as an operator in the certificate of registration of the aircraft issued under the provisions of rule 39.

(6) The aircraft management service provider shall be the aircraft operator for the aircraft under its management and shall be responsible for operational control of the aircraft, as well as for the compliance of the provisions of the Act, these rules, and the regulations framed thereunder.

(7) Notwithstanding anything contained in this rule, the owner of the aircraft shall not be absolved of any liabilities under any other applicable law for the time being in force.

189. Operation of aircraft for private use.— *(1)* No person shall operate an aircraft for private use except in accordance with requirements specified by the Director General.

(2) An aircraft registered under private use category shall not be used for a purpose involving hire and reward or remuneration in any manner.

(3) The owner or operator of aircraft under private use category shall be responsible for ensuring that the operations and maintenance of the aircraft is carried out in compliance of these rules, and all the relevant regulatory requirements formulated under these rules.

(4) Notwithstanding anything contained in this rule, the owner of the aircraft falling under the provisions of this rule may utilise the services of an aircraft management service provider as provided in rule 188.

190. Operation of aircraft by State Governments, public sector undertakings of the Central Government or State Government, and any other Government agency for private use.— *(1)* The State Governments, public sector undertakings of the Central Government or the State Government, and any other Government agency, shall not operate an aircraft for their own private use unless they hold an operating permit granted by the Director General in accordance with the requirements specified by him.

(2) An aircraft covered under the provisions of this rule shall not be used for a purpose involving hire and reward or remuneration in any manner.

(3) The operating permit granted under sub-rule *(1)* shall, unless suspended or cancelled, remain valid for a period not exceeding two years, which shall be renewed for a period not exceeding two years at a time.

(4) The Director General may, cancel or suspend the operating permit issued under this rule, for such period as he thinks fit, if he is satisfied that—

(i) any of the conditions of the operating permit has not been complied with by the holder of the operating permit; or

(ii) the operating permit was obtained by suppressing any information or by giving wrong information:

Provided that no such operating permit shall be cancelled or suspended without giving a show cause notice, in writing, informing the holder of operating permit the ground on which it is proposed to suspend or cancel the operating permit and giving him a reasonable opportunity of making a representation in writing within such reasonable time as specified in the notice and, if that person so desires, of being heard.

(5) Notwithstanding anything contained in sub-rule *(4),* if the Director General is of the opinion that in the interest of public safety or national security, it is necessary so to do, he may, for reasons to be recorded in writing, summarily suspend the operating permit till the deficiencies are resolved to the satisfaction of the Director General.

(6) Notwithstanding anything contained in this rule, the owner of the aircraft falling under the provisions of this rule may utilise the services of an aircraft management service provider as provided in rule 188, in which case the aircraft management service provider shall be required to comply with the requirements as specified by the Director General.

191. Scheduled operations to, from or across India by foreign airline.— *(1)* The Central Government may permit any air transport undertaking of which the principal place of business is in any country outside India to operate a scheduled air transport service from, to, or across India, in accordance with the terms of any agreement for the time being in force between the Government of India and the Government of that

country, or, where there is no such agreement, of a temporary authorisation by the Government of India.

(2) The Director General may grant operating authorisation to any air transport undertaking of which the principal place of business is in any country outside India, to operate a scheduled air transport service to, from India, in accordance with the terms of any agreement for the time being in force between the Government of India and the Government of that country, or, where there is no such agreement, of a temporary authorisation by the Government of India.

(3) The application for the grant of operating authorisation under sub-rule *(2)* shall be made to the Director General along with the fee provided under rule 200.

(4) The application under sub-rule *(3)* shall be in such form and contain such particulars as may be specified by the Director General and the Director General may, for disposal of the application, require the applicant to furnish any additional information which he considers necessary.

(5) The operating authorisation granted under sub-rule *(2)* shall, unless suspended or cancelled, remain valid for a period not exceeding five years, which may be renewed for a period not exceeding five years at a time.

(6) The Director General may approve any amendment in the operating authorisation granted under sub-rule *(2)*, on submission of application by an air transport undertaking in such form and contain such particulars or documents as may be specified by him along with the fee provided under rule 200.

(7) The air transport undertaking to whom such operating authorisation has been granted under this rule, shall comply with the conditions as specified in such authorisation.

(8) An air transport undertaking of which the principal place of business is in any country outside India, shall operate scheduled air transport services to, from or across India, in compliance with the requirements and conditions as specified by the Director General.

192. Tariff.— (1) Every air transport undertaking operating in accordance with sub-rule (1) of rule 183 and sub-rule (1) of rule 191 shall establish tariff, based on factors, including the cost of operation.

(2) Every air transport undertaking operating in accordance with sub-rule (1) of rule 183 shall submit the tariff, established by it under sub-rule (1) to the Director General in such form, manner and periodicity as may be specified.

(3) Every air transport undertaking shall publish the tariff, established by it under sub-rule (1) on their websites or any other digital platform in such form and manner as may be specified by the Director General for wider public awareness and transparency.

(4) The tariff to be charged or offered shall show the following particulars on the booking website and on the booked ticket, namely:—

(a) the total amount payable by a passenger; and

(b) a complete break—up of the total amount, indicating the fare, tax, fees, cancellation charges, refund conditions or any other charge, if any, separately.

Explanation.– For the purposes of this rule, ––

(a) “fees” means the amount payable to the service providers for the provision of any service or facility provided to the passengers; and

(b) “tax” means the amount payable to the Government.

(5) The tariff established by every air transport undertaking operating in accordance with sub-rule (1) of rule 183 shall be monitored by the Directorate General of Civil Aviation.

(6) Where the Central Government is of the opinion that an extraordinary situation has arisen it may, by order in writing, issue such directions as it considers necessary and expedient to do so in the public interest:

Provided that such directions shall be proportionate to the circumstances and shall remain in force for the period specified only.

193. Minimum requirements to be complied with by the operators.— All aircraft owners and operators shall comply with the engineering, inspection and manual

requirements contained in Part C of this Chapter and with the safety requirements in respect of air routes, aircraft and aircrew, as may be specified by the Director General.

194. Introduction of new routes or alteration in existing routes.— Before operating a scheduled air transport service on a new route or making a substantial alteration in, any of the existing routes of such services, or introducing a new time-table for such service, the operator shall obtain the concurrence of the Director General, in so far as such operation or, as the case may be, or is likely to affect, the air route or aerodrome facilities, and give prior notice to the Director General before the date proposed for the operation of the new route or for the substantial alteration of an existing route or for the introduction of a new time-table, as the case may be.

195. Operations manual.— *(1)* An operations manual shall be in such form, manner and contains such particulars as specified by the Director General, and shall be maintained by every operator engaged in air transport services and by the owner of private aircraft operating complex motor-powered aircraft.

(2) The operations manual shall comply with the requirements as specified by the Director General.

(3) The operations manual shall require technical evaluation and the approval of the Director General.

(4) A copy of the operations manual, or such part of the manual as may be specified by the Director General, shall be carried in all aircraft engaged in air transport services.

196. Duties of pilot-in-command.— *(1)* Subject to the provisions of rule 195, the operator shall designate for each flight one pilot as pilot-in-command, who shall supervise and direct the other members of the crew in the proper discharge of their duties in the flight operations.

(2) In addition to being responsible for the operation and safety of the aircraft during flight time, the pilot-in-command shall be responsible for the safety of the passengers and cargo carried and for the maintenance of flight discipline and safety of the members of the crew.

(3) The pilot-in-command shall have final authority as to the disposition of the aircraft while he is in command.

C. Engineering, Inspection and Manual Requirements-Owners or Operators

197. Definitions.— In this Part—

(a)"engineering and inspection" refers to performance of all work necessary for ensuring airworthiness and safety of the aircraft, including overhaul, maintenance, modification, repair, replacement, manufacture, assembly, testing, treatment, inspection, certification and continuing airworthiness management of an aircraft.

(b) “manual” refers to 'Operators' Continuing Airworthiness Management Exposition’ or ‘Quality Manual' or any other manual covering such requirements, as the case may be.

(c) “private aircraft” refers to an aircraft engaged in operation other than those covered under rule 183 or rule 184 or rule 185.

198. Private aircraft owners.— *(1)* A private aircraft, aircraft components and items of equipment shall be maintained as may be specified by the Director General.

(2) An owner shall have access to an adequate organisation, including qualified and trained staff together with workshop and other equipment, facilities and inspection aids.

(3) (a) All private aircraft owners, shall operate under an approved maintenance system providing a basis of operation under a delegated system of airworthiness control for the safety of their aircraft;

(b) For grant or issue of approval for operation under the approved maintenance system and its continued validity, the operators shall comply with the requirements as specified by the Director General.

(4) An owner shall comply with the engineering, inspection and manual requirements, as may be specified by the Director General.

(5) The approval granted under clause *(b)* of sub-rule *(3),* unless suspended or cancelled, shall remain valid for a period not exceeding five years and on being satisfied, the Director General may renew the approval for a further period of five years.

(6) (a) An owner shall maintain complete record of aircraft, aircraft components and items of equipment as included in the approved manual, of total time flown, the time flown since last overhaul and time flown since last inspection and any other data as may be specified by the Director General;

(b) The records shall be made available for inspection and check and shall be maintained for such period as may be specified by the Director General.

(7) Without prejudice to the provisions of any rule, the Director General may, after giving an opportunity of being heard to an owner or a person, cancel, suspend or endorse any approval or issue warning or admonition to the owner or the person, where he is satisfied that—

(a) the conditions specified by the Director General under this rule and the Civil Aviation Requirements are not being complied with; and

(b) the operator or the person has performed work, or granted a certificate in respect of the work which has not been performed in a careful or competent manner, or has performed work beyond the scope of its or his approval, or failed to make proper entries and certification thereof, or for any other reason considered by the Director General.

199. Operators.— *(1)* An operator shall have access to an adequate organisation including qualified and trained staff together with workshop and other equipment, facilities and inspection aids.

(2) (a) All operators, other than private aircraft owners, shall operate under an approved maintenance system providing a basis of operation under a delegated system of airworthiness control for the safety of their aircraft and persons they carry on board the aircraft;

(b) For grant or issue of approval for operation under the approved maintenance system and its continued validity, the operators shall comply with the requirements as specified by the Director General.

(3) The approval granted under clause *(b)* of sub-rule *(2)*, unless suspended or cancelled shall remain valid for the period as specified below ─

(a) ten years, for a person holding an air operator certificate issued under rule 183 and engaged in the scheduled air transport service;

(b) five years, for a person holding an air operator certificate under rule 183 and engaged in scheduled commuter air transport service or holder of an air operator permit issued under 184;

(c) two years, for a person holding an authorisation issued under rule 185.

(4) The approval granted under sub-rule *(2)* may be renewed for the same period as provided under sub-rule *(3)* upon satisfaction of the Director General.

(5) (a) An operator shall provide, for the use and guidance of its personnel, manuals which shall contain details of information concerning policies, procedures, practices and management system relating to activities of that operator and containing such further information as may be specified by the Director General;

(b) A complete copy of the manual or such portions of the manual as the Director General may direct, shall be submitted to the appropriate regional office of the Directorate General of Civil Aviation for approval;

(c) An approved operator shall revise its manuals from time to time, whenever found necessary as a result of changes in its operations, aircraft equipment or practices or experience with the existing aircraft, equipment or practices and any revision of practices and procedures which affect the airworthiness or safety of the aircraft or equipment shall be subject to the prior approval of the Director General.

(6) The copies of the manual and the revisions thereof shall be supplied by an approved operator to such of its personnel and to such other persons associated with the work of that operator, as the Director General considers necessary.

(7) The employees of an approved operator shall comply with all the instructions relating to their duties as contained in the manual.

(8) An approved operator shall ensure that provision has been made for imparting instructions to its personnel authorised to certify, as may be considered necessary, for the proper discharge of their duties and responsibilities.

(9) (a) Every operator including an approved operator shall maintain complete records of the total time flown since last overhaul and the time flown since last inspection of all air frames, engines, instruments, radio apparatus, equipments and accessories as included in the approved manual;

(b) The operator shall also maintain such other records as may be specified by the Director General to whom these records shall be made available, for inspection and check, whenever required by him and the records shall be kept for such period as may be specified by the Director General.

(10) Every operator including an approved operator shall comply with the engineering, inspection and manual requirements, as may be specified by the Director General.

(11) Without prejudice to the provisions of any rule, the Director General may, after giving an opportunity of being heard to the operator or a person, cancel, suspend or restrict any approval or issue warning or admonition to the operator or the person, where he is satisfied that -

(a) the conditions specified by the Director General under this rule and the Civil Aviation Requirements are not being complied with; and

(b) the operator or the person has performed work, or granted a certificate in respect of the work which has not been performed in a careful or competent manner, or has performed work beyond the scope of its or his approval, or failed to make proper entries and certification thereof, or for any other reason considered by the Director General.

D. Fee

200. Fee.— *(1)* The following fees shall be payable for, —

(A) issuance and renewal of crew member certificate under rule 171 **:** Rs. 1,000

(B) application, grant and renewal of air operator's permit under rule 184:

(i) for application : Rs. 1,75,000;

(ii) for grant of air operator's permit : Rs. 5,00,000;

(iii) for renewal of air operator's permit : Rs. 2,50,000.

(C) grant and renewal of aerial work authorisation under rule 185:

(i) for grant of authorisation : Rs. 50,000;

(ii) for renewal of authorisation Rs. 25,000.

(D) grant of permission under rule 187:

(i) aircraft used for scheduled or non-scheduled air transport service or private use or aerial work,-

(a) for aircraft with all-up weight less than or equal to 10,000 kg. : Rs. 1,00,000 per aircraft;

(b) for aircraft with all-up weight more than 10,000 kg. : Rs. 2,00,000 per aircraft;

(ii) aircraft used for flying training organisation or microlight aircraft or powered hang gliders or hot air balloon : Rs. 20,000 per aircraft.

(E) grant and renewal of operating permit under rule 190:

(i) for grant of operating permit: Rs. 1,00,000;

(ii) for renewal of operating permit : Rs. 50,000.

(F) grant, renewal and amendment of operating authorisation, under rule 191:

(i) to grant operating authorisation : Rs.5,00,000;

(ii) for renewal of operating authorisation : Rs.2,50,000;

(iii) for addition of a new station in the operating authorisation: Rs. 25,000;

(iv) for addition of aircraft in the recorded fleet of the operating authorisation: Rs. 10,000;

(v) for any other amendment : Rs. 5,000.

(G) grant of approval under rule 198 or rule 199:

(i) person holding an air operator certificate to operate scheduled air transport service issued under rule 183 or involved in continuing airworthiness management of an aircraft of a person holding an air operator certificate to operate scheduled air transport service issued under rule 183: Rs. 8,00,000;

(ii) person holding an air operator certificate to operate scheduled commuter air transport service issued under rule 183 or involved in continuing airworthiness management of an aircraft of a person holding an air operator certificate to operate scheduled commuter air transport service issued under rule 183: Rs.4,00,000;

(iii) person holding an air operator permit issued under rule 184 or involved in continuing airworthiness management of an aircraft of a person holding an air operator permit issued under rule 184: Rs. 2,00,000;

(iv) person holding an authorisation issued under rule 185 or involved in continuing airworthiness management of an aircraft of a person holding an authorisation issued under rule 185: Rs.2,00,000;

(v) person holding an approval issued under rule 198 or involved in continuing airworthiness management of an aircraft of a person operating under rule 198: Rs.2,00,000.

(H) renewal or extension of scope of approval under rule 198 or rule 199 : fifty per cent. of the fee payable under clause *(G)* of sub-rule *(1)*.

(I) making the application for no objection certificate under paragraph 3 of the Fourth Schedule : Rs.2,00,000.

(J) grant and renewal of an air operator certificate under paragraphs 6 and 7 of the Fourth Schedule :

(i) for grant of air operator certificate : Rs.20,00,000;

(ii) for renewal of air operator certificate: Rs.10,00,000:

Provided that in case of issue of an air operator certificate to operate the scheduled commuter air transport service, the fee payable shall be ten lakh rupees and five lakh rupees for renewal thereof.

(2) The fee shall be paid electronically in the manner as specified by the Director General.

CHAPTER VIII

REGULATORY, SURVEILLANCE AND ENFORCEMENT

201. Adoption of the Convention and Annexes.— *(1)* The Director General may lay down standards and procedures not inconsistent with the Act and the rules made thereunder to carry out the Convention and any Annex thereto.

(2) The Director General shall formulate the State safety programme and oversee its implementation.

Explanation. — For the purposes of this sub-rule, State safety programme means an integrated set of requirements and activities aimed at improving safety.

202. Directions by Director General.— *(1)* The Director General may, through Notices to Airmen (NOTAMS), Aeronautical Information Publication, Aeronautical Information Circulars (AICs), and publication entitled Civil Aviation Requirements (CAR), issue special directions not inconsistent with the Act or these rules, relating to the operation, design, manufacture, use, possession, maintenance or navigation of aircraft flying in or over India or of aircraft registered in India.

(2) The Civil Aviation Requirements under sub-rule *(1)* shall be issued after placing the draft on the website of the Directorate General of Civil Aviation for a period of thirty days for inviting objections and suggestions from all persons likely to be affected thereby:

Provided that the Director General may, in the public interest and by order in writing, dispense with the requirements of inviting such objections and suggestions or reduce the period for submitting such objections and suggestions.

(3) Every direction issued under sub-rule *(1)* shall be complied with by the person to whom such direction is issued.

(4) The Director General may, by general or special order in writing, exempt any aircraft or class of aircraft or any person or class of persons from the operation of the directions given in the publication entitled Civil Aviation Requirements under this rule, either wholly or partially, and subject to such conditions, if any, as may be specified in such order.

203. Safety management system.— *(1)* Every organisation which is -

(a) holding a scheduled or non-scheduled operators permit under these rules and engaged in the operation of aeroplanes or helicopters, as the case may be; or

(b) conducting operations of large or turbojet aeroplanes for general aviation; or

(c) engaged in the operation of an licensed aerodrome; or

(d) approved under these rules and engaged in the type design of aeronautical product; or

(e) approved under these rules and engaged in manufacture of aeronautical product; or

(f) approved maintenance organisation under these rules and engaged in the maintenance of aeroplanes or helicopters; or

(g) approved flying training organisation and air traffic services training organisation under these rules; or

(h) an air traffic service provider,

shall establish and maintain a safety management system and prepare a safety management system manual in such form and manner, as may be specified by the Director General and submit the same to the Director General for acceptance.

(2) The Director General or any other officer authorised by him may, at any reasonable time carryout oversight of the safety management system and the concerned organisation shall co-operate with the Director General or the person so authorised to carry out the oversight.

Explanation.- For the purposes of this rule, ─

(a) safety management system" means a systematic approach to managing safety including the necessary organisational structures, accountability, responsibilities, policies and procedures;

(b) "safety management system manual" means the document as accepted by the Director General under sub-rule *(1);*

(c) "large aeroplane" means an aeroplane with all-up weight exceeding 5700 kg.

204. Mandatory safety reporting system.─ The Directorate General of Civil Aviation shall establish a mandatory safety reporting system to facilitate collection of safety data and safety information on actual or potential safety deficiencies and specify the procedure for the same.

205. Voluntary safety reporting system.─ *(1)* The Directorate General of Civil Aviation shall establish a voluntary safety reporting system to facilitate collection of safety data and safety information on actual or potential safety deficiencies that may not be captured by the mandatory safety reporting system established under rule 204.

(*2)* The voluntary safety reporting system established under sub-rule *(1)* shall be non-punitive and afford protection to safety data captured by, and safety information derived from, voluntary safety reporting system and related sources and if considered expedient by the Central Government, the safety data and safety information may be collected through any other agency.

(3) The safety data and safety information so collected under sub-rule *(1)* shall be handled in a manner so as to prevent its use for purposes other than safety, and shall appropriately be safe guarded and the confidentiality about the identity of the person making report shall be maintained.

206. Production of licences.— Any licence other than a licence issued under Part B of Chapter VII, certificate, authorisation and approval, log book or document granted or required to be maintained under these rules shall, on demand for the purpose of inspection, by any magistrate, any police officer above the rank of sub-inspector, any customs officer, any commissioned officer of the Naval, Military or Air Force of the Union, any Gazetted officer of the Civil Aviation Department in Government of India, or by any other person authorised by the Central Government, by a special or general order in writing in this behalf, be produced by the licencee or, in the case of an aircraft or of a licensed aerodrome, by the owner, hirer or person-in-charge thereof:

Provided that any such licence, certificate, authorisation and approval, log book or document relating to an aircraft or its personnel which is not by these rules required to be carried in the aircraft shall be produced within a period of seven days of the making of the demand.

207. Destruction and mutilation of any entry in the log books.— No person shall destroy, mutilate, alter or render illegible any entry made, or wilfully make or procure or assist in the making of any false or fraudulent entry in or omitting from any log book referred to in rule 65, rule 84 and rule 87.

208. Fraudulent Documents.— No person shall fraudulently lend any licence, certificate, authorisation or approval issued under these rules or allow it to be used by any other person.

209. Inspection.— *(1)* The Director General, or any officer of the Directorate General of Civil Aviation authorised by him by general or special order in writing, may inspect an aircraft or aviation facility for the purposes of granting an approval or a certificate under these rules, and subsequently to carry out surveillance including unannounced inspections to ensure continued compliance with these rules.

(2) The Director General may authorise any person, subject to such conditions as may be specified by the Director General, for the purpose of examining and testing any person or aircraft, or inspecting any document or aviation facility for the purpose of grant of a licence or a certificate or an approval under these rules or the provisions of the Act and such authorisation shall specify the functions of the person so authorised

to perform on behalf of the Director General and the said authorisation shall be for a period as specified therein.

(3) The persons so authorised under sub-rules *(1)* and *(2)* shall be issued credentials and shall perform the functions as assigned to them in such authorisation.

(4) The Director General or the person referred to in sub-rules *(1)* and *(2)* —

(a) shall have unrestricted and unlimited access to aircraft and aviation facilities, as applicable, for the performance of their functions and duties under these rules;

(b) may enter, inspect and search any aircraft or any aviation facility including air navigation services, inspect documents and records for the purpose of securing compliance with these rules and the provisions of the Act and also to interact with any personnel.

(5) The owner or operator of aircraft, organisation or air navigation facility shall allow the Director General, or the person referred to in sub-rules *(1)* and *(2),* access to any part of the aircraft, organisation or air navigation facility including equipment, records, documents and personnel, and shall co-operate in conducting the activities referred to in sub-rules *(1)* and *(2).*

210. Obstruction of authorised persons.— No person shall voluntarily obstruct any person acting in the exercise of his powers or in the discharge of his duties under these rules.

211. Foreign military aircraft.— No person shall fly or land, or assist in flying or landing, any foreign military aircraft over or in India except on or with the invitation or permission in writing of the Central Government and on such conditions as may be specified in the invitation or permission.

212. Cancellation, suspension or endorsement of licences, certificates, authorisation and approval.— *(1)* Where any person is convicted of a contravention of or failure to comply with these rules or any direction issued under rule 202 in respect

of any aircraft, the Central Government may cancel or suspend any certificate of registration granted under these rules relating to that aircraft.

(2) The Central Government may cancel or suspend any certificate granted under these rules relating to airworthiness of an aircraft or a type certificate of an aircraft component, or item of equipment, if the Central Government is satisfied that a reasonable doubt exists as to the —

(a) safety of the aircraft or the type of aircraft; or

(b) the airworthiness of the aircraft component or item of equipment in respect of which a type certificate exists, and may vary any condition attached to any such certificate if the Central Government is satisfied that reasonable doubt exists as to whether such conditions afford a sufficient margin of safety.

(3) Where the licensing authority is satisfied, after giving him an opportunity of being heard, that any person has contravened or failed to comply with these rules or any direction issued under the provisions of rule 202, it may, for reasons to be recorded in writing, suspend or cancel or vary any particulars entered in any licence, certificate, authorisation or approval granted by it, and may require the holder of the licence, certificate, authorisation or approval to surrender the same for cancellation, suspension, endorsement or variation.

(4) If the Central Government is satisfied that there is sufficient ground for doing so, or in the case of suspension during investigation that the suspension is necessary in the public interest, it may, for reasons to be recorded in writing —

(a) suspend any certificate, rating or licence, authorisation and approval or any or all of the privileges of any certificate, rating or licence, authorisation and approval, for any specified period;

(b) suspend any certificate, rating or licence, authorisation and approval during the investigation of any matter;

(c) cancel any certificate, rating or licence, authorisation and approval; or

(d) endorse any adverse remarks on any certificate, rating or licence, authorisation and approval.

(5) The Central Government may cancel or vary any particulars entered by it or under its authority in any licence or certificate, authorisation and approval granted or in any journey log book issued under these rules.

(6) The Central Government may require the holder of any licence, certificate, authorisation and approval or other document granted or issued under these rules, or any person having possession or custody of such licence, certificate, authorisation and approval or document, to surrender the same to it for cancellation, suspension, endorsement or variation and any person failing to comply with any such requirement within a reasonable time shall be deemed to have acted in contravention of these rules.

(7) The decision of the Central Government as to whether any ground constitutes sufficient ground for suspension of any certificate, rating, licence, authorisation or approval in the public interest under the foregoing sub-rule shall be final and binding.

213. **Restrictions on licence, certificate, authorisation or approval.**— *(1)* The Director General may impose restrictions, as deemed fit, on any licence, certificate, authorisation or approval —

(a) in the event of non-compliance with any condition imposed on the said licence, certificate, authorisation or approval;

(b) if any safety concern that emerged during an inspection has remained unresolved beyond the period specified by the Director General.

(2) The Director General may, during an inspection, direct any person not to exercise privileges of his licence or certificate, if he is satisfied that there is sufficient ground for doing so and such direction shall be reduced in writing on the next working day along with reasons thereof, and further action for allowing the person concerned to exercise his privileges shall be taken thereafter, in accordance with the process specified by the Director General in this behalf.

214. Offences and compounding.— *(1)* For the purposes of sub-section *(4)* of section 25 of the Act, the Central Government directs that any person who has breached any rule as specified in Table 1 and Table 2 of the Fifth Schedule of these rules, shall be

punishable with the penalty as specified in paragraphs 1 and 2 respectively, of that Schedule.

(2) It shall be a defence in any proceedings for contravention of or failure to comply with these rules that such contravention or failure is caused or happened due to factors or circumstances beyond the control of the person referred to in sub-rule *(1)* or without the knowledge or fault of such person.

Explanation. — For the removal of doubts it is hereby clarified that for the purposes of this sub-rule, the expressions "factors or circumstances" may include stress of weather, bonafide error or such other unavoidable factors or circumstances.

(3) Subject to the provisions of section 30 of the Act Offences punishable under the rules as specified in Table 2 of the Fifth Schedule of these rules, may be compounded by the Director General or any other officer specially empowered under sub-section *(4)* of section 3 of the said Act, in accordance with the procedure as laid down in the said Schedule.

215. Penalties.— *(1)* Any person who has contravened any rule as specified in the Sixth Schedule of these rules, shall be liable for imposition of penalty to the extent as laid down in such Schedule and in accordance with the provisions of section 32 of the Act.

(2) The penalty shall be adjudicated by the designated officers or the appellate officer, as the case may be, in accordance with the procedure as laid down in the said Schedule.

216. Appeals.— *(1)* Any person, aggrieved by an order passed by an officer in exercise of the powers conferred on him by these rules, may prefer an appeal in accordance with the provisions of the section 33 of the Act.

(2) An appeal shall be preferred to the First Appellate Officer or Second Appellate Officer, as the case may be, in the Form B as provided in the Sixth Schedule along with the supporting documents and fee of one thousand rupees in the manner as specified by the Director General.

(3) Such appellate officer may call for any information, record or any other document from the applicant, if the same is considered relevant to the appeal.

(4) The appellate officer may, after giving an opportunity of being heard to the appellant, pass a speaking order, as he thinks fit, confirming, modifying or setting aside the order appealed against.

(5) The copy of appellate order so passed by appellate officer, shall be provided to the appellant.

217. Delegation of powers.— *(1)* The powers exercisable by the Central Government under these rules, may also be exercisable by the Director General or any other officer specifically empowered in this behalf by the Central Government, in accordance with the provisions of section 21 of the Act.

(2) The powers exercisable by the Director General under these rules may also be exercisable by any other officer specifically empowered in this behalf by the Central Government, in accordance with the provisions of sub-section *(4)* of section 3 of the Act.

(3) The exercise or discharge of any power or duty conferred or imposed by the rule 212 or Chapter III or Chapter IV of these rules on the Central Government by an authority outside India specified by the Central Government in that behalf, shall have effect in India as though the powers have been exercised or the duty discharged by a person authorised in this behalf under sub-rule *(1).*

218. General power to exempt.— The Central Government may exempt from all or any of the provisions of these rules in accordance with the provisions of section 20 of the Act.

219. Transition, continuity and renewal of certificate and licence.—*(1)* Notwithstanding anything contained in these rules, any Radio Telephone Operator Certificate and Licence including Radio Telephony Restricted (Aeronautical), Radio Telephony Restricted (Permit) or Radio Telephony Restricted (Conversion) Licence or Certificate of proficiency and authorisation, issued by the Wireless Planning and Coordination Wing of the Department of Telecommunications under the Indian Wireless Telegraphy (Commercial Radio Operator's Certificate of Proficiency and Licence to operate Wireless Telegraphy) Rules, 1954 or issued by Directorate General of Civil Aviation under Radio Telephone Operator (Restricted) Certificate and Licence Rules, 2025 shall, unless suspended or cancelled, remain valid up to its existing validity period.

(2) The holder of such Certificate and Licence may apply for renewal of the said Certificate and Licence before the date of its expiry, but not prior to one year from such date, in the form and manner specified by the Director General.

(3) Upon verification of the particulars of the applicant and the validity of the existing licence issued by the Wireless Planning and Coordination Wing, the Director General shall issue a corresponding Certificate and Licence under these rules, which shall remain valid till the holder attains the age of eighty years, unless suspended or cancelled.

(4) The holder of such Certificate and Licence shall not be required to undergo re-examination under the provisions of rule 107 for the purpose of such renewal.

220. Repeal and Savings.— Part IX of the Aircraft Rules, 1920, the Aircraft Rules, 1937 and the Radio Telephone Operator (Restricted) Certificate and Licence Rules, 2025 stand repealed, except as respects things done or omitted to be done before such repeal including any notification, inspection or order made or issued; or any licence, certificate, approval, permission or exemption granted; or any document or instrument executed; or any direction issued; or any proceedings taken or any penalty, punishment, forfeiture or fine imposed under these rules so repealed shall, in so far as it is not inconsistent with the provisions of the Act.

THE FIRST SCHEDULE

AIRCRAFT PERSONNEL

(See Chapter IV)

SECTION A

GENERAL

1. Educational qualification.— *(a)* The minimum educational qualification for the following licences shall be passed the 10th Class from a recognised Board or its equivalent examination: —

(i) Student Pilot's Licence (Aeroplanes, Helicopters, Gyroplanes, Gliders, Balloons, Microlight Aircraft and Light Sport Aircraft);
(ii) Private Pilot's Licence (Aeroplanes);
(iii) Private Pilot's Licence (Helicopters);
(iv) Pilot's Licence (Gliders, Balloons, Gyroplanes, Microlight Aircraft and Light Sport Aircraft);
(v) Flight Radio Telephone Operator's Licence (Restricted).

(b) The minimum educational qualification for the following licences shall be the 12th Class passed, with Physics and Mathematics, from a recognised Board or University or its equivalent examination: —

(i) Commercial Pilot's Licence (Aeroplanes);

(ii) Commercial Pilot's Licence (Helicopters);

(iii) Airline Transport Pilot's Licence (Aeroplanes);

(iv) Airline Transport Pilot's Licence (Helicopters);

(v) Flight Radio Telephone Operator's Licence;

(vi) Student Navigator's Licence;

(vii) Flight Navigator's Licence;

(viii) Student Flight Engineer's Licence; and

(ix) Flight Engineer's Licence.

2. Flying experience.— *(a)* The evidence normally required as proof of flying experience shall consist of the production of a personal log book certified by the appropriate authority as specified in sub-rule *(3)* of rule 84, or of a certified extract therefrom in the form which may be prescribed by the Director General, and such flying experience shall be to the satisfaction of the Director General.

(b) The flying experience required for the issue of Private Pilot's Licence and Commercial Pilot's Licences shall be acquired under the supervision of a flight instructor and shall be on aircraft maintained and operated in accordance with these rules and entered in the aircraft rating of pilot's licence currently held by him:

Provided that the flying experience, on an aircraft having a valid special certificate of airworthiness issued by the Director General, may also be counted, if so provided in the relevant Section of this Schedule and subject to the conditions specified therein.

(c) The flying experience required for issue of Private Pilot's and Commercial Pilot's Licence shall be acquired at the flying training organisations approved or recognised by the Director General except in respect of the applicants qualifying for exemption under the provisions of rule 80.

(d) The flying experience acquired for the issue of various categories of flight crew licences shall be counted in the manner set out in the provisions of rule 84.

(e) Flying training shall be completed in accordance with the syllabus prescribed by the Director General.

(f) A holder of a Private Pilot's Licence (Aeroplanes) who has availed of any credit for flying done on a microlight or glider or light sport aircraft as per the provisions of Section C of this Schedule shall be entitled to get full credit for the same for the issue of next higher pilot licence.

3. Air navigation experience.— The evidence of air navigation experience acquired in clause *(e)* of paragraph 1 of Section S of this Schedule must be produced in the form of personal log book certified by a specified authority, or a certified extract therefrom in the prescribed form and navigation logs and charts and such air navigation experience shall be to the satisfaction of the Director General.

4. Flight by night. — Flight by night for the purpose of this Schedule, except where otherwise stated, means a flight performed between the period of half an hour after sunset and half an hour before sunrise.

5. Cross-country flight. — A cross-country flight, for the purpose of this Schedule, shall mean a flight to a point beyond a radius of fifty nautical miles from the aerodrome of departure, unless otherwise stated.

6. Flying tests. — *(a)* The flying tests prescribed in this Schedule may be carried out in any order by an examiner approved by the Director General.

(b) The flying tests shall nevertheless be carried out only after the pilot under test has passed the examination in Aircraft and Engines on the type appropriate to the category of licence.

(c) Stalling and spinning manoeuvres shall be carried out only on the type of aeroplane approved and the recovery from such manoeuvres completed at the minimum height above the ground or obstruction as laid down in the flight manual of the aeroplane or as specified by the Director General and in no case below two thousand feet above the ground or obstruction.

(d) The holder of a current Commercial Pilot's Licence (Aeroplanes or Helicopters), issued by the Director General, shall not be required to undergo general flying test for the issue of Airline Transport Pilot's Licence (Aeroplanes or Helicopters), provided that the aircraft or helicopter is entered in the aircraft rating of his licence and the applicant is in current flying practice on the type.

7. Langauage proficiency.— *(a)* An applicant for the following licences shall have the ability to speak and understand English language used for radio telepohony communications to the level of proficiency specified by the Director General, namely —

(i) Private Pilot's Licence (Aeroplanes);
(ii) Private Pilot's Licence (Helicopters);
(iii) Commercial Pilot's Licence (Aeroplanes);
(iv) Commercial Pilot's Licence (Helicopters);
(v) Airline Transport Pilot's Licence (Aeroplanes);
(vi) Airline Transport Pilot's Licence (Helicopters);
(vii) Flight Engineer's Licence;
(viii) Flight Navigator's Licence; and
(ix) Pilot's Licence (Microlight aircraft or Light sport aircraft or Gyroplanes).

(b) The level of proficiency shall be evaluated in accordance with the procedures laid down by the Director General.

(c) The licencing authority shall indicate the level of proficiency in the licence.

8. Examination.— *(a)* The technical and other examinations for the issue of a licence, rating or type rating under this Schedule shall be completed within a period of two and a half years immediately preceding the date of application for the issue of the licence or rating, except for issue of Commercial Pilot's Licence and Airline Transport Pilot's Licence, and for issue of Commercial Pilot's Licence and Airline Transport Pilot's Licence, such period shall be five years.

(b) In case the technical and other examinations or tests expire on a holiday, they shall be deemed to be valid till the next working day.

(c) All oral examinations under this Schedule shall be conducted by a board constituted and approved by the Director General.

(d) An applicant who fails in any subject of the technical examinations specified in this Schedule shall not be permitted to appear for re-examination within such period from the date of examination as may be specified by the Director General.

(e) The candidates shall, on demand by the examiner or supervisor furnish proof of identity before each test of examination.

9. Applications for a licence or a rating. — *(a)* Applications for issue or validation of a licence or a rating shall be made to the Director General of Civil Aviation, New Delhi and for renewal or revalidation of a licence or a rating shall be made either to the Director General of Civil Aviation, New Delhi or to any other authority designated by him in this behalf in the prescribed form.

(b) Licence and ratings specified in this Schedule shall be issued in the name as entered in the Class 10th certificate of a recognised Board or its equivalent, unless the name has been changed with the due legal process.

(c) Class 10th certificate of a recognised Board or its equivalent or the Birth Certificate issued by a Municipal Corporation or Committee shall be the documents acceptable as proof of age.

(d) Application for the issue of a licence or a rating shall be accompanied by **—**

(i) an assessment of medical fitness issued by the Director General;

(ii) photographs of size 3 cmsX 4 cms of the applicant's head (uncovered) and shoulders in front view and as specified by the Director General;

(iii) proof of age as prescribed in sub-paragraph (c) ;

(iv) fee shall be paid electronically in the manner as specified by the Director General;

(v) any other information as required by the Director General.

(e) The date of application, shall be the date of receipt of application in the office of the Director General.

(f) An aircraft type to be included in the aircraft rating of a pilot's licence shall be the aircraft type on the Indian Register of Civil Aircraft:

Provided that where a new type of aircraft is inducted in India, such type may be included in the aircraft rating of a pilot's licence, subject to the issuance of a valid type acceptance certificate by the Director General:

Provided further that an aircraft type holding or having held a valid type acceptance certificate issued by the Director General shall be entered in the aircraft rating of a pilot's licence of a person who is a qualified pilot from the Indian Air Force, Indian Navy, Indian Army, Indian Coast Guard or any central police force.

(g) Incomplete applications are liable to be rejected for reasons to be recorded in writing.

10. Enrolment for training.— To enrol a person for undergoing ab-initio pilot training, the training organisation shall obtain a report of verification of character and antecedents of the trainee from the concerned Government agency, and such verification report shall be submitted to the Director General at the time of submission of the application for issue of the licence.

11. Privileges.— The holder of a valid licence shall not exercise privileges of his licence and ratings unless meeting the competency and recent experience requirements as specified by the Director General.

12. Renewal.– Licence and rating may be renewed on receipt of satisfactory evidence of the applicant having complied with requirements as laid down under the provisions of rule 82 and respective Section of this Schedule.

13. Licence specification.— Licences and ratings issued under this Schedule and details thereon shall be in the form and manner as specified by the Director General.

14. Holding a licence.— A person shall not hold at any time more than one licence per aircraft category issued under this Schedule.

15. Issue of duplicate licences and ratings.— *(a)* A person whose licence or rating has been lost, mutilated or destroyed shall immediately notify the same to the Director General.

(b) An application along with necessary fees shall be made to the Director General embodying a statement of the circumstances involved in the loss, mutilation and destruction of the licence or rating where a duplicate is required.

(c) If the licence or rating has been lost, the applicant must provide evidence of reasonable search having been made for it along with report from appropriate agencies and in case it is found, the original shall be returned for cancellation.

SECTION B

STUDENT PILOT'S LICENCE

1. Requirements for issuance of licence. — An applicant for a Student Pilot's Licence shall satisfy the following requirements, namely: —

(a) Age: The applicant shall not be less than sixteen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 10th or its equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical practitioner after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under rule 78.

(d) Knowledge: He shall pass oral examination in Air Regulations, Air Navigation, Aviation Meteorology and Aircraft and Engines or Instruments as per the syllabus prescribed by the Director General unless he previously held a pilot's licence of a higher category, or is able to produce evidence in the manner prescribed by the Director General that he is well-versed with the aforesaid subjects.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant having undergone a medical examination in accordance with clause *(c)* of paragraph 1.

4. Aircraft rating.— The licence shall indicate the category, class and/or type of aircraft, the holder is entitled to fly and only those types of aircraft may be entered in the licence in respect of which the candidate has passed the examination in Aircraft and Engines mentioned in clause *(d)* of the paragraph 1.

5. Privileges. — Subject to the validity of aircraft ratings in the licence and compliance with the relevant provisions of rules 78, 79 and rule 82, the privileges of the holder of a Student Pilot's Licence shall be to fly within Indian territory only, as pilot-in-command of any aeroplane, helicopter, glider or light sport aircraft or gyroplane entered in the aircraft rating of his licence:

Provided that —

(a) he shall fly at all times under the authority and supervision of a flight instructor or an approved examiner;

(b) he shall fly under visual flight rules only ;

(c) he shall not carry passengers, animals and goods or fly for hire, reward or remuneration of any kind; and

(d) he shall not undertake cross-country flights unless he has a minimum of ten hours of solo flight time and has passed the examinations in Air Navigation and Aviation Meteorology.

Note: The Student Pilot's Licence shall be issued by a flying training organisation specifically authorised in this regard and subject to the conditions as laid down by the Director General.

SECTION C

PRIVATE PILOT'S LICENCE (AEROPLANES)

1. Requirements for issuance of licence. — An applicant for Private Pilot's Licence shall satisfy the following requirements, namely:-

(a) Age: He shall not be less than seventeen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 10th or equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical practitioner after undergoing a medical examination during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Aviation Meteorology and Aircraft and Engines as per the syllabus prescribed by the Director General:

Provided that an applicant in possession of a valid Private Pilot's Licence (Helicopters) or a Commercial or Airline Transport Pilot's Licence (Helicopters) shall pass an examination in Aircraft and Engines only.

(e) Experience: He shall produce evidence of having satisfactorily completed as a pilot of an aeroplane not less than forty hours of flight time which shall include—

(i) not less than ten hours of solo flight time;

(ii) not less than five hours of cross-country flight time in accordance with paragraph 5 of Section A as the sole occupant of an aeroplane including a flight of not less than one hundred and fifty nautical miles in the course of which full stop landings at two different aerodromes shall have been made;

(iii) not less than five hours of solo flight time completed within a period of twelve months immediately preceding the date of application for the issue of licence;

(iv) fifty per cent. of the total flying experience on microlight aircraft or on a glider acquired during the preceding twenty-four months from the date of application subject to a maximum of ten hours may be counted towards the total experience required for the issue of the licence;

(v) solo flight time completed on light sport aircraft within the preceding twenty-four months from the date of application, subject to maximum of twenty hours, may be counted towards the total experience required for the issue of the licence:

Provided that not more than twenty hours of credit shall be given to an applicant under sub-clauses *(iv)* and *(v)* put together.

(f) Flying training: He shall have completed flying training in accordance with the syllabus prescribed by the Director General.

(g) Skill: He shall have demonstrated his competency to perform as a pilot-in-command of an aeroplane, the procedures and manoeuvres prescribed in the syllabus to the satisfaction of the examiner, on the type of aeroplane to which the application for the licence relates, within a period of six months immediately preceding the date of application.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause *(c)* of the paragraph 1; and

(b) having satisfactorily completed not less than five hours of flight time as pilot-in-command of an aeroplane within a period of twelve months immediately preceding the date of application for renewal or in lieu thereof, having

satisfactorily completed the flying test as laid down in clause *(g)* of paragraph 1 within a period of six months immediately preceding the date of application.

4. Ratings. — *(a)* Aircraft rating: The licence shall indicate the class or the type of aeroplane the holder is entitled to fly and the requirements for the issuance of class or type ratings of aeroplane as specified by the Director General.

(b) Night rating: Night rating entitles the holder of the licence to exercise privileges of the licence at night and conditions for the issue of this rating are as follows, namely: —

(i) he must have completed not less than fifty hours of flight time as pilot-in-command and as sole manipulator of the controls including not less than five hours by night, which must include a minimum of five take-offs and five landings carried out within the preceding six months of the date of application;

(ii) he must have completed a dual cross-country flight by night of at least one hundred nautical miles before he can be permitted to undertake sole cross-country flights by night;

(iii) he must have completed, before commencing night flying, not less than five hours of dual instructions in instrument flying which may include not more than two and a half hours on an approved flight simulation training device; and

(iv) he must have completed a dual cross-country flight by night of at least one hundred nautical miles before he can be permitted to undertake sole cross-country flights by night.

(c) Instrument rating: Instrument rating entitles the holder of the licence to fly under the instrument flight rules and the standard of medical fitness and conditions for issue of the rating are laid down in Section N.

5. Extension of aircraft rating. — For extension of aircraft rating to include an additional class or type of aeroplane, an applicant shall be required to produce evidence of —

(a) having passed written examination in Aircraft and Engines as mentioned in clause *(d)* of the paragraph 1;

(b) having undergone adequate dual instructions and solo flying to gain competency on the type;

(c) having satisfactorily completed the flight test as laid down in clause *(g)* of paragraph 1 on the type within a period of six months immediately preceding date of application for the extension of aircraft rating.

6. Privileges. — Subject to the validity of endorsements and ratings in the licence and compliance with the relevant provisions of rules 78, 79 and rule 82, the privileges of the holder of a Private Pilot's Licence shall be to act, but not for remuneration, as pilot -in-command or as co-pilot of any aeroplane which is entered in the aircraft rating of his licence and carry passengers therein:

Provided that —

(i) no flight is undertaken for hire or remuneration of any kind, or in an aircraft registered for public transport or aerial work purposes, whatsoever;

(ii) the passengers are carried by night only when the holder of licence is in possession of a valid night rating and has carried out not less than five take-offs and five landings by night as pilot-in-command within a period of six months immediately preceding the date of intended flight; and

(iii) no flight shall be undertaken under the instrument flight rules without being in possession of a valid instrument rating.

SECTION D

PRIVATE PILOT'S LICENCE (HELICOPTERS)

1. Requirements for issuance of licence. — An applicant for a Private Pilot's Licence (Helicopters) shall satisfy the following requirements, namely:—

(a) Age: He shall not be less than seventeen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 10th or equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical practitioner after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Aviation Meteorology, and Aircraft and Engine as per the syllabus prescribed by the Director General:

Provided that an applicant in possession of a valid Private Pilot's Licence (Aeroplanes) or a Commercial or Senior Commercial or Airline Transport Pilot's Licence (Aeroplanes) shall pass an examination only in Aircraft and Engines.

(e) Experience: He shall produce evidence of having satisfactorily completed as a pilot of a helicopter not less than forty hours of flight time which shall include—

(i) not less than ten hours of solo flight time;

(ii) not less than five hours of cross-country flight time as the sole occupant of helicopter or helicopters including a flight of not less than one hundred nautical miles in the course of which full stop landings at two different points shall have been made;

(iii) not less than five hours of solo flight time completed within a period of twelve months immediately preceding the date of application for the issue of licence;

(iv) fifty per cent. of the total flying experience acquired on an aircraft in any other category except balloons, during the preceding twenty - four months from the date of application subject to a maximum of five hours may be counted towards the total experience required for the issue of the licence;

(v) solo flight time completed on an aircraft in any other category except balloons, within the preceding twenty-four months from the date of application, subject to maximum of five hours, may be counted towards the total experience required for the issue of the licence:

Provided that not more than twenty hours of credit shall be given to an applicant under sub-clauses *(iv)* and *(v)* put together:

Provided further that a person who has satisfactorily completed not less than three hundred hours of flight time as pilot-in-command of an aeroplane shall be required to complete on a helicopter not less than twenty hours of total flight time, dual and solo, which shall include not less than ten hours of solo flight time completed within a period of twelve months immediately preceding the date of application for a licence.

(f) Flying training: He shall have completed flying training in accordance with the syllabus prescribed by the Director General.

(g) Skill: He shall have demonstrated his competency to perform the procedures and manoeuvres prescribed in the syllabus to the satisfaction of the examiner, on the type of helicopter to which the application for the licence relates, within a period of six months immediately preceding the date of application.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1; and

(b) having satisfactorily completed not less than five hours of flight time as pilot-in-command of a helicopter within a period of six moths immediately preceding the date of application for renewal or in lieu thereof, having satisfactorily completed the flight test as laid down in clause *(g)* of paragraph 1 within a period of six months immediately preceding the date of application.

4. Ratings.— *(a)* Aircraft rating: *(i)* The licence shall indicate the type of helicopter the holder is entitled to fly.

(ii) Requirements for the issue of helicopter type ratings may be specified by the Director General.

(b) Night rating: Night rating entitles the holder to exercise privileges of the licence at night and conditions for the issue of this rating are as follows, namely:—

(i) he must have completed not less than fifty hours of flight time as pilot-in-command of a helicopter and as sole manipulator of the controls, including not less than ten take-offs and ten landing patterns by night within a period of six months immediately preceding the date of application; and

(ii) he must have completed not less than five hours of dual instructions in night flying.

(c) Instrument rating: Instrument rating entitles the holder to fly under the instrument flight rules and the standard of medical fitness and conditions for issue of this rating are laid down in Section O.

5. Extension of aircraft rating. — For extension of aircraft rating, to include an additional type of helicopter, an applicant shall be required to produce evidence of —

(a) having passed written examination in Aircraft and Engines as laid down in clause *(d)* of paragraph 1;

(b) having undergone adequate dual instructions and acquired sufficient solo flying experience to gain competency on the type; and

(c) having satisfactorily completed the flying test as laid down in clause *(g)* of paragraph 1 on the type within a period of six months immediately preceding the date of application for extension of aircraft rating.

6. Privileges. — Subject to the validity of endorsement and ratings in the licence and compliance with the relevant provisions of rules 78, 79 and rule 82, the privileges of the holder of a Private Pilot's Licence (Helicopters) shall be to act, but not for

remuneration, as pilot-in-command or as a co-pilot of any helicopter which is entered in the aircraft rating of his licence and carry passengers therein:

Provided that —

(a) no flight shall be undertaken for hire or remuneration of any kind, or in an aircraft registered for public transport or aerial work purposes whatsoever;

(b) the passengers are carried by night only when the holder of licence is in possession of a valid night rating and has carried out not less than five take-offs and five landings patterns by night as pilot-in-command within a period of six months immediately preceding the date of intended flight; and

(c) no flight shall be undertaken under the instrument flight rules without being in possession of a valid instrument rating.

SECTION E

PILOT'S LICENCE (MICROLIGHT)

1. Requirements for the issuance of licence. — An applicant for a Pilot's Licence Microlight Aircraft shall satisfy the following requirements, namely:—

(a) Age: He shall not be less than seventeen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 10th or equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical practitioner after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Aviation Meteorology, and Aircraft and Engines as per the syllabus prescribed by the Director General:

Provided that an applicant in possession of a valid Private Pilot's Licence (Aeroplanes or helicopters) or a higher category of pilot's licence shall upon production of evidence in the form of a certificate recorded by flight instructor or examiner in the pilot's log book to the effect that the pilot has been thoroughly familiarised with the flight controls, speed profiles, systems, engines and limitations of the microlight aircraft be exempted:

Provided further that an applicant in possession of a valid Pilot's Licence Gliders shall be exempted from examination in Air Regulations and Aviation Meteorology only.

(e) Security clearance: If not already obtained, security clearance for the pilot shall be obtained from the concerned State Police authorities by the Flying Club or Government flying training school before commencing flying and shall be forwarded to the Director General.

(f) Experience: He shall produce evidence of having satisfactorily completed not less than forty hours of flight time on microlight aircraft, which shall include, —

(i) not less than fifteen hours of solo flight time of which not less than ten hours shall have been completed within a period of twelve months immediately preceding the date of application for the licence;

(ii) not less than five hours of cross-country flight time as the solo occupant of microlight aircraft including a flight over a distance of not less than fifty nautical miles from the aerodrome of departure and at least one full stop landing at a suitable aerodrome or landing ground other than the aerodrome of departure; and

(iii) I. the holder of a current Private Pilot's Licence (Aeroplanes) or a higher category of licence (aeroplanes) shall be exempted from the experience requirements.

II. such pilots shall be required to carry out familiarisation flights which shall be followed by not less than three solo take-offs and landings.

III. the familiarisation flights shall be carried out under the supervision of an approved examiner or a flight instructor approved by the Director General.

(g) Flying training: He shall have completed the flying training in accordance with the syllabus prescribed by the Director General.

(h) Skill: He shall have demonstrated his competency to perform the procedures and manoeuvres prescribed in the syllabus to the satisfaction of an examiner, on the type of microlight aircraft to which the application for licence relates, within a period of six months immediately preceding the date of application.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause of *(c)* of paragraph 1.

(b) having satisfactorily completed not less than five hours of flight time as pilot-in-command of a microlight aircraft within a period of twelve months immediately preceding the date of application for renewal or in lieu thereof, having satisfactorily completed the flight test as laid down in clause of *(h)* of paragraph 1 within a period of six months immediately preceding the date of application.

4. Aircraft rating. — *(a)* The licence shall indicate the class and type of microlight aircraft, the holder is entitled to fly.

(b) An open rating for all types of microlight aircraft may also be granted if he has satisfactorily completed not less than one hundred hours of flight time as pilot-in-command of an aeroplane or a microlight aircraft provided that before undertaking a solo flight on any microlight aircraft, he shall have undergone familiarisation with the flight controls, speed profiles, systems, engines and limitations of the aircraft with a qualified microlight pilot having one hundred fifty hours of pilot-in-command experience and a certificate to that effect recorded in the pilot's log book.

5. Privileges. — Subject to the validity of aircraft ratings in the licence and compliance with the relevant provisions of the rules 78, 79 and rule 82, the privileges of the holder of a Pilot's Licence (Microlight) shall be to act as pilot-in-command of a microlight aircraft, which is entered in the aircraft ratings of his licence, under the visual flight rules.

SECTION F

PILOT'S LICENCE (BALLOONS)

1. Requirements for the issuance of licence.— An applicant for a pilot's licence shall satisfy the following requirements, namely :—

(a) Age: He shall be not less than sixteen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 10th or equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical practitioner after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Aviation Meteorology, Airmanship and Balloon systems or Aerostatics as per the syllabus prescribed by the Director General :

Provided that an applicant in possession of a current Pilot's Licence Gliders, Private Pilot's Licence (Aeroplanes or Helicopters), Pilot's Licence Microlight Aircraft or a higher category of pilot's licence shall pass an examination only in Airmanship and Balloon system or Aerostatics.

(e) Security clearance: If not already obtained, security clearance for the pilot will be obtained from the concerned State Police authorities by the Flying Club or Government flying training school before commencing flying training and forwarded to the Director General.

(f) Experience: He shall produce evidence of having satisfactorily completed as pilot of a balloon not less than sixteen hours of flight time as a pilot of free balloons including at least eight launches and ascents of which—

(i) six ascents shall be under instruction;

(ii) one ascent in control, under the supervision of a properly rated balloon pilot, to an altitude of not less than one thousand five hundred meters above sea level;

(iii) one ascent under supervision as the sole occupant of a balloon.

(g) Flying training: He shall have completed flying training in accordance with the syllabus prescribed by the Director General.

(h) Skill: He shall have demonstrated his competency to perform the procedures and manoeuvres prescribed in the syllabus to the degree of competency appropriate to the pilot-in-command privileges to the examiner, on the type of the balloon to which the application for the licence relates, within a period of six months immediately preceding the date of application.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence shall be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1.

(b) having satisfactorily completed at least five ascents as pilot-in-command of which at least one ascent should be to an altitude of one thousand five hundred metres or above within a period of six months immediately preceding the date of application or in lieu thereof, having satisfactorily completed the flying test in accordance with clause *(h)* of paragraph 1 within a period of six months immediately preceding the date of application.

4. Night rating.— *(a)* To exercise the privileges of the licence by night, the applicant shall have completed atleast two ascents by night each of not less than two hours duration under the supervision of a licensed balloon pilot whose licence is not limited to day flying only.

(b) Night rating shall be valid subject to the licence holder having completed atleast two ascents by night of an average duration of one hour each during a period six months immediately preceding the date of intended flight.

5. Privileges. — The privileges of the holder of a Pilot's Licence (Balloons) shall be to act as pilot-in-command of any balloon and to carry passengers, tow banners, fixed or otherwise, which do not adversely affect the safety of the balloon, under the visual flight rules only.

SECTION G

PILOT'S LICENCE (GLIDERS)

1. Requirements for the issuance of licence. — An application for the issue of Pilot's Licence (Gliders) shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than sixteen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 10th or equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical practitioner after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass an oral examination in Air Regulations, Air Navigation, Aviation Meteorology and Aircraft and Instruments, and engines in case of motor gliders, as per the syllabus prescribed by the Director General:

Provided that an applicant in possession of a valid Pilot's Licence Balloons or Microlight Aircraft, Private Pilot's Licence (Aeroplanes or Helicopters) or a higher category of pilot's licence shall pass an oral test in Aircraft and Instruments.

(e) Experience: He shall produce evidence of having satisfactorily completed as pilot of a Glider —

(i) not less than ten hours of flight time of which not less than five hours shall be solo flight time; and

(ii) not less than seventy-five take-offs and landings of which not less than twenty-five solo take-offs and landings shall have been completed within a period of six months immediately preceding the date of application for licence.

(f) Flying training: He shall have completed the gliding training in accordance with the syllabus prescribed by the Director General.

(g) Skill: He shall have demonstrated his competency as pilot-in-command of a glider, the procedures and manoeuvres prescribed in the syllabus to the satisfaction of the examiner, on the type of glider to which the application for the licence relates within a period of six months immediately preceding the date of application.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence shall be renewed on receipt of satisfactory evidence of the applicant—

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1;

(b) having satisfactorily completed not less than three hours of flight time or twenty take-offs and landings as pilot-in-command of a glider within a period of six months preceding the date of application for renewal or in lieu thereof, having satisfactorily completed the flying tests in accordance with clause *(g)* of paragraph 1 within period of six months immediately preceding the date of application.

4. Ratings. — *(a)* Aircraft rating: The licence shall indicate the type of gliders, the holder is entitled to fly.

(i) An open rating to fly all gliders having an all-up-weight not exceeding six hundred kg. may also be granted, if a pilot has satisfactorily completed not less than fifty hours of flight time as pilot-in-command in free flight including not less than two hundred take-offs and landings as solo manipulator of controls:

Provided that the privileges of open rating shall be exercised only after having undergone familiarisation flights with flight instructor (glider) or with an approved examiner or having been thoroughly briefed by an approved examiner or an instructor in case of single seater glider and a certificate to that effect recorded by the examiner or instructor in the pilot's log book, before releasing the pilot for flight.

(b) Aero-tow rating: Aero-tow rating entitles the holder to carry passengers in gliders in aero-tow flights. An aero-tow rating may be given if a glider pilot has satisfactorily completed in a glider not less than ten aero-tow flights of a total duration of not less than two hours as pilot of a glider:

Provided that no solo aero-tow flights are undertaken, unless atleast five dual aero-tow flights have been carried out with a qualified instructor on board and a satisfactory report to that effect recorded by the instructor in the pilot's log book before the aero-tow flights are undertaken.

(c) Glider towing requirements: No person shall act as pilot-in-command of an aircraft towing a glider unless he meets the following requirements, namely: —

(i) he holds a valid pilot's licence (other than a Student Pilot's Licence);

(ii) he has an endorsement in his pilot's log book from a person authorised to give instruction in glider towing and is familiar with the techniques and procedures essential to the safe towing of gliders including airspeed limitations, emergency procedures, signals used and maximum angles of bank;

(iii) he has made and entered in his pilot's log book at least three flights as sole manipulator of the controls of an aircraft towing a glider under the supervision of a pilot who meets the requirements of this clause and has carried out at least ten flights as pilot-in-command of an aircraft towing a glider;

(iv) If he holds only a Private Pilot's Licence (Aeroplanes), he shall have not less than one hundred hours of flight time as pilot-in-command.

(d) Motor glider rating: Motor glider rating entitles the holder to carry passengers in a self launching motor glider. A motor glider rating may be given if the holder of a valid Pilot's Licence (Glider) produces evidence of—

(i) having passed an oral examination in engines;

(ii) having satisfactorily completed as pilot of self-launching motor glider not less than forty take-offs and landings, out of which not less than ten take-offs and landings shall have been completed as pilot-in- command;

(iii) having thoroughly familiarised himself with the flight controls, speed profiles, systems, engines and limitations of the aircraft with an approved examiner or glider instructor and a certificate to that effect recorded by instructor or examiner in the pilot's log book.

5. Extension of aircraft rating.— For extension of aircraft rating to include an additional type of glider, the applicant shall be required to produce evidence of—

(i) having passed an oral examination in aircraft and instruments and engines in case of motor gliders, as mentioned in clause (d) of paragraph 1 ;

(ii) having satisfactorily completed the flying tests in accordance with clause (g) of paragraph 1 on the type of glider to which the application relates within a period of six months immediately preceding the date of application for extension of the aircraft rating; and

(iii) having satisfactorily carried out not less than three take-offs and landings as pilot-in-command as sole manipulator of controls.

6. Privileges. — Subject to the validity of the aircraft ratings in the licence and compliance with the relevant provisions of rules 78, 79 and rule 82, the privileges of the holder of Pilot's Licence (Gliders) shall be to act, as pilot-in-command off any glider which is entered in the aircraft rating of the licence and to carry passengers therein under the visual flight rules.

Note: 1. The privileges granted under this Section shall be exercised only when the method of launching is any one of the following, namely:—

(a) winch-launching, or
(b) auto-launching, or
(c) launching by aero-tow.

2. If any unconventional method of launching such as rockets, catapults, etc. is adopted, the privileges to fly-in-command and to carry passengers shall be exercised only after he has completed an approved course of training and a flying test to the satisfaction of the Director General.

SECTION H

PILOT'S LICENCE (LIGHT SPORT AIRCRAFT)

1. Requirements for the issuance of licence. — An applicant for a Pilot's Licence (Light Sport Aircraft) shall satisfy the following requirements, namely:—

(a) Age: He shall not be less than seventeen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 10th or equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical practitioner after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Aviation Meteorology and Aircraft and Engines as per the syllabus prescribed by the Director General:

Provided that an applicant in possession of a valid Private Pilot's Licence (Aeroplanes or Helicopters) or a higher category of pilot's licence shall be exempted from passing all the aforesaid examinations under clause *(d)* after furnishing a certificate by the flight instructor or examiner in the pilot's log book to the effect that the pilot has been thoroughly familiarised with the flight controls, speed profiles, systems, engines and limitations of the light sport aircraft:

Provided further that an applicant in possession of a valid Pilot's Licence (Gliders) shall be exempted from examination in Air Regulations and Aviation Meteorology specified in clause *(d).*

(e) Experience: He shall produce evidence of having satisfactorily completed not less than forty hours of flight time on light sport aircraft, which shall include—

(i) not less than twenty hours of flight training with, —

(a) two hours of dual cross-country flight training;

(b) one solo cross-country flight of total distance of not less than fifty nautical miles with a full stop landing at a minimum of two different aerodromes and with one segment of the flight consisting of straight line distance of at least twenty-five nautical miles;

(ii) not less than ten hours of solo flight time with ten take-offs and landings completed within six months preceding the date of submission of application for issue of licence:

Provided that-

I. The holder of a current Private Pilot's Licence (Aeroplanes) or a higher category of Licence (Aeroplanes) shall be exempted from the experience requirements.

II. The pilot shall be required to carry out familiarisation flights of minimum one hour followed by not less than three solo take-offs and landings within six months preceding the date of application.

III. The flying shall be carried out under the supervision of an approved examiner or a flight instructor approved by the Director General and endorsed in the log book of the licence holder by the approved examiner or instructor.

(f) Flying training: He shall have completed the flying training in accordance with the syllabus prescribed by the Director General.

(g) Skill: He shall have demonstrated his competency to perform the procedures and manoeuvres prescribed in the syllabus to the satisfaction of an examiner, on the type of light sport aircraft to which the application for licence relates, within a period of six months immediately preceding the date of application.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1; and

(b) having satisfactorily completed not less than five hours of flight time as pilot-in-command of a light sport aircraft within a period of twelve months immediately preceding the date of application for renewal, or having satisfactorily completed the flight test as laid down in clause *(g)* of paragraph 1 within a period of six months immediately preceding the date of application.

4. Aircraft rating. — *(a)* The licence shall indicate the class and type of light sport aircraft, the holder is entitled to fly.

(b) An open rating for all types of light sport aircraft may also be granted if he has satisfactorily completed not less than one hundred hours of flight time as pilot-in-command of an aeroplane or a light sport aircraft:

Provided that the privilege of the open rating shall be exercised only after having undergone familiarisation with the flight controls, speed profiles, systems, engines and limitations of the aircraft with a qualified light sport pilot having not less than one hundred fifty hours of pilot-in-command experience and a certificate to that effect shall be recorded by the qualified light sport pilot of that aircraft in the pilot's log book.

5. Privileges.— *(a)* Subject to provisions of rules 78, 79 and rule 82, the privileges of the holder of a Pilot's Licence (Light Sport Aircraft) shall be to act as pilot-in-command

of a light sport aircraft, which is entered in the aircraft rating of his licence, under the visual flight rules.

(b) A Light Sport Aircraft Pilot shall not,—

(i) carry a passenger or property for reward or hire;

(ii) fly at night;

(iii) fly in class D and E airspace (controlled airspace) unless he holds a valid Flight Radio Telephony Operator's Licence (Restricted) and has been trained by an approved instructor with a log book endorsement for operation at any aerodrome with an operating control tower;

(iv) fly at an altitude of more than 10,000 feet mean sea level, or 2000 feet above ground level, whichever is higher;

(v) fly when flight or surface visibility is less than 5000 meter;

(vi) fly without visual reference to surface;

(vii) fly contrary to any operating limitation placed on the special certificate of airworthiness of the aircraft being flown; and

(viii) fly contrary to any limit on pilot licence or medical or any other limit.

(c) The holder of a Pilot Licence (Light Sport aircraft) having a total experience of one hundred hours of flight time as pilot–in-command on a light sport aircraft may impart flying instructions on a light sport aircraft subject to the condition that he has been assessed fit for imparting training by an examiner approved by the Director General.

(d) The holder of a Flight Instructor's Rating (Aeroplanes) having a total experience of fifteen hours of flight time as pilot in command on a light sport aircraft may impart instructional training on a light sport aircraft.

SECTION I

PILOT'S LICENCE (GYROPLANE)

1. Requirements for issuance of licence.— An applicant for a Pilot's Licence (Gyroplane) shall satisfy the following requirements, namely: —

(a) Age: He shall not be less than seventeen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 10th or equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical practitioner after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Aviation Meteorology and Aircraft and Engine as per the syllabus prescribed by the Director General:

Provided that an applicant in possession of a valid Private Pilot's Licence (Aeroplanes or Helicopters) or a higher category of pilot's licence shall pass an examination in Aircraft and Engines only.

(e) Experience: He shall produce evidence of having satisfactorily completed as a pilot of a gyroplane not less than forty hours of flight time, which shall include—

(i) not less than fifteen hours of solo flight time of which not less than ten hours shall have been completed within a period of twelve months immediately preceding the date of application.

(ii) not less than five hours of cross-country flight time as the sole occupant of a gyroplane including a flight of not less than one hundred

nautical miles in the course of which full stop landings at two different points shall have been made and this flight time may be included in the flight time required under sub-clause *(i)*:

Provided that –

I. The holder of a current Private Pilot's Licence (Helicopter) or a higher category of Licence (Helicopter) shall be exempted from the experience requirements.

II.The pilot shall be required to carry out familiarisation flights satisfactorily which shall be followed by not less than three solo take-offs and landings.

III. The familiarisation flights shall be carried out under the supervision of an approved examiner or a flight instructor authorised by the Director General.

(f) Flying training: He shall have completed flying training in accordance with the syllabus prescribed by the Director General.

(g) Skill: He shall have demonstrated his competency to perform the procedures and manoeuvres prescribed in the syllabus to the satisfaction of an examiner, on the type of gyroplane to which the application for the licence relates, within a period of six months immediately preceding the date of application.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1; and

(b) having satisfactorily completed not less than five hours of flight time as pilot-in-command of a gyroplane within a period of six months immediately preceding

the date of application for renewal or in lieu thereof, having satisfactorily completed the flight test as laid down in clause *(g)* of paragraph 1 within a period of six months immediately preceding the date of application.

4. Aircraft ratings. — *(a)* The licence shall indicate the type of gyroplane the holder is entitled to fly.

(b) An open rating for all types of gyroplane may also be granted, if he has satisfactorily completed not less than one hundred hours of flight time as pilot-in-command of a helicopter or a gyroplane:

Provided that the privilege of the open rating shall be exercised only after having undergone familiarisation flight of minimum forty-five minutes duration with a qualified gyroplane pilot having not less than one hundred fifty hours of pilot-in-command experience and a certificate to that effect shall be recorded by the qualified gyroplane pilot in the pilot's log book.

5. Privileges.— *(a)* Subject to provisions of rules 78, 79 and rule 82, the privileges of the holder of a Pilot's Licence (Gyroplane) shall be to act as pilot-in-command of a gyroplane which is entered in the aircraft rating of his licence, under the visual flight rules.

(b) A Gyroplane pilot shall not,—

(i) carry a passenger or property for reward or hire;

(ii) fly at night;

(iii) fly in class D and E airspace (controlled airspace) unless he holds a valid Flight Radio Telephony Operator's Licence (Restricted) and has been trained by an approved instructor with a log book endorsement for operation at any aerodrome with an operating control tower;

(iv) fly at an altitude of more than 10,000 feet mean sea level, or 2000 feet above ground level, whichever is higher;

(v) fly when flight or surface visibility is less than 5000 meter;

(vi) fly without visual reference to surface;

(vii) fly contrary to any operating limitation placed on the special certificate of airworthiness of the aircraft being flown; and

(viii) fly contrary to any limit on pilot licence or medical or any other limit.

(c) Fly another type of gyroplane after familiarisation of two hours under the supervision of qualified pilot on that type and a certificate to that effect shall be recorded by the qualified gyroplane pilot of that aircraft in the pilot's log book.

(d) The holder of a Pilot Licence (Gyroplane) having a total experience of one hundred hours of flight time as pilot-in-command on a gyroplane may impart flying instructions on a gyroplane subject to the condition that he has been assessed fit for imparting training by an examiner approved by the Director General.

(e) The holder of a Flight Instructor's Rating (Helicopter) having total experience of fifteen hours of flight time as pilot-in-command on a gyroplane may impart instructional training on a gyroplane.

SECTION J

COMMERCIAL PILOT'S LICENCE (AEROPLANES)

1. Requirements for issuance of licence.— An applicant for a Commercial Pilot's Licence (Aeroplanes) shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than eighteen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 12th with Physics and Mathematics or equivalent examination from a recognised Board or University.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical board after undergoing a medical examination during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Aviation Meteorology, Aircraft and Engines, and Signals (practical) examination for interpretation of aural and visual signals, as per the syllabus prescribed by the Director General:

Provided that the holder of a current Commercial Pilot's Licence (Helicopters) shall be required to pass an examination in Aircraft and Engines only.

(e) Experience:He shall produce evidence of having satisfactorily completed as a pilot of an aeroplane on the date of application for licence not less than two hundred hours of flight time, which shall include not less than—

(i) one hundred hours of flight time as pilot-in-command of which not less than fifteen hours shall have been completed within a period of six months immediately preceding the date of application for licence;

(ii) twenty hours of cross-country flight time as pilot-in-command including a cross-country flight of not less than three hundred nautical miles in the course of which full stop landings at two different aerodromes shall be made;

(iii) ten hours of instrument time of which not more than five hours may be on an approved simulator; and

(iv) five hours of flight time by night including a minimum of ten take-offs and ten landings as pilot-in-command (as sole manipulator of controls) carried out within six months immediately preceding the date of application for licence:

Provided that in case of an applicant who is in possession of a Commercial Pilot's Licence (Helicopters) or Airline Transport Pilot's Licence (Helicopters) and who has satisfactorily completed not less than one thousand hours of flight time as pilot-in-command of a helicopter, the above experience requirement of two hundred hours as pilot of an aeroplane shall be reduced to one hundred hours, which shall include not less than –

(i) seventy-five hours of flight time as pilot-in-command including a minimum of twenty-five hours of cross-country flight time and ten hours of instrument time of which not less than five hours may be on approved simulator;

(ii) five hours of flight time by night as pilot-in-command within a period of six months immediately preceding the date of application for issue of licence including ten take-offs and landing patterns; and

(iii) ten hours of flight time as pilot-in-command on aeroplane within a period of six months immediately preceding the date of application for issue of licence.

(f) Flying training: He shall have completed the flying training in accordance with the syllabus prescribed by the Director General.

(g) Other requirements: He shall be in possession of a current Flight Radio Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General.

(h) Skill: I. He shall have demonstrated his competency to perform the procedures and manoeuvres prescribed in the syllabus to the satisfaction of an examiner on the type of aeroplane to which the application for licence relates, within a period of six months immediately preceding the date of application.

II. The Director General may allow skill test or part thereof to be carried out on aircraft or approved zero flight time training simulator level 'D' or

equivalent or higher level approved for the conduct of skill tests for the type of aeroplane and the competency shall be demonstrated as in-

(i) general flying test by day;

(ii) general flying test by night;

(iii) a cross-country flight test by day consisting of a flight of not less than two hundred fifty nautical miles in the course of which at least one full stop landing at an aerodrome other than the aerodrome of departure shall be made; and

(iv) a cross-country flying test by night consisting of a flight of not less than one hundred twenty nautical miles returning to the place of departure without landing elsewhere.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1;

(b) having satisfactorily completed not less than ten hours of flight time as pilot-in-command (fifty per cent. of flight time as co-pilot may be counted towards the requirement of flight time as pilot-in-command) within a period of six months immediately preceding the date of application for renewal, or in lieu thereof, having satisfactorily completed the general flying test by day and night as laid down in clause *(h)* of paragraph 1 within the same period;

(c) having a current Flight Radio Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General.

4. Aircraft rating. — *(a)* The licence shall indicate the class or type of aeroplane, the holder is entitled to fly.

(b) The requirements for the issuance of class or type ratings of aeroplane may be specified by the Director General.

(c) Instructor's rating: Instructor's rating entitles the holder to impart flying instructions. The privileges and conditions for the issue of these ratings are laid down in Sections P and Q.

(d) Instrument rating: Instrument rating entitles the holder to fly under Instrument Flight Rules. Conditions for issue of this rating are laid down in Section N.

5. Extension of aircraft rating. — For extension of aircraft rating to include an additional class or type of aeroplane, an applicant shall have passed a written examination in Aircraft and Engines, as mentioned in clause (d) of paragraph 1 and shall have acquired, under appropriate supervision, training in flying the aircraft of such type or on approved flight simulator in accordance with the syllabus, followed by skill test, as prescribed by the Director General.

6. Privileges.— Subject to the validity of endorsements and ratings in the licence and compliance with the relevant provisions of rules 78, 79 and rule 82, the privileges of the holder of a Commercial Pilot's Licence (Aeroplanes) shall be—

(a) to exercise all the privileges of Private Pilot's Licence(Aeroplanes)), in the aeroplane which is entered in the aircraft rating of his licence;

(b) to act as pilot-in-command of any aeroplane engaged in operations other than commercial air transportation;

(c) to act as pilot-in-command, in commercial air transportation, on an aeroplane entered in the aircraft rating of his licence, and certificated for single-pilot operation:

Provided that a single-pilot operation certified aeroplane which qualifies as a complex aeroplane, he shall have successfully completed command upgrade training as specified by the Director General:

Provided further when passengers are to be carried at night, he shall have carried out within a period of six months immediately preceding the date of the intended flight not less than ten take-offs and ten landings by night as pilot-in-command.

(d) to act as co-pilot of any aeroplane where a co-pilot is required to be carried and which is entered in the aircraft rating of his licence :

Provided that for all flights under the instrument flight rules, either as pilot-in- command or as co-pilot, he shall have a current instrument rating:

Provided further that upon attainment of the age of sixty-five years, such privileges shall be restricted to that of Private Pilot's Licence (Aeroplanes).

SECTION K

COMMERCIAL PILOT'S LICENCE (HELICOPTERS)

1. Requirements for issuance of licence. — An applicant for a Commercial Pilot's Licence (Helicopters) shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than eighteen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 12th with Physics and Mathematics or equivalent examination from a recognised Board or University.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical board after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Aviation Meteorology, Aircraft and Engines and Signals (practical) examination for interpretation of aural and visual signals as per the syllabus prescribed by the Director General:

Provided that an applicant in possession of a current Commercial Pilot's Licence (Aeroplanes) or higher category of a pilot's licence shall be required to pass an examination in Aircraft and Engines only.

(e) Experience: He shall produce evidence of having satisfactorily completed as pilot of a helicopter not less than one hundred and fifty hours of flight time, which shall include not less than —

(i) fifty hours of flight time as pilot-in-command of a helicopter;
(ii) ten hours of cross-country flight time as pilot-in-command of a helicopter;

(iii) ten hours of flight time as pilot-in-command of a helicopter within a period of six months immediately preceding the date of application for licence, out of which not less than five hours of flight time by night which shall include not less than ten take-offs and ten landing patterns by night;

(iv) ten hours of instrument instruction time of which not more than five hours may be instrument ground time:

Provided that a person who is holder of a Commercial Pilot's Licence (Aeroplanes) or an Airline Transport Pilot's Licence (Aeroplanes) shall be required to complete on a helicopter not less than eighty hours of flight time including not less than twenty hours of flight time as pilot-in-command which shall include not less than five hours of cross-country time, and not less than five hours of flight time by night with not less than ten take-offs and ten landing patterns within a period of six months immediately preceding the date of application for licence.

(f) Flying training: He shall have completed flying training in accordance with the syllabus prescribed by the Director General.

(g) Other requirements: He shall be in possession of a current Flight Radio

Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General.

(h) Skill: He shall have demonstrated his competency to perform the procedures and manoeuvres prescribed in the syllabus by day and night to the satisfaction of an approved examiner, on the type of helicopter to which the application for licence relates, within a period of six months immediately preceding the date of application:

Provided that the Director General may, however, allow skill test or part thereof to be carried out on an approved level D or equivalent or higher level flight simulator approved for the conduct of skill tests for the type of helicopter.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant—

(a) having undergone a medical examination in accordance with clause *(c)* paragraph 1.

(b) having satisfactorily completed not less than five hours of flight time as pilot-in-command (fifty per cent. of the flight time as co-pilot may be counted towards the requirements of flight time as pilot-in-command) of a helicopter within a period of six months immediately preceding the date of application for renewal, or in lieu thereof having satisfactorily completed the flying tests as laid down in clause *(h)* paragraph 1 within the same period.

(c) having a current Flight Radio Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General.

4. Ratings. — *(a)* Aircraft rating: *(i)* The licence shall indicate the type of helicopter, the holder is entitled to fly.

(ii) The requirements for the issuance of helicopter type ratings may be as specified by the Director General.

(b) Instructor's rating: Instructor's rating entitles the holder to impart flying instructions on types of helicopters entered in the aircraft rating of his licence and the privileges and conditions for the issue of these ratings are laid down in Sections P and Q of this Schedule.

(c) Instrument rating: Instrument rating entitles the holder to fly under the instrument flight rules and conditions for issue of the rating are laid down in Section O of this Schedule.

5. Extension of aircraft rating. — For extension of aircraft rating to include an additional type of helicopter, an applicant shall have passed a written examination in Aircraft and Engines, as mentioned in clause *(d)* of paragraph 1 and shall have acquired, under appropriate supervision, training in flying the aircraft of such type or on approved flight simulator in accordance with the syllabus, followed by skill test, as may be specified by the Director General.

6. Privileges.— Subject to the validity of endorsements and ratings in the licence and compliance with the relevant provisions of rules 78, 79 and rule 82, the privileges of the holder of a Commercial Pilot's Licence (Helicopters) shall be—

(i) to exercise all the privileges of Private Pilot's Licence (Helicopters), in the helicopter which is entered in the aircraft rating of his licence;

(ii) to act as pilot-in-command in any helicopter engaged in operations other than commercial air transportation;

(iii) to act as pilot-in-command, in commercial air transportation, on a helicopter entered in the aircraft rating of his licence, and certificated for single-pilot operation:

Provided that a single-pilot operation on a certified helicopter which qualifies as a complex helicopter, he shall have successfully completed command upgrade training as specified by the Director General; and

(iv) to act as co-pilot in commercial air transportation in helicopters required to be operated with a co-pilot:

Provided that when passengers are to be carried at night he shall have carried out within a period of six months immediately preceding the date of intended flight not less than ten take-offs and ten landing patterns by night as pilot-in-command of a helicopter:

Provided further that for all flights under the instrument flight rules as pilot-in-command or as co-pilot, he shall be required to have current instrument rating:

Provided also that on attainment of the age of sixty-five years, such privileges shall be restricted to that of Private Pilot's Licence (Helicopters).

SECTION L

AIRLINE TRANSPORT PILOT'S LICENCE (AEROPLANES)

1. Requirements for issuance of licence.— An applicant for an Airline Transport Pilot's Licence shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than twenty-one years of age on the date of application.

(b) Educational qualification: He shall have passed Class 12th with Physics and Mathematics or its equivalent examination from a recognised Board or University.

(c) Medical Fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved Medical Board after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass a written examination in Air Regulations, Air Navigation, Avionics (Radio Aids and Instruments), Aviation Meteorology, Aircraft and Engines, and Signals (Practical) examination for interpretation of aural and visual signals as per the syllabus prescribed by the Director General:

Provided that the holder of a current Commercial Pilot's Licence, shall not be required to pass the examination in Air Regulations.

(e) Experience: He shall produce evidence of having satisfactorily completed as a pilot of an aeroplane not less than one thousand five hundred hours of flight time and his total flying experience shall include —

(i) not less than five hundred hours as pilot-in-command under supervision of a pilot who fulfills the flying experience, requirements of a check pilot or two hundred and fifty hours, either as pilot-in-command or made up by not less than seventy hours as pilot-in-command and the necessary additional flight time as pilot-in-command under supervision of a pilot who fulfills the flying experience requirements of a check pilot;

Note: Where an aeroplane is required to be operated with a co-pilot in accordance with the provisions of the flight manual of the aeroplane, not more than fifty per cent. of the co-pilot flight time shall be credited towards the total flight time required for the issue of the licence, but not more than fifty per cent. of the co-pilot flight time under supervision shall be credited towards pilot-in-command flight experience required for issue of the licence, and full credit for such flight time shall be given towards total flight time required for issuance of the licence.

(ii) two hundred hours of cross-country flight time, of which not less than one hundred hours shall be as pilot-in-command or as pilot-in-command under supervision;

(iii) not less than one hundred hours of flight time by night;

(iv) not less than seventy-five hours of instrument time under actual or simulated instrument conditions of which not less than fifty hours shall be in actual flight;

(v) not less than twenty hours of flight time completed within a period of six months immediately preceding the date of application for the licence.

(f) Other requirements: *(i)* he shall be the holder of a Commercial Pilot's Licence and this will not be applicable for the issue of Airline Transport Pilot's Licence to a pilot from armed forces who otherwise meets the requirements;

(ii) he shall have a current instrument rating on multi-engine aircraft; and

(iii) he shall be in possession of a current Flight Radio Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General.

(g) Skill: He shall have demonstrated his competency to perform by day and by night the procedures and manoeuvres prescribed in the syllabus to the satisfaction of the examiner, on the type of multi-engine aeroplane to which the application for licence relates within a period of six months immediately preceding the date of application:

Provided that the Director General may, allow skill tests or part thereof to be carried out on aircraft or approved zero flight time training simulator level 'D' or equivalent or higher level approved for the conduct of skill tests for the type of aircraft.

Note: The holder of a current Commercial Pilot's Licence (Aeroplanes) issued by the Director General shall not be required to undergo general flying tests for the issue of Airline Transport Pilot's Licence (Aeroplanes):

Provided that the licence is issued on the type or types of multi-engine aeroplane or aeroplanes, included in the aircraft rating of Commercial Pilot's Licence (Aeroplanes) and the pilot possesses ten hours of flying experience as pilot-in-command or twenty hours as co-pilot at least on one such multi-engine type within the preceding six months.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The Licence may be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1.

(b) having satisfactorily completed not less than ten hours flight time as pilot-in-command (fifty per cent. of flight time as co-pilot may be counted towards the requirements of flight time as pilot-in-command) within a period of six months immediately preceding the date of application for renewal, or in lieu thereof, having satisfactorily completed the flying tests by day and by night as laid down in clause *(g)* of paragraph 1 within the same period.

(c) having a current Flight Radio Telephone Operator's Licence, for operation of radio telephone apparatus on board an aircraft, issued by the Director General.

(d) having a current instrument rating on a multi-engine aircraft.

4. Ratings. — *(a)* Aircraft rating: *(i)* The licence shall indicate the class or the type of aeroplane the holder is entitled to fly.

(ii) The requirements for the issuance of class or type ratings of aeroplane may be specified by the Director General.

(b) Instructor's rating: Instructor's rating entitles the holder to impart flying instructions and the privileges and conditions for the issue of these ratings are laid down in Sections P and Q;

(c) Instrument rating: The instrument rating shall be part of the Airline Transport Pilot Licence and, therefore, no separate instrument rating shall be issued, but the instrument rating shall be renewed as per the provisions of Section N of this Schedule.

5. Extension of aircraft rating. — For extension of aircraft rating to include an additional class or type of aeroplane, an applicant shall have passed a written examination in Aircraft and Engines as mentioned in clause *(d)* of paragraph 1 and shall have acquired, under appropriate supervision, training at an approved training organisation in flying the aircraft of such type or on approved flight simulator in

accordance with the syllabus, followed by skill test, as specified by the Director General.

6. Privileges.— Subject to the validity of endorsements and ratings in the licence and compliance with the relevant provisions of rules 78, 79 and rule 82 the privileges of the holder of an Airline Transport Pilot's Licence (Aeroplanes) shall be—

(a) to exercise the privileges of a Commercial Pilot's Licence (Aeroplanes) and a Private Pilot's Licence (Aeroplanes), in the aeroplane which is entered in the aircraft rating of his licence;

(b) to act as pilot-in-command in commercial air transportation of an aeroplane, certificated for operation with more than one pilot, which is entered in the aircraft rating of his licence, subject to his prior compliance with the following conditions, namely : —

(i) he has undergone command upgrade training as specified by the Director General; and

(ii) he shall be in possession of a current instrument rating before operating any instrument flight rules flight:

Provided that on the attainment of the age of sixty-five years, such privileges shall be restricted to that of a Private Pilot's Licence (Aeroplanes) in accordance with the provision of Section C.

SECTION M

AIRLINE TRANSPORT PILOT'S LICENCE (HELICOPTERS)

1. Requirements for issuance of licence. — An applicant for an Airline Transport Pilot's Licence (Helicopters) shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than twenty-one years of age on the date of application.

(b) Educational qualification: He shall have passed class 12th with Physics and Mathematics or its equivalent examination from a recognised Board or University.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical board after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provsions of rule 78;

(d) Knowledge: He shall pass written examination in Air Regulations, Air Navigation, Avionics (Radio Aids and Instruments), Aviation Meteorology, Aircraft and Engines, and Signals (Practical) examination for interpretation of aural and visual signals, as per the syllabus prescribed by the Director General:

Provided that —

(i) the holder of a valid Commercial Pilot's Licence (Aeroplanes or Helicopters) shall not be required to pass the examination in Air Regulations.

(ii) the holders of Commercial Pilot's Licences (Aeroplanes) shall be required to pass the examination in Aircraft and Engines on helicopters.

(e) Experience: He shall produce evidence of having satisfactorily completed as pilot of a helicopter not less than one thousand hours of flight time and his total flying experience shall include not less than —

(i) two hundred fifty hours of flight time as pilot-in-command or made up of not less than seventy hours as pilot-in-command and the necessary additional flight time as pilot-in-command under supervision of a pilot who fulfills the flying experience requirements of a check pilot;

(ii) two hundred hours of cross-country flight time of which not less than one hundred fifty hours shall be as pilot-in-command or as pilot-in-command under supervision of a pilot who fulfils the flying experience requirements of a check pilot;

(iii) fifty hours of flight time by night;

(iv) forty hours of instrument time under actual or simulated conditions, of which not more than ten hours may be instrument ground time; and

(v) fifteen hours of flight time completed within a period of six months immediately preceding the date of application for the licence.

Note: Where a helicopter is required to be operated with a co-pilot in accordance with provisions of the flight manual of the helicopter, not more than fifty per cent. of the co-pilot flight time shall be credited towards the total flight time required for the issue of the licence, but not more than fifty per cent. of the co-pilot flight time under supervision shall be credited towards pilot-in-command flight experience required for issue of the licence, and full credit for such flight time shall be given towards total flight time required for issue of the licence.

(f) Other requirements:

(i) he shall be a holder of a Commercial Pilot's Licence (Helicopter) but this may not be applicable for the issue of an Airline Transport Pilot's Licence (Helicopter) to a qualified pilot from the Indian Armed Forces who otherwise meets the requirements;

(ii) he shall have a current instrument rating; and.

(iii) he shall be in possession of a current Flight Radio Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General.

(g) Skill: He shall have demonstrated his competency to perform by day and by night the procedures and manoeuvres prescribed in the syllabus to the satisfaction of the examiner on the type of multi-engine helicopter to which the application for licence relates, within a period of six months immediately preceding the date of the application:

Provided that the Director General may allow skill test or part thereof to be carried out on aircraft or Level D or equivalent or higher level flight simulator approved for the conduct of skill tests for the type of helicopter.

Note: The holder of a valid Commercial Pilot's Licence (Helicopters) issued by the Director General shall not be required to undergo the general flight tests for the grant of Airline Transport Pilot's Licence (Helicopters):

Provided that the licence is issued on the type or types of multi-engine helicopter or helicopters, as the case may be, included in the aircraft rating of Commercial Pilot's Licence (Helicopters) and the pilot possesses recent flying experience of at least five hours as pilot-in-command or ten hours as co-pilot on one such multi-engine type.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant —

(a) having undergone a medical examination in accordance with clause (c) of paragraph 1;

(b) having satisfactorily completed not less than ten hours of flight time as pilot-in-command (fifty per cent. of flight time as a co-pilot may be counted towards the requirement of flight time as pilot-in-command) within a period of six months immediately preceding the date of application for renewal, or in lieu thereof having satisfactorily completed the skill tests by day and by night as laid down in clause *(g)* of paragraph 1 within the same period;

(c) having a current Flight Radio Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General; and

(d) having satisfactorily completed instrument rating flight test on a multi-engine helicopter entered in the licence or on an approved flight simulator allowed by the Director General within the preceding twelve months of the date of intended flight.

4. Ratings. — *(a)* Aircraft rating: *(i)* The licence shall indicate the type of helicopter the holder is entitled to fly.

(ii) The requirements for the issuance of helicopter type ratings may be specified by the Director General.

(b) Instructor's rating: Instructor's rating entitles the holder to impart flying instructions. The privileges and the conditions for issuance of these ratings are laid down in Sections P and Q.

(c) Instrument rating: Instrument rating entitles the holder to fly under the instrument flight rules. The conditions for issue of the rating are laid down in Section O.

5. Extension of aircraft rating.— For extension of aircraft rating to include an additional type of helicopter, an applicant shall have passed a written examination in Aircraft and Engines, as mentioned in clause *(d)* of paragraph 1, and shall have acquired, under appropriate supervision, training at an approved training organisation in flying the aircraft of such type or on approved flight simulator in accordance with the syllabus, followed by skill test, as may be specified by the Director General.

6. Privileges.— Subject to the validity of endorsements and ratings in the licence and compliance with the relevant provisions of rules 78, 79 and rule 82 of the the privileges of the holder of an Airline Transport Pilot's Licence (Helicopters) shall be —

(a) to exercise the privileges of a Private Pilot's Licence (Helicopter) and Commercial Pilot's Licence (Helicopters), in the helicopter which is entered in the aircraft rating of his licence;

(b) to act as pilot-in-command in commercial air transportation of a helicopter, certificated for operation with more than one pilot and which is entered in the aircraft rating of his licence, subject to his prior compliance with the following conditions, namely :-

(i) he has undergone command upgrade training as specified by the Director General; and

(ii) he shall be in possession of a current Instrument Rating before operating any flight under instrument flight rules:

Provided also that upon attainment of the age of sixty-five years, such privileges shall be restricted to that of Private Pilot's Licence (Helicopters).

SECTION N

INSTRUMENT RATING (AEROPLANES)

1. Requirements for issuance of rating. — An applicant for an Instrument Rating shall satisfy the following requirements, namely: —

(a) Knowledge: He shall pass a written and oral examination in Air Regulations, Air Navigation, Aviation Meteorology and Instrument Rating as per syllabus prescribed by the Director General for issue of Commercial Pilot's Licence and he shall also pass a practical test on interpretation of aural and visual signals as per the syllabus prescribed by the Director General.

(b) Experience: He shall produce evidence of having satisfactorily completed as a pilot of an aeroplane not less than —

(i) one hundred hours of flight time as a pilot-in-command including not less than fifty hours of cross-country flight time;

(ii) forty hours of instrument time of which not more than twenty hours shall be instrument ground time and a minimum of five hours of instrument time shall have been completed within a period of six months immediately preceding the date of application for the Instrument Rating:

Provided that in the case a pilot who holds a current Instrument Rating (Helicopters), he shall have not less than one hundred hours of flight time as pilot-in-command of an aeroplane including not less than twenty-five hours of cross-country flight time and not less than twenty hours of instrument time of which not more than ten hours may be on an approved simulator.

(c) Other requirements: He shall be —

(i) holder of a current Pilot's Licence (Aeroplanes);

(ii) holder of a current Flight Radio Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General.

(d) Flying training: He shall have completed the flying training in accordance with the syllabus as prescribed by the Director General.

(e) Skill: (i) he shall have demonstrated to the satisfaction of the examiner his competency to fly an aeroplane in respect of which Instrument Rating is desired, solely with the aid of instruments by undergoing an instrument flying test within a period of six months immediately preceding the date of application for the rating;

(ii) the flying test shall be carried out in accordance with the syllabus as prescribed by the Director General; and

(iii) the Director General may allow such tests or part thereof to be carried out on a flight simulator Level D or equivalent or higher level approved for the conduct of Instrument Rating Tests for the applicable type of aircraft.

2. Validity.— *(a)* The rating shall be valid for a period of twelve months from the date of the Instrument Rating Flying Test.

(b) It shall be renewed for a further period of twelve months at a time from the date of expiry provided that the Instrument Rating Flying Test has been carried out within two months preceding the date of expiry and all other requirements for renewal are met.

(c) In other cases, the validity of renewal of the rating shall commence from the date of the test.

3. Renewal. — The Instrument Rating may be renewed on receipt of satisfactory evidence of the applicant**—**

(a) having satisfactorily completed the Instrument Rating Flight Test as laid down in clause (e) of paragraph 1.

(b) having a valid Flight Radio Telephone Operator's Licence issued by the Director General for operation of radio telephone apparatus on board an aircraft.

4. Extension of Instrument Rating.— For extension of Instrument Rating to include an additional type of aeroplane, an applicant shall be required to produce evidence of having satisfactorily completed the flight test in accordance with clause (e) of paragraph 1 in respect of the type of aeroplane for which the extension of Instrument Rating is desired and the flight test shall have been completed within a period of six months immediately preceding the date of application for the extension of Instrument Rating.

5. Privileges.— Subject to the validity of the Instrument Rating, the privileges of the holder thereof shall be to fly under the instrument flight rules, the types of aeroplanes on which he has demonstrated his competency in accordance with clause (e) of paragraph1:

Provided that a pilot, who has demonstrated his competency by undergoing an Instrument Rating Flight Test on a single-engine aeroplane not exceeding an all-up-weight of five thousand seven hundred kg., shall exercise the privileges of his Instrument Rating on all single engine aeroplanes within the aforesaid weight category:

Provided further that a pilot, who has demonstrated his competency by undergoing an Instrument Rating Flight Test on a multi-engine aeroplane not exceeding an all-up-weight of five thousand seven hundred kg., shall exercise the privileges of his Instrument Rating on all multi-engine aeroplanes within the aforesaid weight category:

Provided also that the holder of an Instrument Rating on any transport aeroplane, shall exercise his privileges only on the type of aeroplane on which the Instrument Rating Flight Test has been satisfactorily carried out:

Provided also that the holder of an Instrument Rating on aeroplanes having an all-up-weight exceeding five thousand seven hundred kg. shall exercise the privileges

of his Instrument Rating only on the type of aeroplane on which the Instrument Rating Flight Test has been satisfactorily carried out:

Provided also that the holder of an Instrument Rating on any multi-engine aeroplane may exercise the privileges of Instrument Rating on any single engine aeroplane entered in the aircraft rating of his licence.

SECTION O

INSTRUMENT RATING (HELICOPTERS)

1. Requirements for issuance of rating. — An applicant for an Instrument Rating (Helicopters) shall satisfy the following requirements, namely:—

(a) Knowledge: He shall pass a written and oral examination in Air Regulations, Air Navigation and Aviation Meteorology as per the syllabus prescribed for the issue of a Commercial Pilot's Licence (Helicopters) and he shall also pass signals (Practical) examination for interpretation of aural and visual signals for the issue of this rating as per the prescribed syllabus.

(b) Experience: He shall produce evidence of having satisfactorily completed as a pilot of a helicopter not less than one hundred fifty hours of flight time which shall include not less than —

(i) one hundred hours of flight time as pilot-in-command or fifty hours of flight time as pilot-in-command and one hundred hours as co-pilot performing the duties and functions of a pilot-in-command under the supervision of a pilot who satisfies the flying experience requirements of a check pilot;

(ii) fifty hours of cross-county flight time as pilot-in-command of a helicopter or fifteen hours as pilot-in-command and seventy hours as

co-pilot performing the duties and functions of a pilot-in-command under the supervision of a pilot who satisfies the flying experience requirements of a check pilot;

(iii) forty hours of Instrument time in helicopters of which not more than twenty hours shall be instrument ground time and a minimum of five hours of instrument time shall have been completed on helicopters within a period of six months immediately preceding the date of application:

Provided that in the case of a pilot, who holds a current Instrument Rating (Aeroplanes), he shall have not less than fifty hours of flight time as pilot-in-command of helicopter including not less than twenty hours of cross-country flight time and not less than twenty hours of instrument flight time of which not more than ten hours may be instrument ground time.

(c) Other requirements: He shall be —

(i) holder of a current Pilot's Licence (Helicopters);

(ii) holder of a current Flight Radio Telephone Operator's Licence for operation of radio telephone apparatus on board an aircraft issued by the Director General.

(d) Flying training: He shall have completed the flying training in accordance with the syllabus as prescribed by the Director General.

(e) Skill: *(i)* he shall have demonstrated his competency to fly a helicopter in respect of which Instrument Rating is desired, solely with the aid of instruments by undergoing an instrument flying test to the satisfaction of an examiner within a period of six months immediately preceding the date of application for the rating;

(ii) the flight test shall be carried out in accordance with the syllabus as prescribed by the Director General; and

(iii) the Director General may allow such tests or part thereof to be carried out on a flight simulator Level D or equivalent or higher level approved for the conduct of Instrument Rating Tests for the applicable type of aircraft.

2. Validity.— *(a)* The Instrument Rating shall be valid for a period of twelve months from the date of the Instrument Rating Flying Test.

(b) It shall be renewed for a further period of twelve months at a time from the date of expiry provided that the Instrument Rating Renewal Check has been carried out within two months preceding the date of expiry and all other requirements for renewal are met.

(c) In other cases, the validity of renewal of the rating shall commence from the date of the test.

3. Renewal. — The instrument rating may be renewed on receipt of satisfactory evidence of the applicant—

(a) having satisfactorily completed the Instrument Rating Renewal Check on the helicopter with an examiner or instructor or on an approved flight simulator allowed by the Director General.

(b) having a current Flight Radio Telephone Operator's Licence issued by the Director General for operation of radio telephone apparatus on board an aircraft.

4. Extension of Instrument Rating.— For extension of Instrument Rating to include an additional type of helicopter, an applicant shall be required to produce evidence of having satisfactorily completed the flight tests in accordance with clause (e) of paragraph 1 in respect of the type of helicopter for which the extension of Instrument Rating is desired and the flight test shall have been completed within a period of six months immediately preceding the date of application for the extension of Instrument Rating.

5. Privileges.— Subject to the validity of the Instrument Rating, the privileges of the holder shall be to fly under the instrument flight rules, the types of helicopters on which he has demonstrated his competency in accordance with clause (e) of paragraph 1.

SECTION P

ASSISTANT FLIGHT INSTRUCTOR'S RATING (AEROPLANES OR HELICOPTERS)

1. Requirements for issuance of rating. — An applicant for an Assistant Flight Instructor's Rating shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than eighteen years of age on the date of application.

(b) Knowledge: He shall pass an oral or written examination in the following subjects in accordance with the prescribed syllabus—

(i) techniques of applied Instruction;

(ii) assessment of student performance in those subjects in which ground instruction is given;

(iii) the learning process;

(iv) elements of effective teaching;

(v) student evaluation and testing, training philosophies;

(vi) training programme development;

(vii) lesson planning;

(viii) classroom instructional techniques;

(ix) use of training aids including flight simulation training devices as appropriate;

(x) analysis and correction of student errors;

(xi) human performance relevant to flight instruction including principles of threat and error management; and

(xii) hazards involved in simulating system failure and malfunctions in the aircraft.

(c) Experience: He shall produce evidence of having satisfactorily completed as pilot of an aeroplane on the date of application for the rating not less than —

(i) one hundred hours of flight time as a pilot-in-command of an aeroplane of which not less than twenty hours shall have been completed within a period of eighteen months immediately preceding the date of application and in the case of helicopter, not less than fifty hours flight time as a pilot-in-command of a helicopter of which not less than twenty hours shall have been completed within a period of eighteen months immediately preceding the date of application; and

(ii) twenty hours of flying training as an instructor under an approved flight instructor or examiner as per the syllabus prescribed by the Director General.

(d) Other requirements: He shall be the holder of an appropriate current professional pilot's licence.

(e) Skill: He shall have demonstrated to the satisfaction of the examiner his competency as an assistant flight instructor by performing the procedures and manoeuvres as per the syllabus prescribed by the Director General within a period of six months immediately preceding the date of application and such demonstration of competency shall be within the period as specified by the Director General from the date of commencement of flight instruction course.

2. Validity.— *(a)* The rating shall be valid for a period of three years from the date of issue of the rating.

(b) In the case of renewal, the period of validity of the rating shall be for a period of three years which shall commence from the date following the date of expiry of the previous validity, subject to the condition that the application for renewal has been submitted within one month preceding the date of expiry and all other requirements for renewal are met on the date of application.

(c) In cases other than those referred to in sub-paragraph *(b),* the validity of renewal of the rating shall commence from the date of renewal of the rating.

3. Renewal. — The Assistant Flight Instructor's Rating may be renewed on receipt of satisfactory evidence of the applicant—

(a) having satisfactorily completed not less than twenty hours of flight time as an assistant flight instructor within a period of twelve months immediately preceding the date of application for renewal; or

(b) having satisfactorily completed a flight instructor's refresher course approved by the Director General and the flying tests as laid down in clause *(e)* of paragraph 1 within a period of six months immediately preceding the date of application for renewal.

4. Privileges.— Subject to the validity of endorsements and rating in his pilot's licence of which this Assistant Flight Instructor's Rating forms a part, the privileges of the holder of an Assistant Flight Instructor's Rating shall be to impart instructions during flight by day only and under the authority and supervision of a flight instructor, on all types of aeroplanes or helicopters having all-up-weight not exceeding one thousand five hundred kg., and which are entered in the aircraft rating of his licence.

SECTION Q

FLIGHT INSTRUCTOR'S RATING (AEROPLANES OR HELICOPTERS)

1. Requirements for issuance of rating. — An applicant for a Flight Instructor's Rating shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than twenty years of age on the date of application.

(b) Knowledge: He shall pass an oral or written examination in the following subjects in accordance with the prescribed syllabus:—

(i) techniques of applied instruction;

(ii) assessment of student performance in those subjects in which ground instruction is given;

(iii) the learning process;

(iv) elements of effective teaching;

(v) student evaluation and testing, training philosophies;

(vi) training programme development;

(vii) lesson planning;

(viii) classroom instructional techniques;

(ix) use of training aids including flight simulation training devices as appropriate;

(x) analysis and correction of student errors;

(xi) human performance relevant to flight instruction including principles of threat and error management; and

(xii) hazards involved in simulating system failure and malfunctions in the aircraft.

(c) Experience: He shall produce evidence of having satisfactorily completed as pilot of an aeroplane or a helicopter, as the case may be, on the date of application for the rating—

(i) (a) twenty hours of flight time as pilot-in-command by night during which at least twenty take-offs and twenty landings have been carried out; and

(b) two hundred hours of flight time on aeroplanes or one hundred hours on helicopters, as the case may be, in the capacity of an assistant flight instructor or qualified flight instructor in the service of Defence Forces; or

(ii) five hundred hours flight time as pilot-in-command of an aeroplane or two hundred fifty hours as pilot-in-command of a helicopter, as the case may be:

Provided that a pilot from Defence Forces who has successfully completed the qualified flight instructor's course and also satisfies requirements as laid down in this clause and clause *(d),* may be considered for the issue of Flight Instructor's Rating.

(d) Other Requirements: He shall be—

(i) the holder of a current Commercial Pilot's Licence (Aeroplanes or Helicopters) Airline Transport Pilot's Licence (Aeroplanes or Helicopters);

(ii) the holder of a current Instrument Rating.

Note**:** In the absence of a current Instrument Rating, an applicant will not be permitted to impart instruction in instrument flying.

(e) Skill: He shall have demonstrated his competency as a flight instructor by performing procedures and manoeuvres prescribed in the syllabus by day and by night to the satisfaction of an approved examiner within a period of six months immediately preceding the date of application and such demonstration of competency shall be within the period as specified by the Director General from the date of commencement of flight instruction course.

(f) Flight instruction: After completing the experience requirement as laid down in clause *(c),* the applicant shall undergo a flight instructor's course approved by the Director General before undergoing the skill test as mentioned in clause *(e)* and shall provide evidence of —

(i) having received instructions in flight instructional techniques including demonstration, student practices, recognition and correction of common student errors; and

(ii) having practiced instructional techniques in those flight manoeuvres and procedures in which it is intended to provide flight instruction.

2. Validity.— *(a)* The rating shall be valid for a period of three years from the date of issuance of the rating.

(b) In the case of renewal, the period of validity of the rating shall be for a period of three years which shall commence from the date following the date of expiry of the previous validity, subject to the condition that the application for renewal has been submitted within one month preceding the date of expiry and all other requirements for renewal are met on the date of application.

(c) In cases other than those referred to in sub-paragraph *(b),* the validity of renewal of the rating shall commence from the date of renewal of the rating.

3. Renewal. — The Flight Instructor's Rating may be renewed on receipt of satisfactory evidence of the applicant —

(a) having satisfactorily completed not less than twenty hours of flight time as a flight instructor within a period of twelve months immediately preceding the date of application for renewal; or

(b) having satisfactorily completed a flight instructor's refresher course approved by the Director General and the flying tests within a period of six months immediately preceding the date of the application for renewal as laid down in clause *(e)* of paragraph 1.

4. Aircraft rating. — The rating shall indicate the class and the type of aeroplane or helicopter, as the case may be, on which the holder is entitled to impart instructions.

5. Extension of aircraft rating. — For extension of aircraft rating to include additional types of aeroplane or helicopter, as the case may be, having an all-up-weight exceeding five thousand seven hundred kg., the applicant shall be required to produce evidence of —

(a) having obtained appropriate aircraft rating for that type on his professional pilot's licence;

(b) having satisfactorily completed not less than five hundred hours of flight time as pilot-in-command on aeroplanes or three hundred hours of flight time as pilot-in-command on helicopters, as the case may be; and

(c) having satisfactorily completed the flying tests as laid down in clause *(e)* of paragraph 1 on the type desired to be included in this rating.

Note : Requirements mentioned in clauses *(b)* and *(c)* may be varied by the Director General under special circumstances in the case of an experienced flight instructor who has successfully completed a course approved by the Director General.

6. Privileges.— Subject to the validity of endorsements and ratings in the pilot's licence of which this Flight Instructor's Rating forms a part and also any endorsement on this rating, the privileges of the holder of a Flight Instructor's Rating shall be —

(a) to impart flying instructions on aeroplane or helicopter, as the case may be, having an all-up-weight not exceeding five thousand seven hundred kg. and which is entered in the aircraft rating of his licence, and also on an aeroplane or helicopter having an all-up-weight exceeding five thousand seven hundred kg. and which is entered in his Instructor's Rating.

(b) to supervise and authorise flights by student pilots and supervise flying instructions imparted by assistant flight instructors:

Provided that this privilege shall be subject to any directions that may be issued by the Director General in this behalf to flying training organisations.

SECTION R

STUDENT NAVIGATOR'S LICENCE

1. Requirements for issuance of licence. — An applicant for a Student Navigator's Licence shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than twenty years of age on the date of application.

(b) Educational qualification: He shall have passed Class 12th with Physics and Mathematics or its equivalent examination from a recognised Board or University.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical board after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass a written examination with oral and practical tests in Air Regulations, Air Navigation, Flight Navigation, Instruments, Radio or Radar Aids, Astronomical Navigation, Aviation Meteorology, and Signals (Practical) test for interpretation of aural and visual signals in accordance with the syllabus as prescribed by the Director General.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal.— The licence may be renewed on receipt of satisfactory evidence of the applicant having undergone a medical examination in accordance with clause *(c)* of paragraph 1 and subject to satisfactory exercise of privileges.

4. Privileges.— Subject to compliance with the relevant provisions of rules 78, 79 and rule 82 of the privileges of the holder of a Student Navigator's Licence shall be to act as a navigator on any flight, where a flight navigator is required to be carried in accordance with the provisions of the rule 114 provided that he shall so act at all times under the direct supervision of a licensed flight navigator and solely for the purposes of gaining practical experience in navigation to qualify for a Flight Navigator's Licence.

SECTION S

FLIGHT NAVIGATOR'S LICENCE

1. Requirements for issuance of licence. — An applicant for a Flight Navigator's Licence shall satisfy the following requirements, namely: —

(a) Age: He shall be not less than twenty-one years of age on the date of application.

(b) Educational qualification: He shall have passed Class 12th with Physics and Mathematics or its equivalent examination from a recognised Board or University.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical board after undergoing a medical examination, during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge: He shall pass a written examination with oral and practical tests in Air Regulations, Air Navigation, Flight Navigation, Instruments, Radio or Radar Aids, Astronomical Navigation, Aviation Meteorology, and Signals (Practical) test for interpretation of aural and visual signals in accordance with the syllabus as prescribed by the Director General.

(e) Experience: *(i)* the applicant shall have completed in the performance of the duties of a flight navigator not less than two hundred hours of flight time acceptable to the Director General, in aircraft engaged in cross-country flights including not less than thirty hours by night;

(ii) when the applicant has completed as a pilot not less than two hundred hours of flight time acceptable to the Director General, such experience to the extent of one hundred hours cross-country flight time shall be considered as experience for the purpose of sub-clause *(i);* and

(iii) the applicant shall produce evidence of having satisfactorily determined the aircraft's position in flight, and used that information to navigate the aircraft, as follows-

(a) by night: not less than twenty-five hours by celestial observations; and

(b) by day: not less than twenty-five hours by celestial observations in conjunction with self-contained or external referenced navigation systems.

(f) Skill: The applicant shall have demonstrated in flight by day and by night within a period of six months immediately preceding the date of application, the ability to perform as flight navigator of an aircraft with a degree of competency appropriate to privileges of a flight navigator during which he should have shown-

(i) the exercise of good judgement and airmanship;
(ii) application of aeronautical knowledge;
(iii) performed all duties as part of an integrated crew; and

(iv) communicate effectively with other flight crew members.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of the applicant—

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1;

(b) having completed as a flight navigator not less than twenty hours of flight time during which he shall have navigated an aircraft by the use of dead reckoning, radio bearings and such other aids as are available to him in navigating an aircraft within a period of twelve months immediately preceding the date of application for renewal, or in lieu thereof having satisfactorily completed the tests as laid down in clause *(f)* of paragraph 1 within the same period.

4. Privileges. — Subject to compliance with the relevant provisions of rules 78, 79 and rule 82 of the privileges of the holder of a Flight Navigator's Licence shall be to act as a flight navigator on any flight where a flight navigator is required to be carried in accordance with the provisions of rule 114.

SECTION T

STUDENT FLIGHT ENGINEER'S LICENCE

1. Requirements for the issuance of licence. — An applicant for a Student Flight Engineer's Licence shall satisfy the following requirements, namely:—

(a) Age: He shall not be less than twenty-one years of age on the date of application.

(b) Educational qualifications: He shall have passed Class 12th with Physics and Mathematics or its equivalent examination from a recognised Board or University.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical board after undergoing a medical examination during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Technical qualification: He shall have completed a flight engineer's ground course of instructions in the basic technical and aeronautical knowledge required of a flight engineer as approved by the Director General.

(e) Knowledge: Subject to the successful completion of the course mentioned in clause *(d)*, he shall pass a written examination in the following subjects—

(i) regulations and procedures including rules, in so far as duties of flight engineers are concerned;

(ii) fundamental of aerodynamics and theory of flight and navigation;

(iii) general principles of constructions, maintenance and functioning of airframe, power plants including their accessories, instruments, installed equipment and related systems;

(iv) selected elements of flight planning including centre of gravity computation, fuel consumption and endurance, power plant output and

centre of power output, engine power curves and mathematical computation involved;

(v) aircraft performance characteristics and limitations;

(vi) flight documentation relating to the duties of flight engineers;

(vii) procedures in the event of power plant or system malfunction or emergencies particularly in the event of fire;

(viii) knowledge of varying meteorological conditions and their effect on aircraft, power plant operations;

(ix) detailed knowledge of flight or operation manuals including the knowledge of the functioning of the aircraft systems and other components installed in the systems; and

(x) procedures of airworthiness checks, defects reporting, pre-flight inspection, types of fuel precautions during refuelling and use of external power.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — Licence may be renewed for a period not exceeding twelve months from the date of a successful medical examination.

4. Aircraf rating. — Licence shall indicate the type of aircraft on which the holder is entitled to fly in the capacity of a student flight engineer.

5. Extension of aircraft rating. — For extension of aircraft rating to include an additional type of aircraft, an applicant shall have completed a flight engineer's ground course of instructions as per clause *(ii)* of paragraph 7 approved by the Director General and passed a written examination subsequent to successful completion of the approved course, in aircraft engine and systems pertaining to the type of aircraft for which extension of aircraft rating is desired.

6. Privileges.— Subject to the validity of endorsements and ratings in the licence, the privileges of the holder of a Student Flight Engineer's Licence shall be to act as a student flight engineer on any type of aircraft entered in aircraft rating of his licence and which has separate flight engineer's station, provided that—

(a) he shall so act at all times under personal supervision of a flight engineer and solely for the purpose of gaining flight experience required for obtaining a Flight Engineer's Licence;

(b) (i) he shall not act as a student flight engineer of a transport aircraft carrying passengers unless he has satisfactorily completed a course of training for a minimum of ten hours on local training flights or non-passenger carrying flight during which he shall have carried out not less than ten take-offs and ten landings and he has been certified fit by an examiner to operate as student flight engineer on the type of transport aircraft carrying passengers; and

(ii) out of the ten hours stipulated as training experience, not more than eight hours shall be on an approved synthetic device landing carried out on an approved synthetic device shall not count towards the ten landings referred to above.

7. Flight engineer's ground course of instructions.— As referred to in clause *(d)* of paragraph 1 shall consist of basic course and type course, as per the details given in below, namely: —

(i) Basic course: The duration of the course shall be decided by the Director General, keeping in view the educational and experience background of trainees and course shall consist of the following subjects, namely: —

(a) aircraft rules and civil airworthiness requirements, in so far as duties of flight engineers are concerned;

(b) theory of flight;

(c) properties of air;

(d) basic airframe and associated systems;

(e) basic engine: gas turbine engine or piston engine including propeller system, as applicable;

(f) basic electrical;

(g) ground instruments;

(h) ground handling and servicing procedures;

(i) weight and balance;

(j) emergency equipments;

(k) fuel systems; and

(l) ice and rain protection;

(ii) Type course— The duration of the course shall be as approved by the Director General of keeping in view complexity of aircraft and shall cover the following subjects, namely:—

(a) aircraft systems and accessories including malfunction analysis;

(b) aircraft engines: gas turbine engine or piston engine including propeller system, as applicable including malfunction analysis;

(c) fuel management;

(d) ground handling and servicing procedures;

(e) weight and balance;

(f) use of cockpit list or minimum equipment list;

(g) external and internal pre-flight checks;

(h) normal operation procedures;

(i) alternate or emergency operating procedures;

(j) aircraft performance;

(k) documents relating to aircraft airworthiness;

(l) emergency equipment;

(m) fire protection systems;

(n) aircraft system, power plants systems, instrument system and electrical system operating limitation;

(o) ice and rain protection;

(p) landing gear and breaking system; and

(q) a general knowledge of normal, abnormal and emergency use of radio, communication, navigation and radar systems.

8. Exemption.— Where an applicant produces acceptable evidence that he has attended a ground course of instructions or has passed Aircraft Maintenance Engineer's Licence examinations of at least equal standards in any subject specified earlier in this Section, he may be granted exemption from the requirements of paragraph 7 as applicable, by the Director General.

SECTION U

FLIGHT ENGINEER'S LICENCE

1. Requirement for the issuance or extension of licence. — An applicant for issuance or extension of Flight Engineer's Licence shall satisfy the following requirements, namely:—

(a) he must have a current Student Flight Engineer's Licence on the type of aircraft which is desired to be included in the aircraft rating of his flight engineer's licence.

(b) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from an approved medical board after undergoing a medical examination during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(c) Experience: An applicant shall produce evidence of having completed within a period of twelve months immediately preceding the date of his application for licence one hundred hours of flying experience on the type of aircraft desired to be included in the licence and out of this flying experience not more than fifty hours shall be obtained on an approved synthetic flight trainer.

(d) Skill: He shall have demonstrated his competency as a flight engineer to the satisfaction of the Director General approved examiner by undergoing the following tests on the type of aircraft to which the application relates within a period not exceeding six months immediately preceding the date of such application, namely: —

(i) Normal Operations— A check on representative air route covering:

(A) pre-flight inspection;

(B) refuelling procedure;

(C) inspection of appropriate maintenance documents;

(D) all normal procedure applicable to his duties as specified in the relevant parts of operations manual, crew co-operation; and

(E) defect reporting;

(ii) abnormal and alternate (stand by) operation— A check on his ability to recognise abnormal functioning of systems and use of alternate (stand by) procedures;

(iii) emergency procedures— Demonstration of practical knowledge of emergency procedures and the ability to take appropriate action in the event of engine failure occuring particularly during take-offs and landings.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — The licence may be renewed on receipt of satisfactory evidence of an applicant—

(a) having undergone a successful medical examination in accordance with clause *(b)* of paragraph 1;

(b) having satisfactorily completed not less than twenty hours of flight time as a flight engineer within a period of six months immediately preceding the date of application for renewal or in lieu thereof having completed flight tests as laid down in clause *(d)* of paragraph 1 within the same period.

4. Aircraft rating. — The licence shall indicate the type of aircraft the holder is entitled to fly in the capacity of a flight engineer.

5. Extension of aircraft rating. — For extension of aircraft rating to include an additional type of aircraft, an applicant shall be required to produce evidence of—

(a) having a current Student Flight Engineer's Licence on the type of aircraft which is desired to be included in the aircraft rating of his licence;

(b) having completed within a period of twelve months immediately preceding the date of the application for extension of aircraft rating, fifty hours of flying experience on the type of aircraft desired to be included in his licence and out of this flying experience not more than twenty-five hours shall have been obtained on an approved synthetic flight trainer;

(c) having successfully completed the flight test as laid down in clause *(d)* of paragraph 1 in respect of the type of the aircraft for which the aircraft rating is desired, within a period of six months immediately preceding the date of the application for extension of aircraft rating.

6. Privileges. — Subject to the endorsements and rating in the licence, the privileges of the holder of a Flight Engineer's Licence shall be to act as flight engineer in any aircraft of a type specified in the aircraft rating of his licence provided during the preceding twelve months he has demonstrated his competency as per sub-clauses *(ii)* and *(iii)* of clause *(d)* of paragraph 1, to an approved examiner, to undertake duties of flight engineer in the type of aircraft or in an approved flight simulator.

SECTION V

FLIGHT RADIO TELEPHONE OPERATOR'S (RESTRICTED) LICENCE

1. Requirements for issuance of licence. — An applicant for a Flight Radio Telephone Operator's (Restricted) Licence shall satisfy the following requirements, namely:—

(a) Age: He shall be not less than sixteen years of age on the date of application.

(b) Educational qualifications: He shall have passed Class 10th or its equivalent examination from a recognised Board.

(c) Medical fitness: He shall produce on a prescribed proforma, an assessment of medical fitness from an approved medical practitioner in accordance with the provisions of rule 78 and the period of validity of the medical assessment shall be as specified in rule 79.

(d) Knowledge: He shall pass a written examination and practical test in accordance with the syllabus as prescribed by the Director General.

(e) Experience: He shall be the holder of a Student Pilot's Licence (Aeroplanes, Helicopters, Gliders, Microlights, Light Sport Aircraft or Balloons) or a Private Pilot's Licence (Aeroplanes or Helicopters) or a Pilot's Licence (Microlight, Light Sport Aircraft, Gliders or Balloons).

(f) Skill: He may, if so necessary, be subjected to a flight check to show his competency in operation of flight radio telephone apparatus on board an aircraft.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Renewal. — A licence will be renewed on production of satisfactory evidence of—

(a) having undergone a medical examination in accordance with clause *(c)* of paragraph 1.

(b) having satisfactorily completed not less than five hours of flight time on an aircraft fitted with radio telephone apparatus for two-way communication during which he had operated the radio telephone apparatus or in lieu thereof meets all the requirements for initial issue of this licence.

4. Privileges. — Subject to the endorsement in the licence, the privileges of a holder of a Flight Radio Telephone Operator's (Restricted) Licence shall be to operate radio telephone apparatus on board an aircraft for two-way communications on very high frequency.

SECTION W

FLIGHT RADIO TELEPHONE OPERATOR'S LICENCE

1. Requirements for issuance of licence. — An applicant for a Flight Radio Telephone Operator's Licence shall satisfy the following requirements, namely: —

(a) Age: He shall be not less than eighteen years of age on the date of application.

(b) Educational qualification: He shall have passed Class 12th with Physics and Mathematics or its equivalent examination from a recognised Board or University.

(c) Medical fitness: He shall produce in a prescribed proforma, a certificate of physical fitness from either an approved medical practitioner or an approved medical board after undergoing a medical examination during which he shall have established his medical fitness on the basis of compliance with the requirements as notified by the Director General under the provisions of rule 78.

(d) Knowledge or technical qualifications: He shall produce a valid Radio Telephone Operator (Restricted) Certificate and Licence issued under these rules.

(e) Experience: He shall produce satisfactory evidence of having completed not less than two months of satisfactory experience as a flight radio telephone operator and obtained experience of at least ten hours during the preceeding twelve months in an aircraft equipped with radio apparatus in accordance with the provisions of rule 59:

Provided that an applicant who has not had the experience as required above may be granted a provisional licence for a period not exceeding one year in order to enable him to obtain the necessary experience :

Provided further that an applicant who is licensed flight crew will not be required to produce evidence of experience.

2. Validity. — The licence shall be valid for a period as specified in rule 79.

3. Privileges. — Subject to the endorsements in the licence, the privileges of the holder of a Flight Radio Telephone Operator's Licence shall be to act as a flight radio telephone operator on any aircraft equipped with radio apparatus in accordance with the provisions of rule 59 including radio apparatus which communicates by radio telephony except that the holder of a provisional licence shall, at all times, operate under the supervision of a person holding a Flight Radio Telephone Operator's Licence.

THE SECOND SCHEDULE

AIR TRAFFIC SERVICES PERSONNEL

(See Chapter IV)

SECTION A

GENERAL

1. Application for grant of a licence or rating. — *(a)* The application for issue or renewal of a licence or rating shall be made to the Director General in a specified proforma, and shall be accompanied by—

(i) an assessment of medical fitness issued by the approved medical authority or Director General;

(ii) a recent photograph of the applicant showing the head (uncovered) and shoulders in front view, in the format and specifications, as may be specified by the Director General;

(iii) class 10th certificate or marks sheet of a recognised Board or its equivalent or the birth certificate issued by a Municipal Corporation or Committee as proof of age;

(iv) payment of the specified fee;

(v) proof of meeting the educational qualification, knowledge and experience requirements; and

(vi) any other information required by the Director General.

(b) The date of application shall be the date on which the application is received in the Directorate General of Civil Aviation.

(c) The licences and ratings specified in this Schedule shall be issued in the name as entered in the Class 10th certificate or marks sheet of a recognised Board or its equivalent.

2. Application for renewal of licence. — *(a)* The application for renewal of a licence or rating shall be made in a specified proforma to the Director General or to any other authority designated by him in this behalf, and shall be accompanied by**—**

(i) an assessment of medical fitness issued by the Director General referred to in rule 91;

(ii) a statement of the recency experience duly authenticated by the person in-charge of the concerned air traffic services units;

(iii) payment of the specified fee; and

(iv) any other information required by the Director General.

(b) The date of application shall be the date on which the application is received in the Directorate General of Civil Aviation.

3. Examination. — *(a)* The applicant for issue of a Student Air Traffic Controller's Licence or Air Traffic Controller's Licence or a rating shall be required to pass the examinations conducted in the manner specified by the Director General:

Provided that when two air traffic controller ratings are sought concurrently, the licence holder shall meet the examination requirements of both the ratings.

(b) The candidate shall, on demand by the examiner, furnish proof for his identification before the examination.

(c) An applicant who fails in any examination shall not be permitted to appear for re-examination within a period of at least two weeks from the date of examination.

4. Assessment by the examiner or Board. — For getting an endorsement, the holder of a Student Air Traffic Controller's Licence or an Air Traffic Controller's Licence shall

be assessed by an examiner or a Board, appointed by the Director General or an organisation under the control of the Government duly authorised by the Director General:

Provided that when two air traffic controller ratings are sought concurrently, the licence holder shall meet the skill requirements of both the ratings.

5. Validity of examination and experience. — *(a)* The applicant for a licence or rating shall have passed the examination for issuing a licence or rating within a period of not more than five years preceding the date of application.

(b) The application for a rating shall be made within six months from the completion of experience specified in Sections D, E, F, G, H and I:

Provided that the applicant shall have completed at least ten hours of experience in preceding six months from the date of application.

(c) In case the validity of an examination expires on a holiday, it shall be automatically extended to the next working day.

6. Experience requirement. — *(a)* The applicant shall have satisfactorily completed an approved training course; and

(b) The holder of a Student Air Traffic Controller's Licence or an Air Traffic Controller's Licence shall be required to undergo on-the-job training in the actual control of air traffic under the supervision of an instructor for the period and duration of hours specified in the relevant Section of this Schedule for grant of a particular rating:

Provided that when an applicant already holds or has held the rating of any other unit at the same air traffic services station, or the same rating of another air traffic services station, on being satisfied and subject to the conditions specified by the Director General, on the basis of traffic volume of the air traffic unit for which the rating is being sought and experience of the licence holder, the licensing authority may approve on-the-job training for a shorter period and duration of hours than the one specified in the relevant Section of this Schedule:

Provided further that when two air traffic controller ratings are sought concurrently, the licence holder shall meet the experience requirements of the rating which requires the higher experience for such rating.

Explanation. — For the purpose of this paragraph, "instructor" means an air traffic control on-the-job training instructor.

7. Conditions precedent to exercise of privileges. — *(a)* No person holding a current Air Traffic Controller's Licence shall exercise the privileges of his licence or rating unless he meets competency, recency and language proficiency requirement and medical standards, as applicable to him in accordance with these rules:

Provided that in case the recency or competency requirements cannot be completed due to insufficient movements or watch hours then the licence holder shall complete minimum ten hours of simulated exercise including emergency and shall also undergo a skill assessment for respective rating in not more than ten consecutive days of commencement of simulated exercises.

(b) The holder of a licence shall not exercise the privilege of their licence and related ratings while under the influence of alcohol or any psychoactive substance, which might render him unable to safely and properly exercise the privileges of the licences and ratings.

8. Recency requirement. — A licence holder is considered to be recent in respect of rating and endorsement on his licence if he has worked for minimum ten hours in respect of a particular ratings during preceding six months.

9. Language proficiency. — *(a)* An applicant for grant of Student Air Traffic Controller's Licence or Air Traffic Controller's Licence shall have the ability to speak and understand the English language used for radio telephony communications to the level of proficiency specified by the Director General.

(b) The level of proficiency shall be evaluated in accordance with the procedures specified by the Director General.

(c) The licencing authority shall indicate the level of proficiency in the licence.

SECTION B

STUDENT AIR TRAFFIC CONTROLLER'S LICENCE

1. Requirements for issuance of licence. — An applicant for a Student Air Traffic Controller's Licence shall satisfy the following requirements, namely: —

(a) Age: He shall not be less than twenty years of age on the date of application.

(b) Educational qualification: He shall have passed any one of the following degrees or hold a valid licence as specified below, namely: —

(i) Bachelor of Science with Physics and Mathematics; or

(ii) Bachelor of Science (Honours in Physics); or

(iii) Bachelor of Science (Honours in Mathematics); or

(iv) an equivalent examination to sub-clause *(i)* or sub-clause *(ii)* or sub-clause *(iii)* , from a recognised University; or

(v) Bachelor of Engineering or a Bachelor of Technology in any discipline with physics and mathematics as subject in any one of the semesters; or

(vi) an integrated or dual degree with physics and mathematics as subject in any one of the semesters; or

(vii) shall hold a valid Indian Commercial Pilot's Licence.

(c) Medical fitness: He shall hold a valid medical fitness assessment issued by the Director General as referred to in rule 91.

(d) Knowledge: He shall have demonstrated the required level of knowledge by passing a written examination in the following subjects, namely: —

(i) Air law: The provisions of these rules, Civil Aviation Requirements and any other circulars or instructions relevant to the air traffic control;

(ii) Air traffic control equipment: Principles, use and limitations of equipment used in air traffic control;

(iii) General Knowledge: Principles of flight, principles of operation and functioning of aircraft and remotely piloted aircraft system

engines and systems, aircraft performance relevant to air traffic control operations;

(iv) Human performance: Human performance relevant to air traffic control including principles of threat and error management;
(v) Meteorology: Aeronautical meteorology, use and appreciation of meteorological documentation and information, origin and characteristic of weather phenomena affecting flight operations and safety, altimetry;

(vi) Navigation: Principles of air navigation, principles, limitation and accuracy of navigation systems and visual aids; and

(vii) Operational procedures: Air traffic control, communication, radio-telephony and phraseology procedure (routine, non-routine and emergency), use of relevant aeronautical documentation, safety practices associated with flight.

(e) Experience: He shall have successfully completed an approved training course from an approved training organisation and pass the relevant examination, and also completed an approved course of initial training in the rating or discipline relating to any of the rating from an approved organisation.

2. Validity. — The licence shall be valid for the period specified in rule 94 and shall lapse on the holder acquiring an Air Traffic Controller's Licence.

3. Renewal. — The licence may be renewed for a period not exceeding three years from the date of fresh medical examination as specified in clause *(c)* of paragraph 1.

4. Privileges. — Subject to the validity of licence, the holder of a Student Air Traffic Controller's Licence may perform duty as an air traffic controller in a particular air traffic control unit in order to complete the requirement of on-the-job training for the purpose of qualifying for endorsement of such rating on his licence:

Provided that he shall perform duty—

(i) at all times under the direct supervision of an authorised instructor rated on that air traffic control unit; and

(ii) in an air traffic control unit for which he has successfully completed an approved training course.

SECTION C

AIR TRAFFIC CONTROLLER'S LICENCE

1. Requirements for issuance of licence. — An applicant for an Air Traffic Controller's Licence shall satisfy the following requirements, namely: —

(a) Age: He shall not be less than twenty-one years of age on the date of application.

(b) Educational qualification: He shall have passed any one of the following degrees or hold a valid licence as specified below: —

(i) Bachelor of Science with Physics and Mathematics; or

(ii) Bachelor of Science (Honours in Physics); or

(iii) Bachelor of Science (Honours in Mathematics); or

(iv) an equivalent examination to sub-clause *(i)* or sub-clause *(ii)* or sub-clause *(iii)*, from a recognised University; or

(v) Bachelor of Engineering or a Bachelor of Technology in any discipline with Physics and Mathematics as subject in any one of the semesters; or

(vi) an integrated or dual degree with physics and mathematics as subject in any one of the semesters; or

(vii) shall hold a valid Indian Commercial Pilot's Licence

(c) Medical fitness: He shall hold a valid medical fitness assessment issued by the Director General as referred to in rule 91.

(d) Knowledge: *(i)* He shall hold a valid Student Air Traffic Controller's Licence.

(ii) He shall have passed the examination for obtaining at least one rating for a particular air traffic control unit as specified in Sections D, E, F, G, H and I of this Schedule.

(e) Experience: He shall produce a certificate of having —

(i) satisfactorily completed an approved training course for applicable rating; and

(ii) accomplished not less than three months of satisfactory service engaged in the actual control of air traffic under the supervision of an appropriately rated instructor.

Explanation. — For the purpose of this clause, the experience specified in Sections D, E, F, G, H and I may be counted as part of the experience required under this Section.

2. Validity. — The licence shall be valid for a period as specified in rule 94.

3. Renewal. — The licence shall be renewed for a period specified in rule 94 subject to the applicant holding a valid medical fitness assessment and at least one valid rating.

4. Privileges. — Subject to the validity of licence, the holder of an Air Traffic Controller's Licence may perform duty as an air traffic controller in any air traffic control unit which is included in his licence as rating.

SECTION D

AERODROME CONTROL RATING

1. Requirements for issuance of rating. — An applicant for an Aerodrome Control Rating shall satisfy the following requirements, namely: **—**

(a) Knowledge: He shall hold either a Student Air Traffic Controller's Licence or an Air Traffic Controller's Licence and shall have demonstrated a level of knowledge by passing the examination in the following subjects in relation to the relevant aerodrome control tower, namely: **—**

(i) aerodrome lay out, physical characteristics and visual aids;

(ii) airspace structure;

(iii) applicable rules, procedures and source of information;

(iv) air navigation facilities;

(v) air traffic control equipment and its use;

(vi) terrain and prominent landmarks;

(vii) characteristics of air traffic;

(viii) weather phenomena;

(ix) emergency, search and rescue plans; and

(x) any other subject considered appropriate for the particular air traffic services unit.

(b) Experience: He shall produce a certificate of having—

(i) satisfactorily completed an approved training course for applicable rating; and

(ii) undergone on-the-job training for a period of not less than one and a half month, during which at least ninety hours of training has been completed, at the unit for which the rating is sought.

(c) Skill: He shall have been assessed successful by a Board or examiner regarding his skill, judgement and performance to provide a safe, orderly and expeditious aerodrome control service including the recognition and management of threats and errors and the assessment shall be conducted, as soon as possible, after the completion of on-the-job training requirement.

2. Validity. — The rating shall become invalid if an air traffic controller has not exercised the privileges of the rating for a period exceeding six months.

3. Revalidation. — The rating shall be revalidated as provided in rule 98.

4. Privileges. — *(a)* The privileges of the holder of the rating shall be to provide or to supervise the provision of aerodrome control service at the aerodrome for which he is rated.

(b) Before exercising the privileges, the holder of the rating shall be familiar with all pertinent and current information.

SECTION E

APPROACH CONTROL PROCEDURAL RATING

1. Requirements for issuance of rating. — An applicant for an Approach Control Procedural Rating shall satisfy the following requirements, namely:—

(a) Knowledge: He shall hold an Air Traffic Controller's Licence or a Student Air Traffic Controller's Licence and shall have demonstrated the required level of knowledge by passing the examination at least in the following subjects for approach control unit at a particular place, namely: —

(i) airspace structure;

(ii) applicable rules, procedures and source of information;

(iii) air navigation facilities;

(iv) air traffic control equipment and its use;

(v) terrain and prominent landmarks;

(vi) characteristics of air traffic and traffic flow;

(vii) weather phenomena;

(viii) emergency, search and rescue plans; and

(ix) any other subject considered appropriate for the particular air traffic services unit.

(b) Experience: He shall produce a certificate of having—

(i) satisfactorily completed an approved training course for applicable rating; and

(ii) undergone on-the-job training for a period of not less than three months, during which at least one hundred and eighty hours of training has been completed, at the unit for which the rating is sought.

(c) Skill: He shall have been assessed successful by a Board or examiner regarding his skill, judgement and performance to provide a safe, orderly and expeditious approach control service including the recognition and

management of threats and errors and the assessment shall be conducted, as soon as possible, after the completion of on-the-job training requirement.

2. Validity. — The rating shall become invalid if an air traffic controller has not exercised the privileges of the rating for a period exceeding six months.

3. Revalidation. — A rating shall be revalidated as provided in rule 98.

4. Privileges. — *(a)* The privileges of the holder shall be to provide or to supervise the provision of approach control service within the airspace jurisdiction or portion thereof of the unit for which he is rated.

(b) Before exercising the privileges, the holder of the rating shall be familiar with all pertinent and current information.

SECTION F

APPROACH CONTROL SURVEILLANCE RATING

1. Requirements for issuance of rating. — An applicant for an Approach Control Surveillance Rating shall satisfy the following requirements, namely: **—**

(a) Knowledge: He shall hold an Air Traffic Controller's Licence or a Student Air Traffic Controller's Licence and shall have demonstrated the required level of knowledge by passing examination in at least the following subjects in relation to the area of responsibility at a particular place, namely: **—**

(i) airspace structure;
(ii) applicable rules, procedures and source of information;
(iii) air navigation facilities;
(iv) air traffic control equipment and its use;
(v) terrain and prominent landmarks;
(vi) characteristics of air traffic and traffic flow;
(vii) weather phenomena;
(viii) emergency , search and rescue plans;
(ix) principles, use and limitations of applicable air traffic services surveillance systems and associated equipment;

(x) procedures for the provision of air traffic services surveillance service, as appropriate including procedures to ensure appropriate terrain clearance; and

(xi) any other subject considered appropriate for the particular air traffic services unit.

(b) *Experience*: He shall produce a certificate of having—

(i) satisfactorily completed an approved training course on the surveillance system; and

(ii) undergone on-the-job training for a period of not less than three months, during which at least one hundred and eighty hours of training has been completed, at the unit for which the rating is sought:

Provided that the requirement as specified in sub-clause *(i)* shall not be required for an air traffic controller holding or having held an Approach or Area Surveillance Rating for any other aerodrome.

(c) Skill: He shall have been assessed successful by a Board or examiner regarding his skill, judgement and performance to provide a safe, orderly and expeditious approach control service including the recognition and management of threats and errors and the assessment shall be conducted, as soon as possible, after the completion of on-the-job training requirement.

2. Validity. — The rating shall become invalid if an air traffic controller has not exercised the privileges of the rating for a period exceeding six months.

3. Revalidation. — A rating shall be revalidated as provided in rule 98.

4. Privileges. — *(a)* The privileges of the holder shall be to provide or to supervise the provision of approach control service with the use of applicable air traffic services surveillance systems for the aerodrome or aerodromes for which he is rated, within the airspace or portion thereof, falling under the jurisdiction of the unit providing approach control service.

(b) Before exercising the privileges, the holder of the rating shall be familiar with all pertinent and current information.

SECTION G

AREA CONTROL PROCEDURAL RATING

1. Requirements for issuance of rating. — An applicant for an Area Control Procedural Rating shall satisfy the following requirements, namely: **—**

(a) Knowledge: He shall hold an Air Traffic Controller's Licence or a Student Air Traffic Controller's Licence and shall have demonstrated the required level of knowledge by passing the examination in the following subjects in relation to the relevant area control unit, namely: **—**

(i) airspace structure;
(ii) applicable rules, procedures and source of information;
(iii) air navigation facilities;
(iv) air traffic control equipment and its use;
(v) terrain and prominent landmarks;
(vi) characteristics of air traffic and traffic flow;
(vii) weather phenomena;
(viii) emergency, search and rescue plans; and
(ix) any other subject considered appropriate for the particular air traffic services unit.

(b) Experience: He shall produce a certificate of having—

(i) satisfactorily completed an approved training course for applicable rating; and

(ii) undergone on-the-job training for a period of not less than three months, during which at least one hundred and eighty hours of training has been completed, at the unit for which the rating is sought:

(c) Skill: He shall have been assessed successful by a Board or examiner regarding his skill, judgement and performance to provide a safe, orderly and expeditious area control service, including the recognition and management of

threats and errors and the assessment shall be conducted, as soon as possible, after the completion of on-the-job training requirement.

2. Validity. — The rating shall become invalid when an air traffic controller has not exercised the privileges of the rating for a period exceeding six months.

3. Revalidation. — A rating shall be revalidated as provided in rule 98.

4. Privileges. — *(a)* The privileges of the holder shall be to provide or to supervise the provision of area control service within the airspace jurisdiction of the control area or portion thereof for which he is rated.

(b) Before exercising the privileges, the licence holder shall be familiar with all pertinent and current information.

SECTION H

AREA CONTROL SURVEILLANCE RATING

1. Requirements for issuance of rating. — An applicant for an Area Control Surveillance Rating shall satisfy the following requirements, namely: **—**

(a) Knowledge: He shall be the holder of an Air Traffic Controller's Licence or an Student Air Traffic Controller's Licence and shall have demonstrated the required level of knowledge by passing the examination in at least the following subjects in relation to the area of responsibility of the particular unit, namely: **—**

(i) airspace structure;
(ii) applicable rules, procedures and source of information;
(iii) air navigation facilities;
(iv) air traffic control equipment and its use;
(v) terrain and prominent landmarks;
(vi) characteristics of air traffic and traffic flow;
(vii) weather phenomena;
(viii) emergency, search and rescue plans;

(ix) principles, use and limitations of applicable air traffic services surveillance systems and associated equipment;

(x) procedures for the provision of air traffic services surveillance service, as appropriate including procedures to ensure appropriate terrain clearance; and

(xi) any other subject considered appropriate for the particular air traffic services unit.

(b) Experience: He shall produce a certificate of having—

(i) satisfactorily completed an approved training course on the surveillance system;

(ii) undergone on-the-job training for a period of not less than three months, during which at least one hundred and eighty hours of training has been completed, at the unit for which the rating is sought.

Provided that the requirement as specified in sub-clause *(i)* shall not be required for an air traffic controller holding or having held an Approach or Area Surveillance Rating for any other aerodrome.

(c) Skill: He shall have been assessed successful by a Board or examiner regarding his skill, judgement and performance to provide a safe, orderly and expeditious area control service including the recognition and management of threats and errors and the assessment shall be conducted, as soon as possible, after the completion of on-the-job training requirement.

2. Validity. — The rating shall become invalid when an air traffic controller has not exercised the privileges of the rating for a period exceeding six months.

3. Revalidation. — A rating shall be revalidated as provided in rule 98.

4. Privileges. — *(a)* The privileges of the holder shall be to provide or to supervise the provision of area control service with the use of applicable air traffic services surveillance systems, within the control area or portion thereof, for which the licence holder is rated.

(b) Before exercising the privileges, the licence holder shall be familiar with all pertinent and current information.

SECTION I

OCEANIC CONTROL RATING

1. Requirements for issuance of rating. — An applicant for an Oceanic Control Rating shall satisfy the following requirements, namely:–

(a) Knowledge: He shall be the holder of an Air Traffic Controller's Licence or a Student Air Traffic Controller's Licence and shall have demonstrated a level of knowledge by passing the examination at least in the following subjects for an oceanic control unit in the area of his responsibility, at a particular place, namely:–

(i) airspace structure;
(ii) applicable rules, procedures and source of information;
(iii) air navigation facilities;
(iv) air traffic control equipment and its use;
(v) principles, uses and limitations of surveillance systems, if any and associated equipment;
(vi) terrain and prominent landmarks;
(vii) characteristics of air traffic and traffic flow;
(viii) weather phenomena;
(ix) emergency, search and rescue plans; and
(x) any other subject considered appropriate for the particular air traffic services unit.

(b) Experience: He shall produce a certificate of having –

(i) satisfactorily completed an area control training course;

(ii) undergone on-the-job training for a period of not less than three months during which at least one hundred and eighty hours of training has been completed, at the unit for which the rating is sought.

(c) Skill: He shall have been assessed successful by a Board or examiner regarding his skill, judgement and performance to provide a safe, orderly and

expeditious air traffic control service including the recognition and management of threats and errors in the oceanic control center and the assessment shall be conducted, as soon as possible, after the completion of on-the-job training requirement.

2. Validity. — The rating shall become invalid when an air traffic controller has not exercised the privileges of the rating for a period exceeding six months.

3. Revalidation. — A rating shall be revalidated as provided in rule 98.

4. Privileges. — *(a)* The privileges of the holder shall be to provide or to supervise the provision of oceanic control service within the airspace jurisdiction of oceanic control or portion thereof for which the licence holder is rated.

(b) Before exercising the privileges, the licence holder shall be familiar with all pertinent and current information.

THE THIRD SCHEDULE

(See Chapter VI)

AERONAUTICAL TELECOMMUNICATION

1. Aeronautical facility requirements.– An applicant for certification of a communication, navigation, surveillance or air traffic management facility to be established or used at an aeronautical telecommunication station shall establish a procedure to ensure that—

(i) each facility intended to be included in the certificate of the applicant before commissioning —

(a) is designed and installed to meet the applicable operational specification specified for that facility;

(b) conforms with the applicable system, characteristics and specification standards specified by the Director General;

(c) has been allocated a Radio Frequency Operating Licence in compliance with the Telecommunications Act, 2023 (44 of 2023) and rules made thereunder; and

(d) has been allocated an identification code or call sign.

(ii) each facility listed in the certificate of the applicant is installed with suitable power supplies and means to ensure continuity of operation appropriate to the needs of the air traffic service or radio navigation service being supported; and

(iii) an applicant for certification of communication, navigation and surveillance of air traffic management facility to be established or used at an aeronautical telecommunication station who intends to operate a temporary aeronautical facility to carry out site tests shall establish a procedure for conducting those tests.

2. Communication, navigation and surveillance manual.– The communication, navigation and surveillance manual in addition to any other relevant information shall contain the following information and particulars, namely **:–**

***(a)* General:** General information including purpose and scope of the manual, management and organisation structure of the holder of the certificate, legal requirement for certification of communication, navigation, surveillance or air traffic management facility, conditions for the use of the certificate, availability of aeronautical information system for disseminating information regarding status of facility.

***(b)* Requirement of personnel:** *(i)* appropriate details of proficient personnel to ensure each service listed in the certificate of the applicant in a safe, efficient, continuous and sustainable manner and the number of personnel required to maintain facilities shall be specified appropriately in the manual as per policy;

(ii) procedure for employing or authorising proficient personnel, for maintenance and operation of the facility or to place into operational service any of the facility listed in the certificate which shall clearly specify the system to—

(a) assess the competence of proficient personnel;

(b) maintain the continued competence of proficient personnel; and

(c) scope of authorisation for proficient personnel.

(c) **Standards of communication, navigation, surveillance or air traffic management facility:** *(i)* details of the technical standards relating to design, installation, commissioning and testing, operation and maintenance that are applicable to facility;

(ii) it shall also include any standard specified for such facility by the manufacturer;

(iii) where compliance with a relevant standard is not achieved, the same shall be clearly indicated, and a statement of the reason for non-compliance and its impact on the service provided in terms of the performance of the facility and its impact on air traffic services and aircraft operation.

(d) **Technical description of facility**: Basic performance descriptors (functional specification) for each of the communication, navigation, surveillance or air traffic management facility.

(e) **Operation and maintenance plan:** Operation and maintenance plan for each of the communication, navigation, surveillance or air traffic management facility alongwith the documentation of the facility required by the manufacturer, relevant documentations by International Civil Aviation Organisation or documents developed or varied by the holder of certificate based on its knowledge of the performance and maintenance requirements of each facility.

(f) **Safety management system:** Information on systematic and appropriate safety management system to ensure that safety is maintained in the provision of the communication, navigation, surveillance or air traffic management facility.

(g) **Test equipments :** *(i)* details of test and measuring equipments including their calibration status, necessary for the operation, performance, inspection, and maintenance of all of its facilities;

(ii) the facility operation and maintenance plan or the instructions of operating and maintenance for each facility shall specify the test equipment requirements for each level of operation and maintenance.

(h) **Interruption to service:** Details of the procedure to be used if operation of communication, navigation and surveillance of air traffic management facility is interrupted.

(i) **Procedures:** Procedure for conducting all the activities related to installation, operation, maintenance and other matters of communication, navigation, surveillance facilities clearly specifying the duties and responsibilities of each concerned.

(j) **Procedure for change:** *(i)* the procedure for change to be made for a facility, its operation and maintenance plan;

(ii) the change of procedure shall establish an appropriate authority within the holder of the certificate organisation to assess and authorise any changes to operation and maintenance procedures and the procedures for removal and return of facilities to operational service; and

(iii) the logistics support of services and the amendment of relevant documentation including the operations manual.

(k) **Document control**: The manual shall describe the document control process of the holder of service certificate concerning the requirements in this regard.

(l) **Quality control:** For the use and guidance of personnel, the details of information concerning policies, procedure, practice and quality control method relating to provision of communication, navigation, surveillance or air traffic management facilities and activities of that organisation.

(m) **Security**: *(i)* the holder of certificate shall ensure that reasonable measures are made for the security of equipment and installation at aeronautical telecommunication stations;

(ii) the aeronautical telecommunication stations located outside the aerodrome shall also have provision of suitable security fencing.

THE FOURTH SCHEDULE

GRANT OF AIR OPERATOR CERTIFICATE TO OPERATE SCHEDULED AIR TRANSPORT SERVICES

[See rule 183 and Chapter VII]

1. Air operator certificate to operate scheduled air transport services in pursuance of rule 183 (hereinafter referred to as the air operator certificate) may be granted either—

(i) to a citizen of India; or

(ii) to a company or a body corporate provided that—

(a) it is registered and has its principal place of business within India;

(b) the chairman and at least two-thirds of its directors are citizens of India; and

(c) its substantial ownership and effective control is vested in Indian nationals.

Explanation.— For the purposes of clause *(c),* the expression 'Indian nationals' includes a citizen of India who is residing outside India but shall not include an 'Overseas Citizen of India Cardholder' within the meaning of section 7A of the Citizenship Act, 1955 (57 of 1955) or 'Persons of Indian Origin Cardholders' deemed as 'Overseas Citizen of India Cardholders' under notification number 26011/01/2014-IC.I. dated 09th January, 2015 published in the Gazette of India, Extraordinary under Part I, Section 1 dated the 9th January, 2015.

2. The Director General shall be the authority to examine the applications for air operator certificate and for issuing cancelling or suspending such air operator certificate.

3. *(1)* An application for air operator certificate shall be made to the Director General, not less than six months before the date on which it is proposed to commence the air transport services, in such form and manner as may be specified by the Director General which shall be signed by the applicant or by a person duly authorised in that behalf by the applicant and the application.

(2) The applicant shall, before making the application to the Director General, obtain a no objection certificate for his proposed air transport services from the Central Government by making an application to it, in such form and manner as may be specified by the Director General.

(3) The Central Government shall consider the application for no objection certificate received under sub-paragraph *(2)* taking into account the factors such as the financial soundness of the applicant, his operational plan, the clearance from security angle of the applicant organisation including its directors, and any other factor that may have a bearing on the proposed air transport services from policy angle.

(4) The no objection certificate granted by the Central Government shall be valid for a period of three years from the date of issue.

4. An Air Operator Certificate for air transport services under this Schedule may be granted in the following categories, namely: —

(a) scheduled air transport services (passenger);

(b) scheduled commuter air transport services (passenger); and

(c) scheduled air transport services (Cargo).

Explanation. — The scheduled commuter air transport services shall be operated between airports or helipads, as may be specified by the Director General.

5. Only multi-engine aircraft with maximum certified take-off mass of not less than 5700 kg. in case of aeroplanes and 3175 kg. in case of helicopters shall be used for operations by the holder of the Air Operator Certificate under this Schedule and the aircraft shall meet the requirements as may be specified by the Director General :

Provided that the operator of scheduled commuter air transport services (passenger) may use aircraft with certified take-off mass below 5700 kg. but not exceeding 40000 kg. :

Provided further that turbine-powered single engine aeroplane having maximum certified take-off mass below 5700 kg. and turbine-powered single engine helicopter having maximum certified take-off mass below 3175 kg. may be used for operations under the scheduled commuter air transport services subject to the following conditions, namely: —

(i) the number of certified passenger seats shall not exceed nine;

(ii) the aeroplane shall be equipped with minimum equipment for operation at night and instrument meteorological conditions; and

(iii) the helicopter shall be flown under day visual flight rules only.

6. *(1)* The Director General shall consider the application for the air operator certificate as speedily as possible and upon being satisfied that the applicant meets the laid down requirements, may grant the air operator certificate subject to such conditions as may be specified therein.

(2) The Director General may, at any time, require the applicant to furnish any information which he considers necessary for deciding the application and the Director General may also require the applicant to produce evidence in support of any information that the applicant may have furnished.

7. The air operator certificate shall be valid for a period not exceeding five years as may be specified therein and may be renewed by the Director General for a period not exceeding five years at a time upon being satisfied that the applicant has been performing the services under the certificate satisfactorily and has the capability to continue the services.

8. The air operator certificate shall contain such information as may be specified by the Director General.

9. The grant of air operator certificate shall not be construed as in any way absolving any person from the obligation of complying with the provisions of the Act, the Carriage by Air Act, 1972 (69 of 1972) or with the rules made thereunder or with any other statutory provisions for the time being in force.

10. Any schedule air transport service operated in accordance with the provisions of this Schedule shall comply with the safety requirements with respect to air routes, aircraft and aircrew specified by the Director General.

11. *(1)* If the Director General is satisfied that there is sufficient ground for doing so, he may, for reasons to be recorded in writing, cancel the air operator certificate or suspend it for any specific period and he may also, during the investigation of any matter, suspend the air operator certificate.

(2) Without prejudice to the generality of the power in sub-paragraph *(1),* the Director General may cancel or suspend the air operator certificate for such period as he thinks fit, if he is satisfied that —

(a) any of the conditions of the air operator certificate has not been complied with and the failure is due to any willful act or default on the part of the holder of the air operator certificate or by any of his servants, or agents, irrespective of whether or not such willful act or default of the servant or agent was with the knowledge or approval of the holder of the air operator certificate; or

(b) the holder of the air operator certificate has failed to establish a safe, efficient and reliable service; or

(c) having regard to the financial resources of the holder of the air operator certificate or the losses incurred by him, he cannot be relied upon to continue the operation of the service in a safe, efficient and reliable manner; or

(d) the air operator certificate was obtained by fraud; or

(e) the security clearance of the holder of air operator certificate has been withdrawn or denied by the Central Government.

(3) Before any action is taken under sub-paragraphs *(1)* or *(2),* the Director General shall give to the holder of the air operator certificate not less than fifteen days' notice in writing specifying the ground upon which it is proposed to cancel or, as the case may be, suspend the air operator certificate and shall give him an opportunity of showing cause, either in writing or by appearing in person before the Director General, against the action proposed to be taken.

(4) Notwithstanding anything contained in sub-paragraph *(3),* the Director General, may, if he has reason to believe on reliable information that it is expedient in the interest of public safety so to do, summarily suspend the air operator certificate with a view to make further enquiry and take action.

(5) The air operator certificate shall cease to be in-force from the date of such cancellation or suspension unless otherwise directed.

12. The Director General may, at any time, whether of his own motion or on application made by any party, correct clerical or typographical error in any of his orders arising from any accidental slip or omission.

13. Any air operator certificate granted under the provisions of this Schedule shall not be capable of being transferred or assigned except with the specific permission of the Director General:

Provided that in the event of death, or bankruptcy of the holder of the permit or of the appointment of a receiver, manager or trustee, in relation to the business of the holder, the person for the time being carrying on that business shall, if he makes an application within a period of fourteen days of the said event to the Director General for a new permit, be entitled to continue the operation of the scheduled air transport service until the application is disposed of, or unless the Director General has directed otherwise in the interest of public convenience.

14. *(1)* The air operator certificate shall be kept at the principal office of the holder thereof and shall be produced for inspection on demand by any Magistrate, any Police officer not below the rank of a Deputy Superintendent of Police, any officer of Customs, any Gazetted officer of the Directorate General of Civil Aviation, or any other person authorised by the Central Government or the Director General by special or general order in writing in this behalf.

(2) A copy of the air operator certificate shall be displayed at a conspicuous place in the principal traffic office of the holder of the air operator certificate.

(3) On the expiration of an air operator certificate, whether by efflux of time or in consequence of a decision of the Director General under this Schedule, or when an air operator certificate is suspended by the Director General, the holder shall surrender the air operator certificate to the Director General for cancellation or endorsement as the case may be.

15. The holder of an air operator certificate shall perform such services for conveyance of mail or any other items as specified by the Director General.

16. Every person to whom an air operator certificate has been granted under the provisions of this Schedule, shall submit to the Director General, in such form as may be specified by him —

(a) monthly returns regarding the operation of the permitted air transport service and other air transport operations so as to reach the Director General not later than forty-five days after the expiry of e month to which the return relates;

(b) annual return showing the financial results of the services or operations during each calendar year so as to reach the Director General not later than three months after the expiry of the year to which the return relates; and

(c) such other statements or returns as may be required by the Director General.

THE FIFTH SCHEDULE

(See rule 214)

Punishment and Compounding of Offences

1. Offences punishable under the Bharatiya Vayuyan Niyam, 2026 with imprisonment for a period which may extend to two years, or with fine which may extend to one crore rupees or with both.—

Table 1

Sl. No.	Nature of offence	Relevant rule
(1)	*(2)*	*(3)*
1.	Flying an aircraft without registration.	clause *(a)* of rule 4
2.	Contravention of sub-rule *(1)* of rule 6.	sub-rule *(1)* of rule 6
3.	Contravention of sub-rule *(1)* of rule 8.	sub-rule *(1)* of rule 8

4.	Aerial survey from an aircraft in flight without permission.	rule 10
5.	Contravention of rule 15	rule 15
6.	Contravention of clause *(a)* of rule 18.	clause *(a)* of rule 18
7.	Contravention of sub-rule *(1)* of rule 19.	sub-rule *(1)* of rule 19
8.	Contravention of the provisions of rule 25.	rule 25
9.	Contravention of sub-rule *(14)* of rule 117.	sub-rule *(14)* of rule 117
10.	Contravention of rule 168.	rule 168
11.	Non-compliance with any of the provision of rule 169.	rule169
12.	Consumption of intoxicating and psychoactive substances in the course of flight.	sub-rule *(1)* of rule 174
13.	Carriage of persons in unauthorised parts of aircraft without permission.	rule 176
14.	Contravention of rule 179.	rule 179
15.	Operation of a scheduled air transport service without permission.	sub-rule *(1)* of rule 183
16.	Operation of non-scheduled air transport service without the special permission or non-scheduled operator's permit	sub-rules *(1)* or *(3)* of rule 184
17.	Contravention of sub-rule *(1)* of rule 187.	sub-rule *(1)* of rule 187
18.	Contravention of sub-rule *(1)* of rule 188.	sub-rule *(1)* of rule 188
19.	Contravention of provisions of rule 208.	rule 208
20.	Obstructing any person acting in the exercise of his powers or in discharge of his duties under the provisions of these rules.	rule 210
21.	Contravention of rule 211.	rule 211.

2. Offences punishable under the Bharatiya Vayuyan Niyam, 2026 with fine which may extend to one crore rupees and amount for compounding thereof.—

Table 2

Sl. No.	Nature of offence	Relevant rule	Amount for compounding of offence committed by individual (in rupees)
(1)	(2)	(3)	(4)
1.	Photography or videography at an aerodrome without permission.	sub-rule *(1)* of rule 9	one lakh
2.	Photography or videography from an aircraft in flight without permission.	rule 10	two lakh
3.	Contravention of rule 16.	rule 16	five lakh
4.	Contravention of clause *(b)* of rule 18.	clause *(b)* of rule 18	twenty-five thousand
5.	Conduct of activities as mentioned in clause **(a)** of sub-rule *(1)* of rule 66 without obtaining prior approval under sub-rules *(3), (4)* or *(8)* of rule 66.	sub-rules *(3), (4)* or *(8)* of rule 66	five lakh
6.	Non-surrender of licence under sub-rule *(3)* of rule 70.	sub-rule *(3)* of rule 70	fifty thousand
7.	Non-compliance with sub-rule *(1)* of rule 72 by a person (except student pilot of flying training organisation) who has not been licensed under these rules.	sub-rule *(1)* of rule 72	twenty lakh
8.	Contravention of rule 104.	rule 104	two lakh
9.	Flying an aircraft in contravention of rule 112.	rule 112	five lakh
10.	Contravention of sub-rule *(1)* of rule 121.	sub-rule *(1)* of rule 121	five lakh
11.	Contravention of sub-rule (*2)* of rule 121.	sub-rule *(2)* of rule 121	one lakh
12.	Contravention of sub-rule *(1)* of rule 123.	sub-rule (1) of rule 123.	five lakh
13.	Non-compliance of sub-rule *(2)* of rule 123.	sub-rule *(2)* of rule 123.	ten lakh

14.	Contravention of sub-rule *(1)* of rule 136.	sub-rule *(1)* of rule 136	fifty thousand
15.	Contravention of sub-rule *(2)* of rule 136.	sub-rule *(2)* of rule 136	two lakh
16.	Contravention of sub-rule *(2)* of rule 174 by the passenger.	sub-rule *(2)* of rule 174.	twenty-five thousand
17.	Contravention of sub-rule *(3)* of rule 175	sub-rule *(3)* of rule 175	ten thousand
18.	Contravention of sub-rule *(1)* of rule 185 by the person other than the person having any licence or certificate or approval issued under these rules.	sub-rule *(1)* of rule 185	five lakh

3. Where offence mentioned under Table 2, has been committed by the organisation, the amount for compounding of offences shall be as under.—

Table 3

Contravention committed by	Number of employees	Amount for compounding of offences (in rupees)
Organisation (Small)	Up to fifty employees	200% of the amount as provided for such offences by the individual in paragraph 1 and 2, as applicable.
Organisation (Medium)	More than fifty and up to one hundred employees	300% of the amount as provided for such offences by the individual in paragraph 1 and 2, as applicable.
Organisation (Large)	More than one hundred employees	400% of the amount as provided for such offences by the individual in paragraph 1 and 2, as applicable.

Note: *(1)* “Individual” means a natural person.

(2) "Organisation" means a body corporate or an association of individuals whether registered or not.

(3) "Employee" means an individual appointed, employed or engaged by the organisation whether contractual, temporary or permanent.

4. **Procedure for compounding of offences.—**

(a) An application for compounding of an offence shall be made by the applicant to the Director General or any officer specially empowered by the Central Government in this behalf in Form A alongwith the fee of one thousand rupees in the manner as laid down by the Director General.

(b) On receipt of the application for compounding, such officer shall examine the application based on the documents submitted and submissions made in the application.

(c) Such officer may call for any information, record or any other document from the applicant, if the same is considered relevant to the compounding proceedings and in case the contravener fails to submit the additional information or documents called for within the specified period, the application for compounding shall be liable for rejection.

(d) Such officer may issue notice to all the concerned of the case to participate in the proceedings.

(e) During the compounding proceedings, such officer after giving due opportunity to the applicant of being heard, shall determine the amount for compounding of offence in accordance with the Tables of paragraphs 2 and paragraph 3 and where the decision of such officer in respect of the amount so determined is not acceptable to the applicant then the applicant shall submit the same in writing to such officer within three days or within such reasonable period as determined by such officer.

(f) After such submission by the applicant or non-submission with in such reasonable time, the compounding proceedings shall cease and the matter shall be proceeded further in accordance with the provisions of the the Act and these rules and the Officer shall prepare a report in respect of these proceedings.

(g) The amount for which the contravention is compounded shall be paid in the manner as specified by the Director General within the period of thirty days of the date of decision of compounding.

(h) In case a person fails to pay the amount for compounding within thirty days of the order, he shall be deemed to have never made an application for compounding of any offence under the provisions of the Act and these rules.

(i) The process of compounding of offences shall be completed expeditiously and not later than sixty days from the date of application and this period of sixty days may be extended up to ninety days by the Director General, for reasons to be recorded in writing, in exceptional circumstances.

FORM A (See rule 214) Application for compounding of Offence		
1.	Name(s) of the Applicant	
2.	Address	
3.	Email Address	
4.	Phone No.	
5.	The Authority before whom the case is pending :	
6.	Contravention of sections or rules	
7.	Brief facts of the case	
8.	Any other information relevant to the case	
9.	Prayer of the Applicant	
10.	Fee and transaction details	
11.	Attachment, if any	

Verification

I_____, the applicant, do hereby declare that what is stated above is true to the best of my information and belief.

Name and Signature of the Applicant

Date:

Place:

THE SIXTH SCHEDULE

(See rule 215)

PENALTIES

1. Classification of severity levels of contravention and penalty thereof.—

Sl. No.	Severity Level (in rupees)	Individual	Organisation (Small)	Organisation (Medium)	Organisation (Large)
			Up to fifty employees	More than fifty and up to one hundred employees	More than one hundred employees
(1)	*(2)*	*(3)*	*(4)*	*(5)*	*(6)*
1.	Level 1	ten thousand	fifty thousand	seventy-five thousand	one lakh
2.	Level 2	twenty thousand	one lakh	one lakh fifty thousand	two lakh fifty thousand
3.	Level 3	fifty thousand	two lakh	three lakh	five lakh
4.	Level 4	seventy-five thousand	three lakh	five lakh	ten lakh
5.	Level 5	one lakh fifty thousand	five lakh	ten lakh	twenty lakh
6.	Level 6	three lakh	seven lakh fifty thousand	fifteen lakh	thirty lakh
7.	Level 7	five lakh	ten lakh	twenty-five lakh	fifty lakh

8.	Level 8	ten lakh	twenty lakh	thirty-five lakh	seventy lakh
9.	Level 9	twenty lakh	thirty-five lakh	fifty lakh	eighty-five lakh
10.	Level 10	twenty-five lakh	fifty lakh	seventy-five lakh	one crore

Note: *(1)* "Individual" means a natural person.

(2) "Organisation" means a body corporate or an association of individuals whether registered or not.

(3) "Employee" means an individual appointed, employed or engaged by the organisation whether contractual, temporary or permanent.

2. **Contravention of rules and severity level thereof, for determination of penalty amount by the designated officers or the appellate officer, as the case may be.—**

Table 2

Sl. No.	Nature of contravention	Relevant rule(s)	Severity level of contravention/ violation/ non-compliance
(1)	*(2)*	*(3)*	*(4)*
1.	Contravention of rule 4	rule 4	level 10
2.	Non-carriage of documents as required by rule 5.	rule 5	level 4
3.	Contravention of sub-rule *(1)* of rule 6.	sub-rule *(1)* of rule 6	level 10
4.	Non-compliance with sub-rules *(4)* or *(5)* of rule 6.	sub-rules *(4)* or *(5)* of rule 6	level 6
5.	Contravention of sub-rules *(1), (2)* or *(3)* of rule 7.	sub-rules *(1), (2)* or *(3)* of rule 7	level 10
6.	Contravention of sub-rules *(2), (3)* or *(4)* of rule 8.	sub-rules *(2), (3)* or *(4)* of rule 8	level 5

7.	Contravention of sub-rule *(1)* of rule 8.	sub-rule *(1)* of rule 8	level 7
8.	Photography or videography at an aerodrome without permission.	sub-rule *(1)* 9	level 3
9.	Non-compliance of sub-rule *(2)* of rule 9	sub-rule *(2)* of rule 9	level 6
10.	Non-compliance of sub-rule *(3)* of rule 9	sub-rule *(3)* of rule 9	level 4
11.	Contravention of rule 10	rule 10	level 5
12.	Non-compliance with clause *(a)* or proviso of rule 11.	clause *(a)* or proviso to rule 11	level 10
13.	Non-compliance with clause *(b)* or *(c)* of rule 11.	clause *(b)* or *(c)* of rule 11	level 6
14.	Non-compliance with clause *(d)* of rule 11	clause (*d)* of rule 11	level 4
15.	Non-compliance with the Rules of the Air.	rule 12	level 3
16.	Contravention of directions issued under sub-rule *(1)* of rule 13.	sub-rule *(1)* of rule 13	level 8
17.	Contravention of rule 15	rule 15	level 8
18.	Contravention of rule 16.	rule 16	level 4
19.	Contravention of rules 20 or 21.	rules 20 or 21.	level 2
20.	Contravention of sub-rule *(1)* of rule 22.	sub-rule *(1)* of rule 22	level 4
21.	Contravention of sub-rule *(1)* of rule 23.	sub-rule *(1)* of rule 23	level 5
22.	Contravention of sub-rule *(2)* of rule 23.	sub-rule *(2)* of rule 23.	level 4
23.	Contravention of any of the provision of rule 24	rule 24	level 7
24.	Contravention of rule 26.	rule 26	level 7
25.	Non-compliance of airworthiness directives issued under rule 35	rule 35	level 8

26.	Non-compliance of special condition issued under rule 36	rule 36	level 8
27.	Fly or assist in flying of aircraft without obtaining permission under sub-rule *(3)* of rule 42.	sub-rule *(3)* of rule 42	level 6
28.	Non-compliance with any of the provision of rule 47 other than the sub-clause *(b)* of clause *(2)* of rule 47.	other than sub-clause *(b)* of clause *(2)* of rule 47	level 2
29.	Non-compliance of sub-clause *(b)* of clause *(2)* rule 47.	sub-clause *(b)* of clause *(2)* of rule 47.	level 7
30.	Contravention of any of the provision of rule 48.	rule 48	level 6
31.	Contravention of sub-rules *(1)* or *(5)* of rule 52.	sub-rules *(1)* or *(5)* of rule 52	level 7
32.	Non-compliance of approved maintenance schedules or approved maintenance system in respect of aircraft, aircraft component and items of equipment.	sub-rule *(1)* of rule 53	level 3
33.	Inspection and certification by un authorised persons.	sub-rule *(1)* of rule 53	level 6
34.	Contravention of sub-rule *(2)* of rule 53.	sub-rule *(2)* of rule 53	level 4
35.	Non-compliance of rule 54.	rule 54	level 6
36.	Non-compliance of any of the provision of rule 58.	rule 58	level 5
37.	Non-compliance with any of the provision of rule 59.	rule 59	level 5
38.	Non-compliance of sub-rule *(1)* of rule 61.	sub-rule *(1)* of rule 61	level 3
39.	Contravention of sub-rule *(2)* of rule 61.	sub-rule *(2)* of rule 61	level 7
40.	Non-compliance of sub-rule *(1)* of rule 62.	sub-rule of rule 62	level 5

41.	Contravention of sub-rules *(2)* or *(4)* of rule 64.	sub-rules *(2)* or *(4)* of rule 64.	level 6
42.	Noncompliance of sub-rule *(3)* of rule 64.	sub-rule *(3)* of rule 64	level 3
43.	Non-compliance with the provisions governing the issue and maintenance of log books.	rule 65	level 4
44.	Non-compliance of sub-rule *(2)* of rule 66 in respect of facilities including necessary equipment for tests and inspection aids.	sub-rule *(2)* of rule 66	level 5
45.	Non-compliance of sub-rule *(2)* of rule 66 in respect of qualified and trained staff.	sub-rule *(2)* of rule 66	level 7
46.	Conduct of activities as mentioned in clause *(a)* of sub-rule *(1)* of rule 66 without obtaining prior approval under sub-rules *(3), (4)* or *(8)* of rule 66.	sub-rules *(3), (4)* or *(8)* of rule 66	level 8
47.	Non-compliance of sub-rules *(9)* or *(10)* of rule 66.	sub-rules *(9)* or *(10)* of rule 66.	level 3
48.	Non-compliance of sub-rules *(11)* or *(12)* of rule 66.	sub-rules *(11)* or *(12)* of rule 66	level 4
49.	Non-compliance of sub-rule *(13)* of rule 66.	sub-rule *(13)* of rule 66	level 5
50.	Non-compliance with sub-rule *(1)* of rule 72 by a person (except student licence holder) holding licences, rating and medical fitness assessment issued under these rules but the validity of the same is either expired or the privileges of the same have been restricted under the provisions of these rules.	sub-rule *(1)* of rule 72	level 5
51.	Non-compliance with rule 73 (except students pilot licence)	rule 73.	level 5
52.	Non-compliance with sub-rules *(2)* or *(4)* of rule 82.	sub-rules *(2)* or *(4)* of rule 82	level 4
53.	Contravention of any of the provision of rule 84.	rule 84	level 4

54.	Contravention of rule 87.	rule 87	level 2
55.	Contravention of sub-rule *(1)* of rule 88.	sub-rule *(1)* of rule 88	level 10
56.	Contravention of sub-rule *(1)* of rule 89.	sub-rule *(1)* of rule 89	level 8
57.	Non-compliance of rule 90.	rule 90	level 6
58.	Exercise of the privileges of the licence in the absence of a valid medical fitness assessment.	rule 92	level 5
59.	Contravention of any of the provision of rule 93.	rule 93	level 4
60.	Contravention of rule 95.	rule 95	level 3
61.	Non-compliance of sub-rule *(1)* of rule 96.	sub-rule *(1)* of rule 96	level 6
62.	Contravention of rule 97.	rule 97	level 4
63.	Contravention of rule 101	rule 101	level 3
64.	Non-compliance with any of the provision of rule 102.	rule 102	level 5
65.	Contravention of sub-rule *(1)* of rule 103.	sub-rule *(1)* of rule 103	level 4
66.	Contravention of rule 104.	rule 104	level 5
67.	Flying an aircraft in contravention of any of the provision of rule 113.	rule 113	level 7
68.	Non-compliance with any of the provision of rule 114.	rule 114	level 5
69.	Non-compliance of sub-rules *(1), (2), (4)* or *(7)* of rule 115.	sub-rules *(1), (2), (4)* or *(7)* of rule 115	level 7
70.	Non-compliance of sub-rules *(3), (5), (6)* or *(8)* of rule 115.	sub-rules *(3), (5), (6)* or *(8)* of rule 115	level 2
71.	Contravention of sub-rule *(1)* of rule 116	sub-rule *(1)* of rule 116	level 3
72.	Non-compliance of sub-rule *(2)* of rule 117 in respect of infrastructure and facilities	sub-rule *(2)* of rule 117	level 5

73.	Non-compliance of sub-rule *(2)* of rule 117 in respect of qualified and trained manpower including postholders, instructors or examiners.	sub-rule *(2)* of rule 117	level 7
74.	Non-compliance of sub-rule *(3)* of rule 117	sub-rule *(3)* of rule 117	level 5
75.	Non-compliance of sub-rule *(10)* of rule 117.	sub-rule *(10)* of rule 117.	level 5
76.	Non-compliance of sub-rule *(11)* of rule 117.	sub-rule *(11)* of rule 117.	level 3
77.	Contravention of sub-rule *(14)* of rule 117	sub-rule *(14)* of rule 117	level 8
78.	Contravention of sub-rule *(4)* of rule 119	sub-rule *(4)* of rule 119	level 5
79.	Contravention of sub-rules *(1), (2)* or *(5)* of rule 124.	sub-rules *(1), (2)* or *(5)* of rule 124	level 10
80.	Non-compliance any of the provision of rule 127.	rule 127	level 3
81.	Denial of access to an authorised person for inspection.	sub-rule *(2)* of rule 128	level 5
82.	Contravention of sub-rule *(2)* of rule 129	sub-rule *(2)* of rule 129	level 6
83.	For not maintaining an aerodrome in a fit state and not informing the Director General of any unserviceability.	sub-rule *(5)* of rule 129	level 6
84.	Contravention of sub-rule *(2)* of rule 138	sub-rule *(2)* of rule 138	level 6
85.	Contravention of sub-rule *(2)* of rule 140	sub-rule *(2)* of rule 140	level 2
86.	Non-compliance of sub-rule *(3)* of rule 140	sub-rule *(3)* of rule 140	level 6
87.	Non-compliance of rule 141	rule 141	level 2
88.	Non-compliance of rule 142	rule 142	level 2
89.	Non-compliance of rule 143	rule 143	level 2
90.	Non-compliance of rule 145	rule 145	level 2

91.	Non-compliance with any of the provision of rule 146.	rule 146	level 2
92.	Non-compliance of rule 147	rule 147	level 6
93.	Contravention of rule 148	rule 148	level 5
94.	For permitting or cause to be permitted any communication, navigation and surveillance of air traffic management equipment facility in an international aerodrome to be established or used without being certified by the Director General.	sub-rule *(1)* of rule 149	level 6
95.	Non-compliance with any of the provision of rule 152.	rule 152	level 3
96.	Non-compliance of sub-rules *(2)* or *(4)* of rule 155	sub-rules *(2)* or *(4)* of rule 155	level 5
97.	Non-compliance of rule 156.	rule 156	level 2
98.	Non-compliance of rule 157.	rule 157	level 2
99.	Non-compliance with any of the provision of rule 158.	rule 158	level 5
100.	Non-compliance with any of the provision of rule 159.	rule 159	level 3
101.	Non-compliance of rule 160.	rule 160	level 3
102.	Non-compliance of sub-rules *(1)* or *(2)* of rule 164	sub-rules *(1)* or *(2)* of rule 164	level 5
103.	Contravention of rule 165	rule 165	level 4
104.	Contravention of rule 168	rule 168	level 6
105.	Non-compliance with sub-rule *(2)* of rule 170.	sub-rule *(2)* of rule 170	level 3
106.	Non-compliance with sub-rule *(3)* of rule 170.	sub-rule *(3)* of rule 170	level 9
107.	Non-carriage of operational documents.	rule 172	level 4
108.	Contravention of sub-rule *(1)* of rule 173	sub-rule *(1)* of rule 173	level 5

109.	Contravention of sub-rule *(2)* of rule 174 by the Operator.	sub-rule *(2)* of rule 174	level 6
110.	Contravention of sub-rule *(3)* of rule 174 by the Operator.	sub-rule *(3)* of rule 174	level 10
111.	Contravention of sub-rules *(1)* or *(2)* of rule 175.	sub-rules *(1)* or *(2)* of rule 175	level 2
112.	Contravention of the conditions specified under proviso *(b)* of rule 176	proviso *(b)* of rule 176	level 6
113.	Contravention of sub-rule *(1)* of rule 177.	sub-rule *(1)* of rule 177	level 7
114.	Non-compliance of sub-rule *(3)* of rule 177.	proviso of sub-rule *(3)* of rule 177.	level 7
115.	Non-compliance of rule 178	rule 178	level 4
116.	Contravention of rule 179.	rule 179.	level 10
117.	Contravention of sub-rule *(1)* of operation of a scheduled air transport service without permission.	sub-rule *(1)* of rule 183	level 10
118.	Contravention of or non-compliance with any of the conditions specified in the order under sub-rule *(2)* of rule 183.	sub-rule *(2)* of rule 183	level 8
119.	Non-compliance with any of the term and condition imposed under rule 184.	sub-rule *(1)* of rule 184	level 6
120.	Operation of non-scheduled air transport service without the special permission or non-scheduled operator's permit	sub-rules *(1)* or *(3)* of rule 184	level 6
121.	Contravention of sub-rule *(1)* of rule 185 by the person having Directorate General of Civil Aviation licence or certificate or approval.	sub-rule *(1)* of rule 185	level 8
122.	Unauthorised use of aircraft for aerial work.	rule 186	level 8
123.	Contravention of sub-rule *(1)* of rule 187.	sub-rule *(1)* of rule 187	level 6
124.	Non-compliance of sub-rule *(2)* of rule 187.	sub-rule *(2)* of rule187	level 5

125.	Contravention of sub-rule *(1)* of rule 188.	sub-rule *(1)* of rule 188	level 7
126.	Non-compliance of sub-rule *(5)* of rule 188.	sub-rule *(5)* of rule 188	level 4
127.	Contravention of sub-rule *(1)* of rule 189.	sub-rule *(1)* of rule 189	level 4
128.	Non-compliance of sub-rule *(2)* of rule 189.	sub-rule *(2)* of rule 189	level 6
129.	Contravention of sub-rule *(1)* of rule 190.	sub-rule *(1)* of rule 190	level 6
130.	Non-compliance of sub-rule *(2)* of rule 190.	sub-rule *(2)* of rule 190	level 6
131.	Contravention of or non-compliance with the conditions attached to the permission under the bilateral agreement or to the temporary authorisation.	sub-rule *(1)* of rule 191	level 3
132.	Non-compliance of conditions specified under sub-rules *(7)* or *(8)* of rule 191	sub-rules *(7)* or *(8)* of rule 191	level 8
133.	Non-compliance of sub-rule *(1)* of rule 192.	sub-rule *(1)* of rule 192	level 8
134.	Non-compliance of sub-rule *(2)* of rule 192.	sub-rule *(2)* of rule 192	level 7
135.	Non-compliance of sub-rules *(3) or (4)* of rule 192.	sub-rules *(3) or (4)* of rule 192	level 7
136.	Non-compliance of order issued under sub-rule (6) of rule 192.	sub-rules (6) of rule 192	level 10
137.	Non-compliance of rule 194.	rule 194	level 3
138.	Non-compliance with any of the provision of rule 195.	rule 195	level 3
139.	Non-compliance of sub-rule *(1)* of rule 196.	sub-rule *(1)* of rule 196	level 3
140.	Non-compliance of sub-rule *(2)* of rule 196.	sub-rule *(2)* of rule 196	level 1

141.	Non-compliance with any of the provision of rule 198.	sub-rule *(1), (2), (3), (4)* or (5) of rule 198	level 5
142.	Non-compliance of sub-rules *(1)* or *(2)* of rule 199.	sub-rules *(1)* or *(2)* of rule 199.	level 5
143.	Non-compliance of sub-rules *(5)* or *(6)* of rule 199.	sub-rules *(5)* or *(6)* of rule 199.	level 3
144.	Non-compliance of sub-rules *(7), (8)* or *(9)* of rule 199.	sub-rules *(7), (8)* or *(9)* of rule 199.	level 5
145.	Non-compliance with the directions issued under rule 202.	sub-rule *(3)* of rule 202	upto level 6. in case penalty has already been provided in any rule for the same contravention, then, the penalty as specified for that rule shall prevail.
146.	Non-compliance of sub-rule *(1)* of rule 203.	sub-rule *(1)* of rule 203.	level 6
147.	Non-production of the documents as required by rule 206 within the prescribed time.	rule 206	level 2
148.	Destruction, mutilation etc. of any entry in the log books.	rule 207	level 4
149.	Making of any false and fraudulent entry in the log books.	rule 207	level 6
150.	Denial of access to an authorised person.	sub-rule *(5)* of rule 209	level 6

3. Procedure for adjudication of penalty by designated or appellate officers.— *(a)* The designated officer upon his satisfaction that a person has contravened any of the provisions of rule as specified in the Table 2 under paragraph 2 above, he may, after giving a reasonable opportunity of being heard to such person, by an order in writing, impose penalty in accordance with Tables 1 and 2 under paragraphs 1 and 2 respectively, upon such person, stating the nature of contravention, the provision of rules which have been contravened and the reasons for imposing such penalty along with the demand notice.

(b) The designated officer shall not proceed for imposition of penalty against a person, where it comes to his notice that an action under the Act and these rules has been initiated for contravention of same provisions on same cause of action.

(c) A copy of order of penalty passed, along with the demand notice by the designated officer, shall be served upon such person by a recognised mode of service.

(d) The person aggrieved by the order issued under clause *(a),* may prefer an appeal in accordance with the provisions of rule 216 of these rules.

(e) The copy of appellate order passed by appellate officer shall be provided to the appellant and the designated officer concerned.

(f) The designated officer, within thirty days from the date of the receipt of such order passed by the appellate officer, shall give effect to the order by issuing a revised demand notice to the person against whom the order has been passed for the amount of penalty imposed in the order.

(g) The penalty thus imposed, shall be paid by such person in the manner as laid down by the Director General within a period of thirty days of the service of demand notice upon the person.

(h) In case the person on whom the penalty is imposed fails to pay such amount of penalty within the time stipulated in demand notice, then, the proceeding for cancellation or suspension of any licence, certificate, authorisation, permit or approval, as the case may be, may be initiated under the provisions of these rules.

FORM B *(See rules 215 and 216)* Form of appeal to the Appellate Officer		
1.	Name(s) of the appellant	
2.	Address	
3.	Email address n n	
4.	Phone No.	
5.	Order no. with date, against which the appeal is preferred (copy of the order to be enclosed)	
6.	Name and post of the designated officer by whom the order is passed	
7.	Contravention of rules for which order was passed	
8.	Operative part of order	

9.	Date on which the copy of order received by the appellant	
10.	Date of completion of 30 days limitation period	
11.	Brief facts of the case	
12.	Grounds of appeal	
13.	Prayer of the appellant	
14.	Fee and transaction details	
15.	Attachment, if any	

[F. No. AV-11012/3/2025-D G]

PRIYANKA DAS, Jt. Secry.

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